

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[969 NE2d 207, 946 NYS2d 91]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MORRIS
B. YUSON, Appellant.

Decided May 1, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 29, 2011. The Appellate Division affirmed a judgment of the Monroe County Court (Richard A. Keenan, J.), which had convicted defendant, upon his plea of guilty, of assault in the second degree and sentenced defendant to a prison term of 3¹/₂ years with five years of postrelease supervision.

People v Yuson, 83 AD3d 1502, modified.

HEADNOTE

Crimes — Sentence — Postrelease Supervision

County Court erred in sentencing defendant to five years' postrelease supervision (PRS) upon his plea of guilty to assault in the second degree, a class D violent felony offense, where the court had promised defendant that it would impose a 3¹/₂-year determinate sentence with the "minimum" allowable PRS term. While Penal Law § 70.45 (2) generally provides that the term of PRS for a determinate sentence shall be five years, section 70.45 (2) (e) states the term of PRS "shall be not less than one and one-half years nor more than three years whenever a determinate sentence of imprisonment is imposed pursuant to subdivision three of section 70.02 of this article upon a conviction of a class D or class E violent felony offense." Penal Law § 70.02 (3) sets forth the sentencing ranges courts must adhere to when imposing a determinate sentence of imprisonment on a first time felony offender, and for a class D violent felony paragraph (c) states that the imprisonment term "must be at least two years and not exceed seven years." Since defendant was sentenced in accordance with Penal Law § 70.02 (3) (c), the imposition of the five-year PRS term was improper.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (Janet C. Somes of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (Kelly Christine Welford of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be modified by vacating the sentence and remitting the case to County Court for resentencing in accordance with this memorandum and, as so modified, affirmed.

On November 30, 2007, defendant pleaded guilty, as a first time felony offender, to assault in the second degree (Penal Law § 120.05 [2]), a class D violent felony offense (*see* Penal Law § 70.02 [1] [c]). County Court promised defendant that it would impose a determinate sentence of imprisonment of 3½ years with the “minimum” allowable postrelease supervision (PRS) term. At sentencing, County Court imposed a five-year term of PRS.

Defendant maintains that the court erred when it imposed a five-year PRS term. We agree. It is true that Penal Law § 70.45 (2) generally provides that the term of PRS for a determinate sentence shall be five years. Penal Law § 70.45 (2) (e), however, states the term of PRS

“shall be not less than one and one-half years nor more than three years whenever a determinate sentence of imprisonment is imposed pursuant to subdivision three of section 70.02 of this article upon a conviction of a class D or class E violent felony offense.”

Penal Law § 70.02 (3) sets forth the sentencing ranges courts must adhere to when imposing a determinate sentence of imprisonment on a first time felony offender. For a class D violent felony, the imprisonment term “must be at least two years and must not exceed seven years” (Penal Law § 70.02 [3] [c]). Since defendant was sentenced in accordance with Penal Law § 70.02 (3) (c), the imposition of a five-year PRS term was improper. The People’s argument that Penal Law § 70.02 (4) required County Court to impose a five-year PRS term has no merit. Subdivision (4) of section 70.02 merely provides that a determinate sentence of imprisonment must be imposed under certain circumstances.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, etc.

[968 NE2d 994, 945 NYS2d 639]

SARBJEET KAUR, as Receiver of Gladys Towncars, Inc. and Another, Respondent, v AMERICAN TRANSIT INSURANCE COMPANY et al., Defendants, and BAKER, McEVoy, MORRISSEY & MOSKOVITS, P.C., Appellant.

Decided May 1, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 14, 2011. The Appellate Division modified, on the law, an order of the Supreme Court, New York County (Paul G. Feinman, J.), which had denied the motion of defendant Baker, McEvoy, Morrissey & Moskovits, P.C. for summary judgment dismissing the complaint as against it. The modification consisted of searching the record and granting partial summary judgment in favor of plaintiff on the issue of defendant Baker, McEvoy, Morrissey & Moskovits, P.C.'s successor liability. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: "Was the order of this Court, which modified the order of Supreme Court to the extent of granting partial summary judgment in favor of plaintiff on the issue of defendant-appellant's successor liability, properly made?"

Plaintiff brought an action alleging, among other things, legal malpractice, claiming that an insurer's in-house counsel, Norman Volk & Associates, P.C. (Volk) failed to represent certain parties in accordance with good and accepted legal principles and practices. Plaintiff further asserted that Baker, McEvoy, Morrissey & Moskovits, P.C. (BMMM) was liable as Volk's successor for the alleged malpractice. BMMM moved for summary judgment dismissing the complaint against it on the grounds that it was not a successor to Volk, and had not merged or consolidated with Volk.

The motion court denied BMMM's motion for summary judgment, finding that there were unresolved factual issues as to

whether BMMM was a “mere continuation” of Volk’s practice or whether BMMM “de facto merged with” Volk. The Appellate Division concluded that BMMM’s substitution for Volk in pending actions and its representations to the court that, essentially, Volk’s attorneys would continue to work exclusively as counsel for the insurer at the same address and phone number but under a different name, established as a matter of law that BMMM was a “mere continuation” of Volk.

Kaur v American Tr. Ins. Co., 86 AD3d 455, reversed.

HEADNOTE

Corporations — Liability of Successor Corporation — Law Firm

In an action alleging, among other things, legal malpractice, an order of the Appellate Division which, upon searching the record, granted summary judgment in favor of plaintiff on the issue of defendant law firm’s successor liability, was reversed and the order of Supreme Court, which had denied the law firm’s motion for summary judgment dismissing the complaint as against it, reinstated. Triable issues of fact existed concerning the firm’s successor liability.

APPEARANCES OF COUNSEL

Steinberg & Cavaliere, LLP, White Plains (*Ronald W. Weiner* of counsel), for appellant.

Sivin & Miller, L.L.P., New York City (*Edward Sivin* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, order of Supreme Court, New York County, reinstated and certified question answered in the negative. Triable issues of fact exist concerning defendant-appellant’s successor liability (*see Schumacher v Richards Shear Co.*, 59 NY2d 239, 245 [1983]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[968 NE2d 994, 945 NYS2d 639]

In the Matter of O., Respondent, v M., Appellant.

Decided May 1, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second

Judicial Department, entered October 11, 2011. The Appellate Division affirmed so much of an order of Family Court, Dutchess County (Joan S. Posner, J.), entered in a proceeding pursuant to Family Court Act article 5, as had denied certain of appellant's objections to a prior order of that Court (Elaine Greenblatt, S.M.), which, upon an order of filiation of that Court adjudging appellant to be the father of the subject child, and after a hearing, had directed him to pay biweekly child support.

In a paternity and support proceeding, the Appellate Division concluded that appellant's arguments concerning the issues of the best interests of the child and equitable estoppel were raised by him and determined by the Appellate Division on a prior appeal (*see Matter of O. v M.*, 67 AD3d 1018 [2009]), and that, accordingly, appellant was barred from raising them again on the present appeal. The Court further held that the Family Court had subject matter jurisdiction to issue an order directing appellant to pay child support since no order had been previously issued establishing such an obligation on his part.

Matter of O. v M., 88 AD3d 797, reversed.

HEADNOTE

Children Born out of Wedlock — Paternity Proceeding — Support

In a paternity proceeding, Family Court erred by failing to hold a hearing on equitable estoppel after genetic testing was conducted. Additionally, Family Court had subject matter jurisdiction to make a child support award against appellant notwithstanding a sister state order directing another individual to pay child support. Consequently, the matter was remitted to Family Court for a hearing and determination addressing appellant's equitable estoppel claim, and for any further proceedings, if appropriate.

APPEARANCES OF COUNSEL

Ronald R. Levine, Poughkeepsie, for appellant.

Law Office of Bruce A. Petito, Poughkeepsie (*Bruce A. Petito* of counsel), for respondent.

Brooke & Brady, LLP, Poughkeepsie (*Kelly R. Brady* of counsel), Attorney for the Child.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, without costs, and the matter remitted to Family Court for further proceedings in accordance with this memorandum.

Family Court erred by failing to hold a hearing on equitable

estoppel after genetic testing was conducted (*see Matter of Juanita A. v Kenneth Mark N.*, 15 NY3d 1 [2010]; *Matter of Shondel J. v Mark D.*, 7 NY3d 320 [2006]). Additionally, we note that Family Court has subject matter jurisdiction to make a child support award against appellant notwithstanding a New Jersey order directing another individual to pay child support (*see Matter of Clarke v Clarke*, 68 AD3d 1203, 1204-1205 [3d Dept 2009]). Consequently, we remit the matter to Family Court for a hearing and determination addressing appellant's equitable estoppel claim (*see Juanita A.*, 15 NY3d at 6), and any further proceedings, if appropriate.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

In the Matter of ANONYMOUS et al., Appellants, v DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted February 27, 2012; decided May 1, 2012

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or, in the alternative, leave to appeal to the Court of Appeals, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

VICTOR Y. BATSHEVER, Appellant, v DANIEL BLACK et al., Respondents.

Submitted February 27, 2012; decided May 1, 2012

Reported below, 2012 NY Slip Op 60477(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see CPLR 5602*). Motion for poor person relief dismissed as academic.

LISA BRUNO, Appellant, v STEPHEN BRUNO et al., Respondents.

Submitted March 19, 2012; decided May 1, 2012

Reported below, 83 AD3d 165.

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 805 (2012)]. Cross motion for the imposition of sanctions denied.

FRANK CERVERA, Appellant, v ROSSANNA BRESSLER, Respondent.

Decided May 1, 2012

Reported below, 90 AD3d 803.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Claim of RONALD I. COHEN, Respondent.
TOWN OF BROOKHAVEN, Appellant; COMMISSIONER OF LABOR,
Respondent.

Submitted February 27, 2012; decided May 1, 2012

Reported below, 91 AD3d 998.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DEREK P., Appellant, v DORIS Q., Respondent.
(And Another Related Proceeding.)

Submitted March 12, 2012; decided May 1, 2012

Reported below, 92 AD3d 1103.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that dismissed appellant's appeal from Family Court's dismissal of his petition to enforce a prior Family Court order, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of MILADIN DOBRIC, Appellant, v PARK LEN NORTH OWNER, INC., et al., Respondents.

Submitted January 17, 2012; decided May 1, 2012

Reported below, 2011 NY Slip Op 75445(U).

Motion for reargument of motion for leave to appeal denied [see 17 NY3d 921 (2011)].

In the Matter of PETER J. GALASSO (Admitted as PETER JOHN GALASSO), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted April 2, 2012; decided May 1, 2012

Reported below, 94 AD3d 30.

Motion for leave to appeal granted. Motion for a stay granted.

In the Matter of PETER J. GALASSO (Admitted as PETER JOHN GALASSO), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent

Submitted April 16, 2012; decided May 1, 2012

Reported below, 94 AD3d 30.

Motion by the Nassau County Bar Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, three copies of the brief to be served and 19 copies filed within 30 days.

In the Matter of PETER J. GALASSO (Admitted as PETER JOHN GALASSO), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted April 9, 2012; decided May 1, 2012

Reported below, 94 AD3d 30.

Motion by the Matrimonial Bar Association of Suffolk County for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of PETER J. GALASSO (Admitted as PETER JOHN GALASSO), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted April 9, 2012; decided May 1, 2012

Reported below, 94 AD3d 30.

Motion by the Bronx County Bar Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of PETER J. GALASSO (Admitted as PETER JOHN GALASSO), an Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE NINTH JUDICIAL DISTRICT, Respondent.

Submitted April 23, 2012; decided May 1, 2012

Reported below, 94 AD3d 30.

Motion by New York State Trial Lawyers Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

ERICA L. NIEMANN et al., as Coadministrators of the Estate of TIMOTHY W. NIEMANN, Deceased, Appellants, v ST. JOSEPH'S HOSPITAL HEALTH CENTER et al., Respondents, et al., Defendants.

Submitted February 21, 2012; decided May 1, 2012

Reported below, 87 AD3d 1395.

Motion for reargument of motion for leave to appeal denied [*see* 18 NY3d 875 (2012)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY GAMBLE, Appellant.

Submitted March 26, 2012; decided May 1, 2012

Reported below, 72 AD3d 544.

Motion for reargument denied [*see* 18 NY3d 386 (2012)].

In the Matter of RECOVERY OF JUDGMENT, LLC, as Assignee of
Joshua Wander, Respondent, v JOSEPH WARREN, Appellant.

Submitted March 19, 2012; decided May 1, 2012

Reported below, 91 AD3d 656.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

RITE CAPITAL GROUP, LLC, et al., Respondents, v LMAG, LLC,
et al., Defendants, and ZEG ENTERPRISES, INC., Appellant.

Submitted March 19, 2012; decided May 1, 2012

Reported below, 91 AD3d 741.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

SATELLITE ASSET MANAGEMENT, L.P., Respondent, v FIFTH AVE-
NUE BUILDING COMPANY, LLC, Appellant.

Submitted March 5, 2012; decided May 1, 2012

Reported below, 91 AD3d 412.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

[969 NE2d 209, 946 NYS2d 93]

FREDERICK BREADY et al., Appellants, v CSX TRANSPORTATION,
INC., Respondent, et al., Defendant.

BRANDON HARRIS et al., Appellants, v CSX TRANSPORTATION,
INC., Respondent, et al., Defendant.

Decided May 3, 2012

SUMMARY

APPEAL, in the first above-entitled action, from an order of
the Appellate Division of the Supreme Court in the Fourth

Judicial Department, entered November 10, 2011. The Appellate Division order, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Onondaga County (Anthony J. Paris, J.), which had denied the motion of defendant CSX Transportation, Inc. for summary judgment, (2) granted the motion, and (3) dismissed the complaint and cross claim against the moving defendant.

APPEAL, in the second above-entitled action, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 10, 2011. The Appellate Division order, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Onondaga County (Anthony J. Paris, J.), which had denied the motion of defendant CSX Transportation, Inc. for summary judgment, (2) granted the motion, and (3) dismissed the complaint and cross claim against the moving defendant.

The plaintiffs sought to recover damages pursuant to the Federal Employers' Liability Act (45 USC § 51 *et seq.*) for injuries sustained by Frederick Bready and Brandon Harris when the vehicle in which they were passengers was rear-ended in a chain reaction collision involving four vehicles. The vehicle in which plaintiffs were riding was operated by former defendant Elaine C. Bailey; Bailey and plaintiffs were acting in the course of their employment with defendant CSX Transportation, Inc. at the time of the accident, which occurred while their vehicle was stopped at an intersection waiting for a red light to change. The Appellate Division noted that under the federal act, a jury is entitled to find negligence if a party's actions played any part, even the slightest, in producing the injury, but that liability under the statute is based on negligence and is not based solely on the fact that an employee is injured. The Court also noted that where a vehicle is lawfully stopped, there is a duty imposed upon the operators of vehicles traveling behind it in the same direction to come to a timely halt. The Court found that it was undisputed that the vehicle carrying plaintiffs was lawfully stopped at the time of the accident and that even assuming, *arguendo*, that the traffic signal controlling the intersection had turned green immediately before the accident, Bailey had no duty to accelerate the vehicle into the intersection at the precise moment that the traffic signal turned green. Inasmuch as there was no evidence that Bailey's actions played any part in producing plaintiffs' alleged injuries, the Court held that defendant CSX met its burden of establishing entitlement

to judgment as a matter of law in each action, and plaintiffs failed to raise an issue of fact in opposition to the motions.

Bready v CSX Transp., Inc., 89 AD3d 1386, affirmed.

Harris v CSX Transp., Inc., 89 AD3d 1390, affirmed.

HEADNOTE

Employment Relationships — Federal Employers' Liability Act — Motor Vehicle Accident

In related personal injury actions in which plaintiffs, employees of a railroad, were injured when the vehicle in which they were riding in the course of their employment, and which was being operated by a coemployee, was rear-ended while at a red light, assuming that defendant railroad owed plaintiffs a higher duty of care under the Federal Employers' Liability Act than under the common law, defendant made a prima facie showing that it did not breach that duty of care. Plaintiffs, in response, failed to establish that a triable issue of fact existed on the issue of breach of the duty of care. Accordingly, the Appellate Division properly granted defendant's motion for summary judgment dismissing the complaint in each case.

APPEARANCES OF COUNSEL

Magavern Magavern Grimm LLP, Buffalo (*Edward J. Markarian* of counsel), and *Collins, Collins & Donoghue, P.C.* (*Patrick J. Donoghue* of counsel), for appellants in the first and second above-entitled actions.

Mayer Brown LLP, Washington, D.C. (*Dan Himmelfarb* of counsel), and *Goldberg Segalla LLP*, Buffalo (*John J. Jablonski* of counsel), for respondent in the first and second above-entitled actions.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division in each case should be affirmed, with costs. Assuming without deciding that defendant CSX Transportation, Inc. owed plaintiffs a higher duty of care under the Federal Employers' Liability Act than under the common law, defendant made a prima facie showing that it did not breach that duty of care. Plaintiffs, in response, failed to establish that a triable issue of fact existed on the issue of breach of the duty of care. Accordingly, the Appellate Division properly granted defendant's motion for summary judgment dismissing the complaint in each case.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

In each case: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

ALTSHULER SHAHAM PROVIDENT FUNDS, LTD., Appellant, v GML
TOWER LLC et al., Defendants, and THE PIKE COMPANY,
INC., et al., Respondents.

Submitted March 26, 2012; decided May 3, 2012

Reported below, 83 AD3d 1563.

Motion for reargument of motion for leave to appeal denied
[see 18 NY3d 892 (2012)].

BANKERS TRUST COMPANY OF CALIFORNIA, N.A., Respondent, v
MARY LEE WARD, Appellant, et al., Defendants.

Submitted March 19, 2012; decided May 3, 2012

Reported below, 2011 NY Slip Op 69809(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution. Motion for
poor person relief dismissed as academic.

JOHN B. BELL, Appellant, v NEW YORK STATE HIGHER EDUCA-
TION SERVICES CORPORATION, Respondent.

Submitted March 19, 2012; decided May 3, 2012

Reported below, 90 AD3d 1261.

On the Court's own motion, appeal, insofar as taken from
that portion of the Appellate Division order that dismissed the
appeal from the September 2009 Supreme Court order, dis-
missed, without costs, upon the ground that no substantial
constitutional question is directly involved; appeal otherwise
dismissed, without costs, upon the ground that the remaining
portion of the order appealed from does not finally determine
the action within the meaning of the Constitution. Motion,
insofar as it seeks leave to appeal from that portion of the Ap-
pellate Division order that dismissed the appeal from the
September 2009 Supreme Court order, denied; motion for leave
to appeal otherwise dismissed upon the ground that the remain-
ing portion of the order sought to be appealed from does not
finally determine the action within the meaning of the Consti-
tution.

In the Matter of the Claim of RAMIZ BERISHA, Appellant. COMMISSIONER OF LABOR, Respondent.

Submitted March 19, 2012; decided May 3, 2012

Reported below, 2012 NY Slip Op 63823(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of DAVID BURR, Appellant, v TIMOTHY B. HOWARD, Sheriff of Erie County, Respondent.

Submitted March 19, 2012; decided May 3, 2012

Reported below, 2012 NY Slip Op 65732(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DOCK A. COPE, Appellant, v AATIF BARAKAAT et al., Defendants, and OLABANJI AWOSIKA et al., Respondents.

Submitted February 21, 2012; decided May 3, 2012

Reported below, 89 AD3d 670.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the May 2010 Supreme Court order, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the Appellate Division order does not finally determine the action within the meaning of the Constitution.

JANE DOE, Respondent, v NORTH TONAWANDA CENTRAL SCHOOL DISTRICT, Appellant.

Submitted March 12, 2012; decided May 3, 2012

Reported below, 88 AD3d 1289.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

WILLIAM HOSMER et al., Plaintiffs, v KUBRICKY CONSTRUCTION CORPORATION, Respondent, and TOWN OF FORT ANN, Appellant, et al., Defendants. (And 13 Other Related Actions.)

Submitted March 26, 2012; decided May 3, 2012

Reported below, 88 AD3d 1234.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the actions within the meaning of the Constitution.

ERIC MARTIN, Appellant, v SOUTHERN CONTAINER CORP. et al., Respondents.

Submitted March 26, 2012; decided May 3, 2012

Reported below, 92 AD3d 647.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellant's motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LIJO PANGHAT, M.D., Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS, Respondent.

Submitted March 12, 2012; decided May 3, 2012

Reported below, 2011 NY Slip Op 88701(U).

Motion for leave to appeal from the Appellate Division order dismissing the appeal from the July 2010 Supreme Court order, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

LIJO PANGHAT, M.D., Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS, Respondent.

Submitted April 16, 2012; decided May 3, 2012

Reported below, 89 AD3d 597.

Motion for leave to appeal from the Appellate Division order that affirmed the November 2010 Court of Claims order denied with \$100 costs and necessary reproduction disbursements.

Chief Judge LIPPMAN taking no part.

In the Matter of PEOPLE OF STATE OF NEW YORK, Respondent, v
MIRCEA VELEANU, Doing Business as OBJETS D'ART
UNIQUES, Appellant.

Submitted March 12, 2012; decided May 3, 2012

Reported below, 89 AD3d 950.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BILL
WILLIAMS, Appellant.

Submitted April 30, 2012; decided May 3, 2012

Reported below, 91 AD3d 679.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

URI TORNHEIM, Appellant, v BLUE & WHITE FOOD PRODUCTS
CORP., Respondent.

Submitted February 14, 2012; decided May 3, 2012

Reported below, 88 AD3d 867.

Motion for leave to appeal from the Appellate Division order that modified the Supreme Court judgment denied with \$100 costs and necessary reproduction disbursements.

URI TORNHEIM, Appellant, v BLUE & WHITE FOOD PRODUCTS
CORP., Respondent.

Submitted February 14, 2012; decided May 3, 2012

Reported below, 88 AD3d 869.

Motion for leave to appeal from the Appellate Division order affirming the Supreme Court order that denied appellant's motion to vacate, dismissed upon the ground that such order does not finally determine the action within the meaning of the Constitution.

[969 NE2d 214, 946 NYS2d 97]

In the Matter of DAMIAN G. and Another, Infants. ONEIDA COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JACQUELYN M. et al., Appellants.

Decided May 8, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered October 7, 2011. The Appellate Division affirmed an order of the Family Court, Oneida County (Joan E. Shkane, J.), entered in a proceeding pursuant to Family Court Act article 10, which had adjudicated the subject children to be neglected.

In a child protective proceeding, the Appellate Division concluded that the Family Court's findings of neglect were supported by the requisite preponderance of the evidence. With respect to the mother, petitioner presented evidence establishing that she neglected the children by, among other things, attempting to drive a motor vehicle in an intoxicated condition with the children in the vehicle. Although the mother vigorously disputed that she was intoxicated, witnesses testified that, on the evening in question, she exuded a strong odor of alcohol and was acting in a belligerent and an irrational manner. The Court further concluded that with respect to the father, the record supported the Family Court's determination that he deliberately failed to take antiseizure medication so that he could consume alcohol on the day in question, that he was aware that he was likely to become violent when he had a seizure and that he subsequently did become violent. The Appellate Division found that by deliberately failing to take his antiseizure medication, the father failed to exercise a minimum degree of care for his children and thereby placed them in imminent danger of becoming impaired, physically, mentally or emotionally.

Matter of Damian G. (Jacquelyn M.), 88 AD3d 1268, reversed.

HEADNOTE**Parent and Child — Abused or Neglected Child — Sufficiency of Evidence**

In a child protective proceeding, an order of the Appellate Division, which affirmed an order adjudicating the subject children to be neglected, was reversed and the petition dismissed as the determinations of neglect against the parents were not supported by legally sufficient evidence.

APPEARANCES OF COUNSEL

Koslosky & Koslosky, Utica (*William L. Koslosky* of counsel), for Jacquelyn M., appellant.

Mary R. Humphrey, New Hartford, for Christopher G., appellant.

John A. Herbowy, Utica, for respondent.

Susan B. Marris, Manlius, Attorney for the Children.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, and petition dismissed. The determinations of neglect against Jacquelyn M. and Christopher G. are not supported by legally sufficient evidence.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[969 NE2d 215, 946 NYS2d 98]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRAY GILLIAM, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALBERTO DE LUNA, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUINTRELL JOE, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DARNELL NORTON, Appellant.

Decided May 8, 2012

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial

Department, entered July 1, 2011. The Appellate Division affirmed a judgment of the Onondaga County Court (William D. Walsh, J.), which had convicted defendant, upon his plea of guilty, of rape in the second degree.

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 7, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Robert M. Stolz, J.), which had convicted defendant, upon his plea of guilty, of attempted murder in the second degree.

APPEAL, in the third above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered September 30, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Onondaga County (John J. Brunetti, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the second degree.

APPEAL, in the fourth above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered September 30, 2011. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had convicted defendant, upon his plea of guilty, of robbery in the first degree.

People v Gilliam, 86 AD3d 923, reversed.

People v de Luna, 86 AD3d 433, reversed.

People v Joe, 87 AD3d 1266, reversed.

People v Norton, 87 AD3d 1310, reversed.

HEADNOTE

Crimes — Appeal — Summary Decision at Appellate Division

In four unrelated cases, in which each defendant pleaded guilty to a particular crime, waived the right to appeal and subsequently challenged the validity of the waiver and asserted that the sentence was excessive, the Appellate Division erred by summarily affirming without indicating whether it relied on the waiver or determined that the sentencing claim lacked merit. Consequently, each case was reversed and remitted to the Appellate Division for clarification of the basis of its decision.

APPEARANCES OF COUNSEL

Hiscock Legal Aid Society, Syracuse (*Philip Rothschild* of counsel), for appellant in the first above-entitled action.

William J. Fitzpatrick, District Attorney, Syracuse (James P. Maxwell of counsel), for respondent in the first above-entitled action.

Center for Appellate Litigation, New York City (Lisa A. Packard and Robert S. Dean of counsel), for appellant in the second above-entitled action.

Cyrus R. Vance, Jr., District Attorney, New York City (Nicole A. Coviello of counsel), for respondent in the second above-entitled action.

Hiscock Legal Aid Society, Syracuse (Christine M. Cook of counsel), for appellant in the third above-entitled action.

William J. Fitzpatrick, District Attorney, Syracuse (Victoria M. White and James P. Maxwell of counsel), for respondent in the third above-entitled action.

Timothy P. Donaher, Public Defender, Rochester (Kimberly F. Duguay of counsel), for appellant in the fourth above-entitled action.

Sandra Doorley, District Attorney, Rochester (Leslie E. Swift of counsel), for respondent in the fourth above-entitled action.

OPINION OF THE COURT

MEMORANDUM.

In each case, the order of the Appellate Division should be reversed and the matter remitted to that Court for further proceedings in accordance with this memorandum.

In these unrelated cases, defendants pleaded guilty to a particular crime and waived the right to appeal. Each defendant subsequently challenged the validity of the waiver and asserted that the sentence was excessive. The Appellate Division summarily affirmed without indicating whether it relied on the waiver or determined that the sentencing claim lacked merit (*People v Gilliam*, 86 AD3d 923 [4th Dept 2011], *lv granted* 17 NY3d 953 [2011]; *People v de Luna*, 86 AD3d 433 [1st Dept 2011], *lv granted* 17 NY3d 952 [2011]; *People v Joe*, 87 AD3d 1266 [4th Dept 2011], *lv granted* 18 NY3d 859 [2011]; *People v Norton*, 87 AD3d 1310 [4th Dept 2011], *lv granted* 18 NY3d 861 [2011]). This was impermissible under *People v Qoshja* (17 NY3d 910, 911 [2011]). Consequently, we reverse and remit each case to the Appellate Division for clarification of the basis of its decision.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

In *People v de Luna*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, First Department, for further proceedings in accordance with the memorandum herein.

In *People v Gilliam*, *People v Joe* and *People v Norton*: On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed and case remitted to the Appellate Division, Fourth Department, for further proceedings in accordance with the memorandum herein.

In the Matter of BAUSCH & LOMB CONTACT LENS SOLUTION
PRODUCT LIABILITY LITIGATION.

PLAINTIFFS IN THE NEW YORK COORDINATED PROCEEDING, Appel-
lants, v BAUSCH & LOMB, Respondent.

Submitted March 26, 2012; decided May 8, 2012

Reported below, 87 AD3d 913.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BRIDGET Y. and Others, Children Alleged to be
Neglected. CHAUTAUQUA COUNTY DEPARTMENT OF SOCIAL
SERVICES, Respondent; KENNETH M.Y. et al., Appellants.
(Appeal No. 1.)

Decided May 8, 2012

Reported below, 92 AD3d 77.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the two-Justice dissent is not on a question of law (*see* CPLR 5601 [a]).

CARI, LLC, Appellant, v 415 GREENWICH FEE OWNER, LLC, et
al., Respondents.

Submitted March 12, 2012; decided May 8, 2012

Reported below, 91 AD3d 583.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed Supreme Court's denial of plaintiff's motion for leave to file a second amended complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

CAROLINE COMMISSO, Appellant, v STEVEN G. ORSHAN et al.,
Respondents.

Submitted March 5, 2012; decided May 8, 2012

Reported below, 85 AD3d 845.

Motion for reargument of motion for leave to appeal denied
[see 18 NY3d 876 (2012)].

In the Matter of EIGHTH JUDICIAL DISTRICT ASBESTOS LITIGATION.

STEPHEN DRABCZYK, as Executor of RONALD DRABCZYK, Deceased,
Respondent, v FISHER CONTROLS INTERNATIONAL, LLC, Appellant.

Submitted May 2, 2012; decided May 8, 2012

Reported below, 92 AD3d 1259.

Motion by Crane Co. for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein dismissed as academic.

ALBERT G. FRACCOLA, JR., et al., Appellants, v PHYLLIS FRACCOLA, Individually and as Sole Shareholder of HYDRANIA, INC., et al., Respondents.

Decided May 8, 2012

Reported below, 92 AD3d 1209.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of the Estate of OSWALD JORDAN, Deceased. VICTOR JORDAN, Appellant; LENNA SUSANNAH JORDAN, Respondent.

Decided May 8, 2012

Reported below, 89 AD3d 1085.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of JERRY LINEBERGER, Appellant, v NORMAN BEZIO, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Decided May 8, 2012

Reported below, 89 AD3d 1293.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of PAUL S. et al., as Persons Having Placement of COLLEEN Y. and Others, Respondents, v RITA S. et al., Appellants. (And Five Related Proceedings.) (Appeal No. 2.)

Decided May 8, 2012

Reported below, 92 AD3d 100.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceedings within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSE HERNANDEZ, Appellant.

Submitted April 16, 2012; decided May 8, 2012

Reported below, 266 AD2d 311.

Motion for reargument dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 95 NY2d 885 (2000)];

95 NY2d 792 (2000)]. Motion for poor person relief dismissed as academic.

In the Matter of STATE OF NEW YORK, Respondent, v BOBBY P,
Appellant.

Decided May 8, 2012

Reported below, 93 AD3d 539.

Appeal, insofar as taken from that part of the Appellate Division order that affirmed the October 2010 order of Supreme Court, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal, insofar as taken from the remaining portion of the Appellate Division order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such portion of the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

SUNRISE CHECK CASHING AND PAYROLL SERVICES, INC., et al.,
Respondents, v TOWN OF HEMPSTEAD et al., Appellants.

Submitted March 12, 2012; decided May 8, 2012

Reported below, 91 AD3d 126.

Motion by respondents, insofar as it seeks to dismiss the appeal taken from the Supreme Court judgment entered upon remittal, granted, and the appeal dismissed, without costs, upon the ground that the judgment is not the final paper from which an appeal may be taken (*see* CPLR 5611); motion, insofar as it seeks to dismiss the appeal taken from the Appellate Division order, denied.

Motion by appellants, insofar as it seeks leave to appeal from the Appellate Division order, denied as unnecessary; motion, insofar as it seeks leave to appeal from the Supreme Court judgment entered upon remittal, dismissed upon the ground that the judgment is not the final paper from which leave to appeal may be sought (*see* CPLR 5611). Motion by appellants, treated as one to enlarge the record, denied as unnecessary upon the ground that the material sought to be submitted is subject to judicial notice.

In the Matter of YUNG BROTHERS REAL ESTATE CO., INC., et al.,
Appellants, v ROBERT D. LIMANDRI, as Commissioner of the
New York City Department of Buildings, et al., Respondents.

Submitted April 2, 2012; decided May 8, 2012

Reported below, 92 AD3d 508.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

JASMINE ZHENG et al., Appellants, v CITY OF NEW YORK et al.,
Respondents.

Submitted April 9, 2012; decided May 8, 2012

Reported below, 93 AD3d 510.

Motion for leave to appeal granted. Motion for poor person relief granted. Motion for interim relief denied.

[969 NE2d 779, 946 NYS2d 561]

In the Matter of DIANE L. SCHILLING.

Decided May 31, 2012

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether Honorable Diane L. Schilling should be suspended from the office of Justice of the East Greenbush Town Court, Rensselaer County, pending disposition of her request for review of a determination of the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals on its own motion suspended from office a Justice of the East Greenbush Town Court, Rensselaer County, pending disposition of her request for review of a determination of the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

E. Stewart Jones, Jr., Troy, for petitioner.

Robert H. Tembeckjian, New York City, for New York State Commission on Judicial Conduct.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Diane L. Schilling is suspended, with pay, effective immediately, from the office of Justice of the East Greenbush Town Court, Rensselaer County, pending disposition of her request for review of a determination by the State Commission on Judicial Conduct.

Concur: Judges CIPARICK, GRAFFEO, SMITH, PIGOTT and JONES.
Taking no part: Chief Judge LIPPMAN and Judge READ.

[970 NE2d 864, 947 NYS2d 829]

IDX CAPITAL, LLC, et al., Appellants, et al., Plaintiffs, v PHOENIX PARTNERS GROUP LLC et al., Respondents, et al., Defendants.

Argued April 24, 2012; decided May 31, 2012

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 26, 2011. The Appellate Division order, insofar as appealed from, with two Justices dissenting, modified, on the law, an order of the Supreme Court, New York County (Richard B. Lowe, III, J.), to the extent it had denied defendant Wesley Wang's motion for summary judgment dismissing the "earn-out" portion of plaintiffs' alleged damages, and denied the motion of defendants Phoenix Partners Group LLC, Phoenix Partners Group LP, Nicholas Stephan, Marcos Brodsky, and Patrick Nihan for summary judgment dismissing the second verified amended complaint as against them. The modification, as pertains to this appeal, consisted of dismissing the complaint as against the Phoenix Partners companies, Stephan and Brodsky.

IDX Capital, LLC v Phoenix Partners Group LLC, 83 AD3d 569, affirmed.

HEADNOTE**Torts — Interference with Business Relations — Summary Judgment**

In an action for tortious interference with prospective business relations and aiding and abetting breach of fiduciary duty arising from defendants' alleged

participation in derailing the corporate plaintiff's acquisition by a third party, the Appellate Division properly dismissed the second verified amended complaint as against the corporate defendants and two individual defendants. Plaintiffs, in response to defendants' prima facie showing of entitlement to summary judgment, failed to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact as to whether the two individual defendants participated in a codefendant's admitted campaign to interfere with the proposed acquisition, whether the corporate entities should be held vicariously liable for the codefendant's conduct, or whether an individual plaintiff was entitled to injunctive relief relative to a settlement agreement he had previously entered into with one of the individual defendants.

APPEARANCES OF COUNSEL

Olshan Grundman Frome Rosenzweig & Wolosky LLP, New York City (*Jeffrey A. Udell* of counsel), for IDX Capital, LLC, and another, appellants.

Graubard Miller, New York City (*Lawrence D. Bernfeld* of counsel), for Brady Halper, appellant.

Nixon Peabody LLP, New York City (*Frank H. Penski* of counsel), *John F. Bolton* and *Christopher J. Porzio*, for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed, with costs.

IDX Capital, LLC and its principals, James Cawley and Brady Halper, commenced this action against, among others, Phoenix Partners Group LLC, Phoenix Partners Group LP, Nicholas Stephan and Marcos Brodsky, for tortious interference with prospective business relations and aiding and abetting breach of fiduciary duty arising from defendants' alleged participation in derailing IDX Capital's acquisition by a third party. Plaintiffs asserted a separate claim against Stephan for injunctive relief relative to a settlement agreement he had previously entered into with Cawley. Supreme Court denied defendants' motion for summary judgment. The Appellate Division, with two Justices dissenting, modified and, as pertains to this appeal, dismissed the second verified amended complaint as against the Phoenix entities, Stephan and Brodsky (83 AD3d 569 [1st Dept 2011]).

We affirm. In response to defendants' prima facie showing of entitlement to summary judgment, plaintiffs failed "to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact" as to whether Stephan and

Brodsky participated in codefendant Wesley Wang's admitted campaign to interfere with the proposed acquisition, the Phoenix entities should be held vicariously liable for Wang's conduct, or Cawley was entitled to injunctive relief (*see e.g. Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, affirmed, etc.

[970 NE2d 427, 947 NYS2d 404]

MARK WEINER, Appellant, v CITY OF NEW YORK et al.,
Respondents.

Argued April 26, 2012; decided May 31, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered April 26, 2011. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Kings County (Richard Velasquez, J.), which had denied a motion by defendants to dismiss the complaint pursuant to CPLR 3211 (a) (5) and (7), and (2) granted defendants' motion. The following question was certified by the Appellate Division: "Was the opinion and order of this Court dated April 26, 2011, properly made?"

Weiner v City of New York, 84 AD3d 140, affirmed.

HEADNOTES

Workers' Compensation — Exclusiveness of Remedy — Employee of Fire Department

1. An emergency medical technician employed by a municipal fire department, who was receiving workers' compensation benefits as a result of an injury incurred in the course of his duties, could not bring an action against his municipal employer pursuant to General Municipal Law § 205-a, which gives a right of action to "any officer, member, agent or employee of any fire department" who is injured on duty, "[i]n addition to any other right of action or recovery under any other provision of law." Although General Municipal Law § 205-e contains similar language concerning the creation of a cause of action in favor of police officers, but also explicitly provides that "nothing in this section shall be deemed to expand or restrict any right afforded to or limitation imposed upon an employer, an employee or his or her representative by virtue of any provisions of the workers' compensation law," the omission of the language concerning the Workers' Compensation Law from section 205-a was not deliberate. It is evident in the legislative history of section

205-a that it was not the intent of the Legislature to allow recipients of workers' compensation benefits to sue their employers in tort under that provision.

Workers' Compensation — Exclusiveness of Remedy — Employee of Fire Department

2. *Lo Tempio v City of Buffalo* (6 AD3d 1197 [4th Dept 2004]) was wrongly decided insofar as the Appellate Division, Fourth Department, held that a plaintiff's acceptance of workers' compensation benefits did not preclude a tort action against his or her employer.

Workers' Compensation — Exclusiveness of Remedy — Municipal Employer as Property Owner

3. A common-law negligence claim brought by an emergency medical technician employed by a municipal fire department, who was receiving workers' compensation benefits as a result of an injury incurred in the course of his duties, was properly dismissed, since the workers' compensation scheme may not be circumvented by means of a theory that would allow an employer to be sued in its capacity as property owner. Rather, an employer remains an employer in his relations with his employees as to all matters arising from and connected with their employment, and plaintiff's injuries arose from and were connected with his employment as an emergency medical technician.

APPEARANCES OF COUNSEL

Law Office of Arnold E. DiJoseph, P.C., New York City (Arnold E. DiJoseph, III, of counsel), for appellant.

Michael A. Cardozo, Corporation Counsel, New York City (*Julie Steiner, Stephen J. McGrath and Michael Shender* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question not answered as unnecessary.

Plaintiff Mark Weiner, who was employed by the New York City Fire Department as an emergency medical technician, was hurt while responding to a report of an injured person on a boardwalk in Brighton Beach. He applied for and received workers' compensation benefits from his employer—the City of New York. Subsequently, Weiner commenced this action against the City and its Parks and Recreation Department, alleging both common-law negligence and a cause of action under General Municipal Law § 205-a. According to Weiner, the boardwalk was poorly illuminated, causing his fall.

The City moved to dismiss the complaint pursuant to CPLR 3211, arguing that Weiner's receipt of workers' compensation benefits barred his lawsuit, that as an emergency medical technician he was not within the class of persons who may bring an action under section 205-a, and that he could not proceed

against the City as “owner” of the boardwalk. Supreme Court denied the motion, citing *Lo Tempio v City of Buffalo* (6 AD3d 1197 [4th Dept 2004]).

The Appellate Division, Second Department, reversed, agreeing with the City that Weiner’s action was barred by his receipt of workers’ compensation benefits, and that he could not sue the City in its landlord role. The Appellate Division granted Weiner leave to appeal to this Court and certified the question whether its opinion and order was properly made.

Workers’ compensation benefits are “[t]he sole and exclusive remedy of an employee against his employer for injuries in the course of employment” (*Gonzales v Armac Indus.*, 81 NY2d 1, 8 [1993]). This precludes suits against an employer for injuries in the course of employment.

“In exchange for the security of knowing that fixed benefits will be paid without the need to resort to expensive and sometimes risky litigation, . . . the employee has been asked to pay a price in the form of the loss of his common-law right to sue his employer in tort and perhaps to enjoy a more substantial recovery through a jury award” (*Billy v Consolidated Mach. Tool Corp.*, 51 NY2d 152, 159-160 [1980]).

Nonetheless, Weiner contends that he may bring this action against the City pursuant to section 205-a, because that statute gives a right of action to “any officer, member, agent or employee of any fire department” who is injured on duty, “[i]n addition to any other right of action or recovery under any other provision of law” (General Municipal Law § 205-a [1]).

[1] Weiner’s principal argument relies on a difference in wording between General Municipal Law § 205-a (pertaining to firefighters) and General Municipal Law § 205-e (pertaining to police officers). Section 205-e contains the same statement found in section 205-a that the cause of action created by the statute exists “[i]n addition to any other right of action or recovery under any other provision of law” (General Municipal Law § 205-e [1]). But section 205-e (pertaining to police officers) explicitly provides that “nothing in this section shall be deemed to expand or restrict any right afforded to or limitation imposed upon an employer, an employee or his or her representative by virtue of any provisions of the workers’ compensation law” (General Municipal Law § 205-e [1]). Weiner contends that the omission of this language concerning Workers’ Compensation

Law in section 205-a with respect to firefighters was deliberate. We disagree.

Had the Legislature intended to give firefighters, but not police officers, the right to sue as well as receive workers' compensation benefits, this distinction, we are certain, would have been evident in the legislative history. It is not. To the contrary, in his Memorandum approving the last major amendment of General Municipal Law § 205-a, in 1996, Governor Pataki expressly stated that municipalities (outside New York City)

“that provide workers' compensation for their firefighters and police officers . . . will not incur any additional liability, for *nothing in the bill affects the provisions of existing law stipulating that the right to compensation or benefits under the workers' compensation law is the exclusive remedy an employee has against an employer or co-employee for injuries incurred in the course of his or her employment*” (Governor's Approval Mem, Bill Jacket, L 1996, ch 703, reprinted in 1996 McKinney's Session Laws of NY, at 1936 [emphasis added]).

We conclude that it was not the intent of the Legislature to allow recipients of workers' compensation benefits to sue their employers in tort under section 205-a.

[2] It follows, then, that *Lo Tempio* was wrongly decided insofar as that Court held that a plaintiff's acceptance of workers' compensation benefits does not preclude a tort action against his or her employer. We need not resolve today whether emergency medical technicians who are employed by fire departments and are not recipients of workers' compensation benefits are entitled to the right of action provided by section 205-a, or whether the right of action is limited to firefighters.

[3] Finally, plaintiff's common-law negligence claim was also properly dismissed. We have long refused to condone the circumvention of the workers' compensation scheme by means of a theory that would allow an employer to be sued in its capacity as property owner (*see Billy*, 51 NY2d at 160). “[A]n employer remains an employer in his relations with his employees as to all matters arising from and connected with their employment” (*id.*). Here, Weiner's injuries arose from and were connected with his employment as an emergency medical technician.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order affirmed, etc.

DANIEL MARKS COHEN et al., Appellants, v ANDREW M. CUOMO,
Governor of the State of New York, et al., Respondents.

Submitted May 14, 2012; decided May 31, 2012

Reported below, 35 Misc 3d 478.

Motion by H. William Van Allen for leave to appear amicus curiae on the appeal herein dismissed as academic.

In the Matter of MICHAEL A. CUNNINGHAM, Appellant, v NEW
YORK STATE DEPARTMENT OF LABOR, Respondent.

Submitted May 14, 2012; decided May 31, 2012

Reported below, 89 AD3d 1347.

Motion by New York State United Teachers for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of DESTINY EE., a Child Alleged to be Permanently Neglected. ULSTER COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; KAREN FF., Appellant. (And Other Proceedings.)

Submitted March 26, 2012; decided May 31, 2012

Reported below, 90 AD3d 1437.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution.

JOHN GRONSKI et al., Appellants, v COUNTY OF MONROE, Respondent.

Submitted December 27, 2011; decided May 31, 2012

Reported below, 73 AD3d 1439.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 374 (2011)].

JP MORGAN CHASE BANK, N.A., Respondent, v JON EDELSON et al., Defendants. C-CON CORP., Proposed Intervenor-Appellant.

Submitted March 12, 2012; decided May 31, 2012

Reported below, 90 AD3d 996.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RICHARD M. METZ, as Personal Representative of the Estate of MARY HELEN METZ, Deceased, et al., Respondents, v STATE OF NEW YORK, Appellant. (And Six Other Related Claims.)

Submitted May 14, 2012; decided May 31, 2012

Reported below, 86 AD3d 748.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KEITH A. ADAMS, Appellant.

Submitted May 21, 2012; decided May 31, 2012

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SANTIAGO ALVAREZ, Appellant.

Submitted May 29, 2012; decided May 31, 2012

Reported below, 86 AD3d 578.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAY J. BARBONI, Appellant.

Submitted May 7, 2012; decided May 31, 2012

Reported below, 90 AD3d 1548.

Motion for assignment of counsel granted and Mary P. Davison, Esq., care of Davison Law Office, 61 North Main Street, PO Box 652, Canandaigua, New York 14424 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LAWRENCE BLANKYMSEE, Appellant.

Submitted May 7, 2012; decided May 31, 2012

Reported below, 92 AD3d 890.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER BRINSON, Appellant.

Submitted May 7, 2012; decided May 31, 2012

Reported below, 90 AD3d 670.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AUSTIN CORNELIUS, Appellant.

Submitted May 14, 2012; decided May 31, 2012

Reported below, 89 AD3d 595.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KIRK
HANLEY, Appellant.

Submitted May 14, 2012; decided May 31, 2012

Reported below, 85 AD3d 659.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES A.
HARRIS, JR., Respondent.

Submitted May 29, 2012; decided May 31, 2012

Reported below, 93 AD3d 58.

Motion for assignment of counsel granted and Warren S. Hecht, Esq., 118-21 Queens Boulevard, Suite 518, Forest Hills, New York 11375 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEM-
ETRIUS MCGEE, Appellant.

Submitted May 21, 2012; decided May 31, 2012

Reported below, 87 AD3d 1400.

Motion for assignment of counsel granted and David C. Schopp, Esq., Legal Aid Bureau of Buffalo, Inc., 237 Main Street, Suite 1602, Buffalo, New York 14203 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAUL
THOMPSON, Appellant.

Submitted May 14, 2012; decided May 31, 2012

Reported below, 81 AD3d 670.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TIMOTHY
WILLIAMS, Appellant.

Submitted May 14, 2012; decided May 31, 2012

Reported below, 88 AD3d 463.

Motion for assignment of counsel granted and Steven Banks,
Esq., the Legal Aid Society, 199 Water Street, New York, NY
10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. SANTO GONZA-
LEZ, Appellant, v NEW YORK STATE DEPARTMENT OF COR-
RECTIONAL SERVICES et al., Respondents.

Submitted January 17, 2012; decided May 31, 2012

Reported below, 86 AD3d 886.

Motion for reargument of motion for leave to appeal denied
[see 18 NY3d 802 (2011)].

REGIONAL ECONOMIC COMMUNITY ACTION PROGRAM, INC., Appel-
lant, v ENLARGED CITY SCHOOL DISTRICT OF MIDDLETOWN,
Respondent.

Submitted March 19, 2012; decided May 31, 2012

Reported below, 79 AD3d 723.

Motion for reargument denied with \$100 costs and necessary
reproduction disbursements [see 18 NY3d 474 (2012)].

VBH LUXURY, INCORPORATED, Plaintiff, v 940 MADISON ASSOCI-
ATES LLC, Defendant and Third-Party Plaintiff-Respondent.
EXCELSIOR INSURANCE COMPANY, Third-Party Defendant-
Appellant, et al., Third-Party Defendant.

Submitted March 26, 2012; decided May 31, 2012

Reported below, 83 AD3d 515.

Motion for reargument denied with \$100 costs and necessary
reproduction disbursements [see 18 NY3d 899 (2012)].

**JASMINE ZHENG et al., Appellants, v CITY OF NEW YORK et al.,
Respondents.**

Submitted May 29, 2012; decided May 31, 2012

Reported below, 93 AD3d 510.

Motion by Sanctuary for Families et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2012 through May 31, 2012)

Montes, Matter of, v Bezio	3d Dept: 79 AD3d 1567	5/2/12
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2012 through May 31, 2012)

People v Abare	3d Dept: 86 AD3d 803 (Clinton)	denied 5/7/12 (Lippman, Ch. J.)
People v Acosta	1st Dept: 88 AD3d 483 (Bronx)	denied 5/7/12 (Lippman, Ch. J.)
People v Alicea	App Div, 3d Dept: 2012 NY Slip Op 65247(U) (Rensselaer)	dismissed 5/3/12 (Ciparick, J.)
People v Alsaifullah	App Div, 3d Dept: 2012 NY Slip Op 66066(U) (Albany)	denied reconsideration 5/22/12 (Ciparick, J.)
People v Alvarez	2d Dept: 93 AD3d 674 (Kings)	denied 5/10/12 (Smith, J.)
People v Anderson	4th Dept: 93 AD3d 1210 (Erie)	denied 5/18/12 (Grafteo, J.)
People v Ardrey	3d Dept: 92 AD3d 967 (Schenectady)	denied 5/24/12 (Jones, J.)
People v Ayala	4th Dept: 91 AD3d 1266 (Genesee)	denied 5/24/12 (Jones, J.)
People v Bachiller	4th Dept: 93 AD3d 1196 (Onondaga)	dismissed 5/18/12 (Grafteo, J.)
People v Bailey (Louis)	2d Dept: 92 AD3d 890 (Kings)	denied 5/11/12 (Smith, J.)
People v Bailey (Ralik)	4th Dept: 90 AD3d 1664 (Wyoming)	denied 5/23/12 (Ciparick, J.)

People v Barboni	4th Dept: 90 AD3d 1548 (Oswego)	denied reconsideration 5/10/12 (Ciparick, J.)
People v Barksdale	App Div, 1st Dept: 2011 NY Slip Op 72276(U) (NY)	denied 5/24/12 (Jones, J.)
People v Barrot	4th Dept: 90 AD3d 1515 (Onondaga)	denied 5/22/12 (Ciparick, J.)
People v Bentley	2d Dept: 92 AD3d 686 (Orange)	denied 5/2/12 (Read, J.)
People v Benton (Jonathan)	4th Dept: 87 AD3d 1304 (Erie)	denied 5/22/12 (Ciparick, J.)
People v Benton (Lashonda)	4th Dept: 87 AD3d 1331 (Onondaga)	denied 5/4/12 (Read, J.)
People v Betancourt	1st Dept: 92 AD3d 505 (NY)	denied 5/7/12 (Lippman, Ch. J.)
People v Bianca	3d Dept: 91 AD3d 1127 (Montgomery)	denied 5/18/12 (Grafteo, J.)
People v Bodden	1st Dept: 90 AD3d 574 (NY)	denied 5/17/12 (Lippman, Ch. J.)
People v Borden	3d Dept: 91 AD3d 1124 (Franklin)	denied 5/15/12 (Pigott, J.)
People v Bowman	1st Dept: 88 AD3d 583 (NY)	denied 5/10/12 (Pigott, J.)
People v Boyer	3d Dept: 91 AD3d 1194 (Albany)	denied 5/4/12 (Read, J.)
People v Branker	2d Dept: 89 AD3d 958 (Queens)	denied 5/4/12 (Read, J.)
People v Brazier	1st Dept: 91 AD3d 431 (NY)	denied 5/2/12 (Read, J.)
People v Brightly	2d Dept: 91 AD3d 667 (Dutchess)	denied 5/24/12 (Jones, J.)
People v Brye	App Div, 1st Dept: 2012 NY Slip Op 63336(U) (NY)	denied 5/23/12 (Pigott, J.)
People v Burgos	4th Dept: 90 AD3d 1670 (Onondaga)	denied 5/10/12 (Jones, J.)
People v Burkes	App Div, 1st Dept: 2012 NY Slip Op 67778(U) (NY)	dismissed 5/22/12 (Pigott, J.)
People v Bush (Timothy)	App Div, 3d Dept: 2012 NY Slip Op 66052(U) (Tompkins)	dismissed 5/15/12 (Smith, J.)
People v Bush (Timothy)	App Div, 3d Dept: 2011 NY Slip Op 92010(U) (Tompkins)	denied 5/11/12 (Smith, J.)
People v Butler	2d Dept: 89 AD3d 1101 (Kings)	denied 5/23/12 (Ciparick, J.)
People v Caba	1st Dept: 94 AD3d 484 (Bronx)	denied 5/31/12 (Grafteo, J.)
People v Campbell	3d Dept: 93 AD3d 996 (Madison)	denied ¹ 5/31/12 (Grafteo, J.)

¹. Denied, with leave to renew within 30 days after the Court renders a decision in *People v Velez* (79 AD3d 542 [2010]), *lv granted* 17 NY3d 802 [2011]) and *People v Rodriguez* (88 AD3d 557 [2011], *lv granted* 18 NY3d 886 [2012]).

MEMORANDA

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People v Canales	2d Dept: 88 AD3d 1007 (Queens)	denied 5/4/12 (Read, J.)
People v Carpenter	3d Dept: 93 AD3d 950 (Cortland)	denied 5/18/12 (Pigott, J.)
People v Charleston	1st Dept: 88 AD3d 549 (NY)	denied 5/24/12 (Jones, J.)
People v Chiacchiarini	3d Dept: 91 AD3d 1118 (Schuyler)	denied 5/4/12 (Read, J.)
People v Christian	App Term, 1st Dept: 34 Misc 3d 151(A) (Bronx)	denied 5/7/12 (Read, J.)
People v Churchill	County Ct, 10/13/11 (Chautauqua)	denied 5/29/12 (Jones, J.)
People v Ciccone	3d Dept: 90 AD3d 1141 (Clinton)	denied 5/24/12 (Jones, J.)
People v Clanton	1st Dept: 88 AD3d 577 (NY)	denied 5/24/12 (Jones, J.)
People v Coke	4th Dept: 81 AD3d 1260 (Niagara)	denied reconsideration 5/24/12 (Jones, J.)
People v Colon	2d Dept: 91 AD3d 790 (Orange)	denied 5/24/12 (Jones, J.)
People v Cook	2d Dept: 92 AD3d 794 (Kings)	denied 5/10/12 (Smith, J.)
People v Corey	4th Dept: 93 AD3d 1229 (Cayuga)	denied 5/23/12 (Pigott, J.)
People v Crawley	App Term, 1st Dept: 32 Misc 3d 131(A) (NY)	denied 5/7/12 (Lippman, Ch. J.)
People v Cruz	3d Dept: 92 AD3d 1138 (Sullivan)	denied 5/18/12 (Grafteo, J.)
People v D'Angelo	4th Dept: 92 AD3d 1216 (Niagara)	denied 5/2/12 (Read, J.)
People v Davis	1st Dept: 91 AD3d 567 (NY)	denied 5/18/12 (Pigott, J.)
People v Delvecchio	App Term, 2d Dept, 9th & 10th Jud Dists: 34 Misc 3d 142(A) (Westchester)	denied 5/24/12 (Jones, J.)
People v Diaz	2d Dept: 84 AD3d 977 (Westchester)	denied 5/9/12 (Lippman, Ch. J.)
People v Duah	2d Dept: 91 AD3d 884 (Westchester)	denied 5/4/12 (Read, J.)
People v Ebron	3d Dept: 90 AD3d 1243 (Albany)	denied 5/22/12 (Ciparick, J.)
People v Eggsware	3d Dept: 90 AD3d 1231 (Franklin)	denied reconsideration 5/15/12 (Smith, J.)
People v Falletta	App Term, 2d Dept, 9th & 10th Jud Dists: 34 Misc 3d 136(A) (Nassau)	denied 5/22/12 (Ciparick, J.)
People v Fountaine	County Ct, 2/22/12 (Erie)	denied 5/8/12 (Pigott, J.)
People v Fowler	1st Dept: 93 AD3d 559 (Bronx)	denied 5/18/12 (Grafteo, J.)

People v Fuentes	App Div, 2d Dept: 2012 NY Slip Op 65158(U) (Kings)	dismissed 5/18/12 (Grafteo, J.)
People v Golson	4th Dept: 93 AD3d 1218 (Niagara)	denied 5/31/12 (Grafteo, J.)
People v Gordon	1st Dept: 92 AD3d 580 (NY)	denied 5/15/12 (Pigott, J.)
People v Gray	2d Dept: 92 AD3d 892 (Kings)	dismissed 5/14/12 (Smith, J.)
People v Green (Alberto)	App Div, 2d Dept: 2012 NY Slip Op 64077(U) (Kings)	dismissed 5/18/12 (Grafteo, J.)
People v Green (Avery)	2d Dept: 92 AD3d 953 (Dutchess)	denied 5/18/12 (Grafteo, J.)
People v Greene	2d Dept: 87 AD3d 551 (Westchester)	denied 5/9/12 (Lippman, Ch. J.)
People v Guevara-Carrero	2d Dept: 92 AD3d 693 (Nassau)	denied 5/8/12 (Pigott, J.)
People v Harrell	3d Dept: 92 AD3d 974 (Ulster)	denied 5/8/12 (Pigott, J.)
People v Harris	1st Dept: 93 AD3d 543 (NY)	denied 5/30/12 (Grafteo, J.)
People v Hedge	2d Dept: 89 AD3d 958 (Queens)	denied 5/4/12 (Read, J.)
People v Hershko	2d Dept: 88 AD3d 1013 (Nassau)	denied 5/24/12 (Jones, J.)
People v Hohl	2d Dept: 93 AD3d 859 (Nassau)	denied 5/30/12 (Grafteo, J.)
People v Howard	4th Dept: 92 AD3d 1219 (Erie)	denied 5/10/12 (Smith, J.)
People v Inniss	2d Dept: 88 AD3d 741 (Richmond)	denied 5/2/12 (Read, J.)
People v Jimenez	1st Dept: 93 AD3d 422 (Bronx)	denied 5/4/12 (Read, J.)
People v John	2d Dept: 92 AD3d 896 (Queens)	denied 5/18/12 (Grafteo, J.)
People v Jones (Duane)	1st Dept: 88 AD3d 530 (NY)	denied 5/4/12 (Read, J.)
People v Jones (Timothy)	4th Dept: 90 AD3d 1516 (Erie)	denied 5/22/12 (Ciparick, J.)
People v Joyce	3d Dept: 91 AD3d 986 (Greene)	denied 5/4/12 (Read, J.)
People v Korber	4th Dept: 89 AD3d 1543 (Onondaga)	denied 5/4/12 (Read, J.)
People v Landmesser	3d Dept: 93 AD3d 999 (Chemung)	denied ² 5/31/12 (Grafteo, J.)
People v LaPierre	2d Dept: 86 AD3d 619 (Nassau)	denied 5/18/12 (Pigott, J.)
People v Lewis	1st Dept: 93 AD3d 476 (Bronx)	denied 5/23/12 (Read, J.)

² Denied, with leave to renew within 30 days after the Court renders a decision in *People v Velez* (79 AD3d 542 [2010], *lv granted* 17 NY3d 802 [2011]) and *People v Rodriguez* (88 AD3d 557 [2011], *lv granted* 18 NY3d 886 [2012]).

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People v Linyan Zou	1st Dept: 92 AD3d 524 (NY)	denied 5/10/12 (Smith, J.)
People v Louis	2d Dept: 90 AD3d 1075 (Kings)	denied 5/22/12 (Ciparick, J.)
People v Mack (Anthony)	1st Dept: 92 AD3d 475 (NY)	denied 5/21/12 (Pigott, J.)
People v Mack (Kaywon)	2d Dept: 91 AD3d 794 (Kings)	denied 5/4/12 (Read, J.)
People v Maddox	2d Dept: 92 AD3d 696 (Westchester)	denied 5/4/12 (Read, J.)
People v Major	App Div, 3d Dept: 2011 NY Slip Op 65216(U) (Albany)	denied 5/24/12 (Jones, J.)
People v Man	1st Dept: 90 AD3d 562 (NY)	denied 5/10/12 (Jones, J.)
People v Marin	2d Dept: 93 AD3d 864 (Kings)	denied 5/31/12 (Grafteo, J.)
People v Mason	2d Dept: 92 AD3d 697 (Kings)	denied 5/4/12 (Read, J.)
People v Mayeri	App Term, 2d Dept, 9th & 10th Jud Dists: 34 Misc 3d 142(A) (Nassau)	denied 5/4/12 (Read, J.)
People v McClendon	2d Dept: 92 AD3d 959 (Nassau)	denied 5/11/12 (Smith, J.)
People v McIntosh	1st Dept: 91 AD3d 512 (NY)	denied 5/18/12 (Pigott, J.)
People v Mercer	App Div, 3d Dept: 2011 NY Slip Op 82581(U) (Ulster)	denied 5/10/12 (Lippman, Ch. J.)
People v Merchant	2d Dept: 92 AD3d 806 (Nassau)	denied 5/15/12 (Smith, J.)
People v Micolo	2d Dept: 92 AD3d 807 (Suffolk)	denied 5/8/12 (Pigott, J.)
People v Mills	2d Dept: 90 AD3d 1076 (Kings)	denied 5/24/12 (Jones, J.)
People v Milton	2d Dept: 92 AD3d 899 (Queens)	granted 5/23/12 (Grafteo, J.)
People v Missimer (Donald)	App Div, 3d Dept: 2012 NY Slip Op 65244(U) (Schenectady)	dismissed 5/24/12 (Jones, J.)
People v Missimer (Donald)	App Div, 3d Dept: 2012 NY Slip Op 70139(U) (Schenectady)	dismissed 5/24/12 (Jones, J.)
People v Monroe	1st Dept: 89 AD3d 429 (NY)	granted 5/24/12 (Smith, J.)
People v Montimaire	1st Dept: 91 AD3d 436 (NY)	denied 5/24/12 (Jones, J.)
People v Moore	1st Dept: 93 AD3d 519 (NY)	denied 5/23/12 (Smith, J.)
People v Murda	3d Dept: 92 AD3d 967 (Schenectady)	denied 5/24/12 (Jones, J.)
People v Naughton	2d Dept: 93 AD3d 809 (Suffolk)	denied 5/23/12 (Pigott, J.)
People v Naumowicz	App Div, 3d Dept: 2012 NY Slip Op 66024(U) (Saratoga)	dismissed 5/15/12 (Smith, J.)

People v Nelson (Nakwan)	2d Dept: 87 AD3d 602 (Kings)	denied 5/9/12 (Lippman, Ch. J.)
People v Nelson (Peter)	2d Dept: 93 AD3d 681 (Suffolk)	denied 5/10/12 (Smith, J.)
People v Nolley	App Div, 4th Dept: 2012 NY Slip Op 65096(U) (Erie)	denied 5/23/12 (Read, J.)
People v Noony	3d Dept: 90 AD3d 1243 (Albany)	denied 5/22/12 (Ciparick, J.)
People v Oathout	3d Dept: 90 AD3d 1418 (Albany)	granted 5/18/12 (Pigott, J.)
People v Oddone	2d Dept: 89 AD3d 868 (Suffolk)	denied 5/24/12 (Jones, J.)
People v Olomonsa (Ohnja)	App Div, 4th Dept: 2012 NY Slip Op 68631(U) (Wayne)	dismissed 5/22/12 (Ciparick, J.)
People v Olomonsa (Ohnja)	App Div, 4th Dept: 2012 NY Slip Op 68632(U) (Wayne)	dismissed 5/22/12 (Ciparick, J.)
People v Padilla	1st Dept: 92 AD3d 515 (NY)	denied 5/4/12 (Read, J.)
People v Panchon	1st Dept: 93 AD3d 446 (NY)	denied 5/30/12 (Grafteo, J.)
People v Parnell	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 34 Misc 3d 77 (Kings)	denied 5/15/12 (Pigott, J.)
People v Pearson	4th Dept: 93 AD3d 1343 (Erie)	denied 5/18/12 (Grafteo, J.)
People v Prescott	4th Dept: 87 AD3d 1413 (Erie)	granted 5/15/12 (Smith, J.)
People v Quan Hong Ye	1st Dept: 92 AD3d 407 (NY)	denied 5/24/12 (Jones, J.)
People v Rahim	2d Dept: 90 AD3d 1077 (Kings)	denied 5/23/12 (Read, J.)
People v Ramnaraine	2d Dept: 92 AD3d 809 (Kings)	denied 5/23/12 (Read, J.)
People v Ramos (Chauncy)	App Div, 1st Dept: 2012 NY Slip Op 66337(U) (NY)	dismissed 5/8/12 (Pigott, J.)
People v Ramos (Miguel)	1st Dept: 92 AD3d 445 (NY)	denied 5/4/12 (Read, J.)
People v Reid	2d Dept: 91 AD3d 797 (Westchester)	denied 5/7/12 (Lippman, Ch. J.)
People v Riddick	1st Dept: 88 AD3d 516 (NY)	denied reconsideration ³ 5/23/12 (Ciparick, J.)
People v Riley	App Div, 2d Dept: 2012 NY Slip Op 66957(U) (Kings)	dismissed 5/14/12 (Lippman, Ch. J.)
People v Rivera	1st Dept: 93 AD3d 409 (NY)	denied 5/15/12 (Pigott, J.)
People v Rodney	App Div, 3d Dept: 2012 NY Slip Op 63119(U) (Cortland)	denied 5/18/12 (Pigott, J.)

3. Motion for reconsideration denied, with leave to renew within 30 days after the Court renders a decision in *People v Rodriguez* (88 AD3d 557 [2011]), *lv granted* 18 NY3d 886 [2012]).

MEMORANDA

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People v Rodriguez	County Ct, 12/16/11 (Monroe)	denied 5/22/12 (Ciparick, J.)
People v Roelofsen	2d Dept: 91 AD3d 887 (Queens)	denied 5/22/12 (Ciparick, J.)
People v Rosario	1st Dept: 93 AD3d 605 (Bronx)	denied 5/23/12 (Pigott, J.)
People v Ross	App Term, 1st Dept: 34 Misc 3d 151(A) (NY)	denied 5/18/12 (Grafteo, J.)
People v Ruine	App Div, 1st Dept: 2011 NY Slip Op 71527(U) (NY)	denied 5/14/12 (Lippman, Ch. J.)
People v Samuel	1st Dept: 92 AD3d 466 (NY)	denied 5/8/12 (Pigott, J.)
People v Santana	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 34 Misc 3d 141(A) (Kings)	denied 5/7/12 (Lippman, Ch. J.)
People v Sherman	3d Dept: 91 AD3d 982 (St. Lawrence)	denied 5/4/12 (Read, J.)
People v Simmons	2d Dept: 93 AD3d 739 (Westchester)	denied 5/4/12 (Read, J.)
People v Solomon (John)	App Div, 4th Dept: 2012 NY Slip Op 68631(U) (Wayne)	dismissed 5/22/12 (Ciparick, J.)
People v Solomon (John)	App Div, 4th Dept: 2012 NY Slip Op 68632(U) (Wayne)	dismissed 5/22/12 (Ciparick, J.)
People v Soltys	1st Dept: 93 AD3d 449 (NY)	denied 5/22/12 (Lippman, Ch. J.)
People v Spencer	2d Dept: 89 AD3d 1115 (Nassau)	denied 5/7/12 (Lippman, Ch. J.)
People v Spragion	2d Dept: 91 AD3d 975 (Kings)	denied 5/15/12 (Pigott, J.)
People v Stanley	1st Dept: 92 AD3d 176 (Bronx)	granted 5/11/12 (Smith, J.)
People v Stapleton (Derris)	1st Dept: 93 AD3d 428 (NY)	denied 5/14/12 (Smith, J.)
People v Stapleton (Phillip)	1st Dept: 85 AD3d 439 (Bronx)	denied reconsideration 5/24/12 (Jones, J.)
People v Stevens (Anthony)	1st Dept: 88 AD3d 494 (NY)	denied 5/7/12 (Lippman, Ch. J.)
People v Stevens (Shakeya)	1st Dept: 89 AD3d 577 (NY)	denied 5/9/12 (Lippman, Ch. J.)
People v Stewart	2d Dept: 89 AD3d 1044 (Queens)	denied 5/4/12 (Read, J.)
People v Stokes	4th Dept: 92 AD3d 1244 (Erie)	denied 5/9/12 (Lippman, Ch. J.)
People v Stoudymire	1st Dept: 91 AD3d 543 (NY)	denied 5/24/12 (Jones, J.)
People v Sweeney	4th Dept: 90 AD3d 1572 (Monroe)	denied 5/24/12 (Jones, J.)
People v Tong Hui You	1st Dept: 92 AD3d 524 (NY)	denied 5/10/12 (Smith, J.)

People v Tuitt	App Div, 2d Dept: 2012 NY Slip Op 68433(U) (Westchester)	dismissed 5/14/12 (Lippman, Ch. J.)
People v Vaello	1st Dept: 91 AD3d 548 (Bronx)	denied 5/24/12 (Jones, J.)
People v Vanfleet	County Ct, 3/13/12 (Greene)	dismissed 5/18/12 (Grafteo, J.)
People v Vann (Kouriocian)	2d Dept: 92 AD3d 702 (Kings)	denied 5/4/12 (Read, J.)
People v Vann (Kouriocien)	2d Dept: 92 AD3d 702 (Kings)	denied 5/4/12 (Read, J.)
People v Verbitsky	4th Dept: 90 AD3d 1516 (Herkimer)	denied 5/10/12 (Jones, J.)
People v Viele	3d Dept: 90 AD3d 1238 (St. Lawrence)	denied 5/14/12 (Smith, J.)
People v Vixama	1st Dept: 93 AD3d 603 (NY)	denied 5/18/12 (Grafteo, J.)
People v Wackwitz (Jeffrey)	4th Dept: 93 AD3d 1220 (Cattaraugus)	denied 5/30/12 (Grafteo, J.)
People v Wackwitz (Jeffrey)	4th Dept: 93 AD3d 1221 (Cattaraugus)	denied 5/30/12 (Grafteo, J.)
People v Walker (Lavon)	4th Dept: 93 AD3d 1218 (Erie)	denied 5/14/12 (Smith, J.) (Appeal No. 1)
People v Walker (Lavon)	4th Dept: 93 AD3d 1218 (Erie)	denied 5/14/12 (Smith, J.) (Appeal No. 2)
People v Warner	App Div, 3d Dept: 2011 NY Slip Op 86582(U) (Madison)	denied 5/10/12 (Jones, J.)
People v Warren	2d Dept: 91 AD3d 800 (Kings)	denied 5/4/12 (Read, J.)
People v Waters	4th Dept: 93 AD3d 1180 (Genesee)	denied 5/18/12 (Grafteo, J.)
People v Watson	4th Dept: 90 AD3d 1666 (Onondaga)	denied 5/4/12 (Read, J.)
People v Watt	App Div, 2d Dept: 2012 NY Slip Op 60568(U) (Nassau)	denied 5/4/12 (Read, J.)
People v Weigel	County Ct, 2/2/12 (Chemung)	denied 5/7/12 (Lippman, Ch. J.)
People v Whitmer	4th Dept: 93 AD3d 1172 (Niagara)	denied 5/18/12 (Grafteo, J.)
People v Wiggins	2d Dept: 90 AD3d 791 (Orange)	denied reconsideration 5/18/12 (Pigott, J.)
People v Wilkerson	1st Dept: 94 AD3d 423 (NY)	denied 5/31/12 (Grafteo, J.)
People v Wilson	1st Dept: 93 AD3d 503 (NY)	denied 5/14/12 (Smith, J.)
People v Yagudayev	2d Dept: 91 AD3d 888 (Queens)	denied 5/18/12 (Grafteo, J.)
People v You	1st Dept: 92 AD3d 524 (NY)	denied 5/10/12 (Smith, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices*
(May 1, 2012 through May 31, 2012)

People v Johnson

4th Dept: 94 AD3d 1496 (Cayuga)

granted 5/31/12
(Fahey, J.)

[973 NE2d 158, 950 NYS2d 63]

In the Matter of BOARD OF MANAGERS OF COPLEY COURT CONDOMINIUM, Appellant, v TOWN OF OSSINING et al., Respondents, and BRIARCLIFF MANOR UNION FREE SCHOOL DISTRICT, Respondent.

Argued April 24, 2012; decided June 5, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 21, 2010. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Westchester County (John R. La Cava, J.), which had denied the motion of the Briarcliff Manor Union Free School District to dismiss certain tax certiorari proceedings on the ground that the petitions were not served upon its Superintendent of Schools, and granted petitioner's cross motion for leave to serve the petitions on the Superintendent of Schools of the Briarcliff Manor Union Free School District nunc pro tunc, (2) granted the motion to dismiss the proceedings, and (3) denied petitioner's cross motion.

Matter of Board of Mgrs. of Copley Ct. Condominium v Town of Ossining, 79 AD3d 1032, affirmed.

HEADNOTE

Taxation — Assessment — Failure to Serve Local School District in Tax Certiorari Proceeding — Showing of Good Cause for Failure Required

In related tax certiorari proceedings, a mistaken belief on the part of taxpayer's counsel that the property in question was located within a particular school district did not, standing alone, provide a sound basis to conclude that the taxpayer had shown good cause to excuse its failure under RPTL 708 (3) to provide timely notice to the correct school district such that the taxpayer may avoid otherwise mandatory dismissal of the petition. Section 708 (3) requires that, in a tax certiorari proceeding, "one copy of the petition and notice shall be mailed . . . to the superintendent of schools of any school district within which any part of the real property on which the assessment to

* Includes only applications that were granted.

be reviewed is located,” and provides that “[f]ailure to comply with the provisions of this section shall result in the dismissal of the petition, unless excused for good cause shown.” The statute required the taxpayer to show good cause to excuse its failure to notify the appropriate school district, and not merely to demonstrate the absence of prejudice to the school district. Therefore, even assuming that the appropriate school district was not prejudiced by counsel’s error, the taxpayer nevertheless failed to satisfy the statutory requirement.

APPEARANCES OF COUNSEL

Bleakley Platt & Schmidt, LLP, White Plains (*Hugh D. Fyfe* of counsel), for appellant.

Kuntz, Spagnuolo, Murphy & Gronbach, P.C., Bedford (*Raymond G. Kuntz* of counsel), for Briarcliff Manor Union Free School District, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The condominium at issue in this tax certiorari proceeding is located in the Village of Briarcliff Manor, in the Town of Ossining, and within the Briarcliff Manor Union Free School District (Briarcliff School District). Petitioner, Board of Managers of Copley Court Condominium (Copley), commenced a proceeding against the Town of Ossining and its Assessor and Board of Review seeking review of its tax assessment for the year 2001 pursuant to article 7 of the Real Property Tax Law. In the manner prescribed by RPTL 708 (3), which requires a petitioner to mail a copy of the petition to the superintendent of the school district within which the property at issue is located, Copley notified the Superintendent of Briarcliff School District of the proceeding. Copley also commenced similar proceedings for each of the next six tax years (2002-2007), but for each of those years, Copley’s counsel, evidently under the mistaken impression that the property was actually located within an adjacent school district, the Ossining Union Free School District, mailed copies of the petitions to the Superintendent of the Ossining School District instead of to Briarcliff School District. Briarcliff School District intervened and moved to dismiss the proceedings, and Copley cross-moved for leave to serve Briarcliff School District. The Supreme Court denied the motion and granted the cross motion. The Appellate Division reversed, granting Briarcliff School District’s motion to dismiss (79 AD3d 1032 [2d Dept 2010]). This Court granted Copley’s motion for leave to appeal (16 NY3d 711 [2011]), and we now affirm.

RPTL 708 (3) requires that, in a tax certiorari proceeding, “one copy of the petition and notice shall be mailed . . . to the superintendent of schools of any school district within which any part of the real property on which the assessment to be reviewed is located,” and provides that “[f]ailure to comply with the provisions of this section shall result in the dismissal of the petition, unless excused for good cause shown.” A mistaken belief on the part of a petitioner’s counsel that a property is located within a particular school district does not, standing alone, provide a sound basis to conclude that the taxpayer has shown good cause to excuse its failure to provide timely notice to the correct school district such that the petitioner may avoid otherwise mandatory dismissal of the petition (*compare Leader v Maroney, Ponzini & Spencer*, 97 NY2d 95, 104-105 [2001] [holding that the “good cause” standard referenced in CPLR 306-b requires a party failing to comply with the service provisions in that section to demonstrate “reasonably diligent efforts at service as a threshold matter” in order to be granted an extension of the time for service]). RPTL 708 (3) requires petitioner to show good cause to excuse its failure to notify the appropriate school district, and not merely to demonstrate the absence of prejudice to the school district. Therefore, even assuming, as Copley argues, that Briarcliff School District was not prejudiced by Copley’s error, Copley has nevertheless failed to satisfy the statutory requirement.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

[969 NE2d 1162, 947 NYS2d 47]

MARK DZIELSKI et al., Respondents, v ESSEX INSURANCE COMPANY, Appellant, et al., Defendant.

Decided June 5, 2012

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 23, 2011. The Appellate Division, with two Justices dissenting, modified, on the law, a judgment (denominated order and judgment) of the Supreme Court, Erie County (Diane Y. Devlin, J.), which had, among other things, granted plaintiffs’

motion for summary judgment, denied defendant's motion for summary judgment, and awarded plaintiffs the sum of \$950,000 as against defendant Essex Insurance Company. The modification consisted of reducing the amount awarded to \$499,500, plus interest. The Appellate Division affirmed the judgment as modified.

Plaintiffs commenced an action seeking a judgment declaring that defendant was obligated to indemnify its insured in an underlying personal injury action commenced by plaintiffs, in which defendant's insured had defaulted. The underlying action arose from injuries sustained by plaintiff when he fell from a loading dock after exiting the rear door of a nightclub owned and operated by defendant's insured. On the evening in question, plaintiff had provided sound equipment for a band that had performed at the nightclub, and the accident occurred while plaintiff was carrying equipment from the nightclub to his truck after the concert had concluded. According to plaintiffs, the accident was caused by defects in the loading dock. Defendant disclaimed coverage to its insured based on a "stage hand" exclusion in the policy's "Restaurant, Bar, Tavern, Night Clubs, Fraternal and Social Clubs Endorsement" that provided in relevant part that "[t]he coverage under this policy does not apply to 'bodily injury,' . . . or any injury, loss or damage arising out of . . . [i]njury to any . . . stage hand . . . who participates in or is a part of any athletic event, demonstration, show, competition or contest." Supreme Court granted plaintiffs' motion for summary judgment and awarded judgment to plaintiffs in the amount of the default judgment entered against defendant's insured in the underlying action.

The majority at the Appellate Division concluded that the language "participates in or is a part of any . . . show" was ambiguous, and that Supreme Court properly resolved that ambiguity against the insurer. The dissenting Appellate Division Justices concluded that the exclusionary language in the applicable insurance policy was clear and unmistakable and applied to plaintiff's accident. The dissenting Justices found that the exclusion applied where two conditions were met: (1) the injured party was an entertainer, stage hand, crew member, independent contractor, spectator, patron or customer who "participates in or is a part of" an athletic event, demonstration, show, competition or contest; and (2) the injury "arises out of" such participation; that the language "participates in or is a part of any . . . show" was not ambiguous; and that plaintiff fell squarely within that language. The dissent further concluded that the fact that plaintiff's accident was allegedly caused by

the defective nature of the loading dock rather than any condition of the show itself did not remove plaintiff's injury from the policy exclusion since the phrase "arising out of" required only that there be some causal relationship between the injury and the risk for which coverage is provided, and such a causal relationship clearly existed.

Dzielski v Essex Ins. Co., 90 AD3d 1493, reversed.

HEADNOTE

Insurance — Exclusions — "Stage Hand" Exclusion — Sound Man Injured while Removing Equipment after Nightclub Show

In an action for a judgment declaring that defendant was obligated to indemnify its insured in an underlying personal injury action commenced by plaintiffs, in which defendant's insured had defaulted, an order of the Appellate Division, which had modified a judgment in plaintiff's favor by reducing the amount of damages awarded, was reversed, plaintiffs' motion for summary judgment denied, defendant's motion for summary judgment granted, and judgment granted to defendant declaring that it had no obligation to indemnify its insured in the underlying personal injury action, for the reasons stated in the dissenting memorandum at the Appellate Division. The Appellate Division dissent had concluded that the injury of plaintiff, who was hurt when he fell from a loading dock as he was removing sound equipment after a nightclub show, was clearly encompassed within the "stage hand" exclusion of the insurance policy, which applied when the injured party was an entertainer, stage hand, crew member, independent contractor, spectator, patron or customer who "participates in or is a part of" a show, and the injury "arises out of" such participation. The dissent further concluded that the exclusion was not ambiguous, that the phrase "arising out of" required only that there be some causal relationship between the injury and the risk for which coverage is provided, and that such a causal relationship clearly existed.

APPEARANCES OF COUNSEL

Hurwitz & Fine, P.C., Buffalo (*Dan D. Kohane* of counsel), for appellant.

Damon Morey LLP, Buffalo (*Kathleen M. Reilly*, *Eric C. Naegele* and *Jessica M. DeMichiel* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, plaintiffs' motion for summary judgment denied, defendant's motion for summary judgment granted, and judgment granted to defendant declaring that it has no obligation to indemnify its insured in the underlying personal injury action, for the reasons stated in the dissenting memorandum at the Appellate Division (90 AD3d 1493, 1495-1497 [2011]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of ASSOCIATION FOR COMMUNITY LIVING, INC., et al., Appellants, v NEW YORK STATE OFFICE OF MENTAL HEALTH et al., Respondents.

Decided June 5, 2012

Reported below, 92 AD3d 1066.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

AYINDE FAIR, Appellant, v JOSEPH T. SMITH, Individually and as Superintendent of Shawangunk Correctional Facility, et al., Respondents.

Decided June 5, 2012

Reported below, 93 AD3d 964.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

PETER GONZALEZ et al., Appellants, v L'OREAL USA, INC., Respondent.

Submitted April 9, 2012; decided June 5, 2012

Reported below, 92 AD3d 1158.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of LISA HARBATKIN, Appellant, v NEW YORK CITY DEPARTMENT OF RECORDS AND INFORMATION SERVICES et al., Respondents.

Submitted July 25, 2011; decided June 5, 2012

Reported below, 84 AD3d 700.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal granted.

In the Matter of EDWARD KOEHL, Appellant, v JOHN LEMPKE, Superintendent, Five Points Correctional Facility, Respondent.

Decided June 5, 2012

Reported below, 85 AD3d 1610.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

DEBORAH RAE LAMB et al., Appellants, v GOVERNOR FOR NEW YORK STATE et al., Respondents.

Submitted April 9, 2012; decided June 5, 2012

Reported below, 90 AD3d 716.

Motion for reconsideration of this Court's February 21, 2012 dismissal order denied [*see* 18 NY3d 920 (2012)]. Motion for a stay dismissed as academic.

MARKO S., Also Known as MARKO ALEXANDER S., Also Known as MARKO A., Respondent, v HEATHER S., Also Known as HEATHER KIM S., Appellant.

Submitted April 9, 2012; decided June 5, 2012

Reported below, 2012 NY Slip Op 67049(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DAVID MIRVISH, Appellant, v HANNO D. MOTT, Individually and as Executor of YULLA H. LIPCHITZ, Deceased, et al., Respondents.

Submitted March 26, 2012; decided June 5, 2012

Reported below, 75 AD3d 269.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 510 (2012)].

FREDA GATES POZEFSKY, Appellant, v RICHARD T. AULISI et al.,
Respondents, et al., Defendants.

Submitted April 16, 2012; decided June 5, 2012

Reported below, 79 AD3d 467; 2011 NY Slip Op 62755(U).

Motion for reargument of motion for leave to appeal denied [*see* 18 NY3d 897 (2012)].

In the Matter of ANNA SCHEFFEY-HOHLER, Appellant, v TRAVIS C.
DURFEE, Respondent.

Decided June 5, 2012

Reported below, 90 AD3d 1423.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the two-Justice dissent at the Appellate Division is not on a question of law (CPLR 5601 [a]).

DANIEL SCHICK et al., Respondents, v 200 BLYDENBURGH, LLC,
et al., Appellants.

Submitted April 9, 2012; decided June 5, 2012

Reported below, 88 AD3d 684.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[972 NE2d 83, 948 NYS2d 842]

In the Matter of NEW YORK CITY TRANSIT AUTHORITY, Appellant, v NEW YORK STATE PUBLIC EMPLOYMENT RELATIONS BOARD et al., Respondents.

Argued April 25, 2012; decided June 7, 2012

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 30, 2010, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Kings County). The Appellate Division (1) confirmed a determination of the New York State Public Employment Relations Board which had (a) reversed a decision of an administrative law judge dismissing, after a hearing, an improper labor practice charge of the Transport Workers Union of America, Local 100, alleging that the petitioner had violated Civil Service Law § 209-a (1) (d), and (b) directed petitioner, among other things, to make whole certain employees, (2) denied the petition to annul the determination, (3) dismissed the proceeding on the merits, and (4) granted the cross petition of the New York State Public Employment Relations Board for enforcement of its order.

Matter of New York City Tr. Auth. v New York State Pub. Empl. Relations Bd., 78 AD3d 1184, affirmed.

HEADNOTE

Civil Service — Improper Labor Practices — Unilateral Imposition of Dual Employment Standards

In a proceeding in which a local transport workers' union alleged that a municipal transit authority had committed an improper practice by imposing more stringent dual employment standards on certain employees in "safety-sensitive" titles, the record was inadequate to support the authority's argument that the safety standards in question were in furtherance of its core mission of public safety and, thus, not subject to mandatory collective bargaining. The authority did not rely on particular safety studies when it imposed the new standards. Moreover, the authority did not explain why it chose to impose the more restrictive dual employment standards on certain safety-sensitive employees while exempting others who shared similar job functions. Accordingly, in light of the limited record on appeal, there was an insufficient basis to disturb the determination of the Public Employment Relations Board rescinding the standards and directing the authority to make whole certain affected employees.

APPEARANCES OF COUNSEL

Martin B. Schnabel, General Counsel for New York City Transit Authority, Brooklyn (*Robert K. Drinan* and *Mariel A. Tanne* of counsel), for appellant.

David P. Quinn, Albany, for New York State Public Employment Relations Board, respondent.

Cary Kane LLP, New York City (*Nicholas Hanlon* and *Larry Cary* of counsel), for Transport Workers Union of America, Local 100, respondent.

OPINION OF THE COURT**MEMORANDUM.**

The judgment of the Appellate Division should be affirmed, with costs.

In April 2000, the New York City Transit Authority (the NYCTA) unilaterally instituted a policy regarding dual employment. Under the policy, a NYCTA employee may engage in dual employment provided that it does not “interfere with the proper and effective discharge of the employee’s duties with the [NYCTA].” As relevant here, the policy imposed particular restrictions on “employees in safety-sensitive titles,” including bus operators, tower operators, train conductors, train operators and train dispatchers. Furthermore, the policy stated that department heads “may create and disseminate department-specific standards which may be more stringent than standards set forth [here], as warranted to assure the safety of the public and of [NYCTA] employees.”

Effective May 1, 2006, the NYCTA adopted “more stringent” standards for the dual employment of train conductors, train operators and tower operators. Two months later, the Transport Workers Union, Local 100 (the TWU), representing several employees of the NYCTA, filed an improper practice charge, alleging that the NYCTA violated Civil Service Law § 209-a (1) (d) by failing to negotiate with the Union before implementing these stricter standards. Acknowledging that it did not negotiate with the TWU, the NYCTA asserted that it had no obligation to do so because the decision to impose more restrictive standards was a management prerogative since it related to its mission of providing a safe system of public transit.

An Administrative Law Judge (the ALJ) conducted a hearing in February 2007. At the outset of the hearing, the ALJ noted that the parties stipulated to the introduction of certain joint exhibits. One of those exhibits was a letter from the NYCTA Office of Labor Relations indicating that the NYCTA “did not rely upon any safety studies” when it implemented the more restrictive dual employment standards. However, the NYCTA’s Chief Transportation Officer, Kevin O’Connell, testified at the hearing that the purpose of the new standards was to ensure that those in safety-sensitive positions were “getting sufficient rest.” During his testimony, O’Connell referred to an unidentified report from the National Transportation Safety Board determining that employee fatigue affects safety and recounted that a collision occurred in 1995 when a NYCTA employee fell asleep at the control.

The ALJ agreed with the NYCTA and dismissed the TWU's improper labor practice charge. The TWU filed a statement of exceptions with the Public Employment Relations Board (PERB). In June 2009, PERB reversed the ALJ's determination, rescinded the May 2006 dual employment standards and directed the NYCTA to make whole certain affected employees. The NYCTA then commenced this CPLR article 78 proceeding in Supreme Court. Following transfer of the proceeding to the Appellate Division, the Court confirmed the determination (78 AD3d 1184 [2d Dept 2010]). We granted the NYCTA leave to appeal (17 NY3d 711 [2011]).

It is well settled that “[t]he Taylor Law (Civil Service Law art 14) requires collective bargaining over all ‘terms and conditions of employment’ ” (*Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd.*, 6 NY3d 563, 572 [2006], quoting Civil Service Law § 204 [2]). Where a public employee alleges that a public employer has failed to negotiate the terms and conditions of employment—an improper employer practice (*see* Civil Service Law § 209-a [1] [d]), PERB has exclusive jurisdiction to resolve the dispute between the parties (*see* Civil Service Law § 205 [5] [d]; *see also* *Matter of Zuckerman v Board of Educ. of City School Dist. of City of N.Y.*, 44 NY2d 336, 342 [1978]). We “have made clear that ‘the presumption . . . that all terms and conditions of employment are subject to mandatory bargaining’ cannot easily be overcome” (*Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 572, quoting *Matter of City of Watertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d 73, 79 [2000]). However, “certain decisions of an employer, though not without impact upon its employees, may not be deemed mandatorily negotiable terms and conditions of employment . . . because they are inherently and fundamentally policy decisions relating to the primary mission of the public employer” (*Matter of Board of Educ. of City School Dist. of City of N.Y. v New York State Pub. Empl. Relations Bd.*, 75 NY2d 660, 669 [1990] [internal quotation marks omitted]; *see also* *Matter of County of Erie v State of N.Y. Pub. Empl. Relations Bd.*, 12 NY3d 72, 78 [2009]).

Here, the NYCTA urges us to hold that its implementation of more stringent dual employment standards was mission-related and, therefore, not subject to collective bargaining. It is indisputable that the NYCTA's core mission is to provide a safe system of public transit (*see* Public Authorities Law § 1202 [1]; § 1204 [15]). Although we need not “defer to PERB's judgment”

(*Matter of Patrolmen's Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 575) on whether an employer's unilateral policy decision relates to its primary mission, the record in this case is inadequate to support the NYCTA's argument that the dual employment standards at issue were in furtherance of its core mission of public safety. As noted earlier, the NYCTA did not rely on particular safety studies when it imposed these new standards. Moreover, the NYCTA did not explain why it chose to impose the more restrictive dual employment standards on certain safety-sensitive employees—train conductors, train operators and tower operators—while exempting others—bus operators and train dispatchers—who share similar job functions. Simply put, on the limited record before us, there is an insufficient basis to disturb PERB's determination.

We have considered the NYCTA's remaining arguments and find them to be without merit.

SMITH, J. (dissenting). This case should be decided on the basis of the common-sense proposition that it is dangerous for people who do not get enough sleep to operate subway trains. The NYCTA should therefore be permitted to adopt unilaterally, without collective bargaining, the rule that is in issue here, requiring, in substance, that train operators and other employees in safety-sensitive jobs must, if they want to work at another job, have eight hours off excluding commuting time before they report to work for the NYCTA.

We have repeatedly recognized that certain subjects are so important to the public interest that they are exceptions to the general rule requiring public employers to bargain with employee representatives over the terms and conditions of employment (e.g. *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.*, 40 NY2d 774 [1976] [decisions on teacher tenure]; *Matter of City of New York v Uniformed Fire Officers Assn., Local 854, IAFF, AFL-CIO*, 95 NY2d 273 [2000] [criminal investigations of employee misconduct]; *Matter of Patrolmen's Benevolent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd.*, 6 NY3d 563 [2006] [*PBA v PERB*] [police discipline]). Most recently, in *Matter of City of New York v Patrolmen's Benevolent Assn. of the City of N.Y., Inc.* (14 NY3d 46 [2009]), we held that the choice of a methodology for the drug screening of uniformed police officers was a management prerogative not subject to collective bargaining. The majority makes no attempt to distinguish any of these cases—to explain, for example, why somnolent subway drivers present a less serious threat to the public than

pot-smoking police officers. I would hold this case to be controlled by those I have cited.

The majority here faults the NYCTA for failing to put forward “particular safety studies” to support its new standards (majority mem at 880). But why are studies needed to demonstrate that an employee driving a train full of people should have eight full hours of rest between jobs? Why cannot that matter be left to the NYCTA’s common-sense judgment? The majority finds “an insufficient basis to disturb PERB’s determination” (*id.*), but an agency responsible for public employment relations should not be determining a question like this at all. Here, as in *PBA v PERB*, the issue is “the relative weight to be given to competing policies” (6 NY3d at 575)—in this case, the competing policies of protecting employees’ bargaining rights and protecting the public safety. We, not PERB, should be determining that question, and should decide that the interest in public safety is the weightier one.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO and READ concur; Judge SMITH dissents in an opinion in which Judge PIGOTT concurs; Judge JONES taking no part.

Judgment affirmed, with costs, in a memorandum.

[971 NE2d 856, 948 NYS2d 575]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMON FLORES, Appellant.

Argued April 26, 2012; decided June 7, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 1, 2011. The Appellate Division modified, as a matter of discretion in the interest of justice and on the law, a judgment of the Niagara County Court (Sara S. Sperrazza, J.), which had convicted defendant, upon a jury verdict, of sexual abuse in the first degree, rape in the first degree (two counts), attempted sodomy in the first degree (two counts) and sodomy in the first degree. The modification consisted of reversing that part of the judgment convicting defendant of attempted sodomy in the first degree under count three of the indictment and dismissing that count of the indictment. The Appellate Division affirmed the judgment as modified.

People v Flores, 83 AD3d 1460, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review — Disclosure of Videotaped Grand Jury Testimony

In a sex crimes prosecution in which defendant's indictment was based, in part, on the nine-year-old complainant's videotaped testimony for the grand jury, and the district attorney provided defendant's trial counsel with a copy of the transcript of the complainant's grand jury testimony, and trial counsel viewed the videotape at the district attorney's offices, defendant's argument that CPL 240.45 and *People v Rosario* (9 NY2d 286 [1961]) obligated the People to provide trial counsel with a copy of the videotape was not preserved for appellate review. Trial counsel did not object to the arrangements made by the district attorney for him to view the videotape, and never requested a copy of it.

APPEARANCES OF COUNSEL

Anna Jost, Tonawanda, for appellant.

Michael J. Violante, District Attorney, Lockport (*Thomas H. Brandt* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Ramon Flores was convicted, following a jury trial, of one count of first-degree sexual abuse, two counts of first-degree rape, two counts of first-degree attempted sodomy and one count of first-degree sodomy. He was subsequently sentenced to 20 years in prison to be followed by five years of postrelease supervision. On appeal, the Appellate Division exercised its interest of justice jurisdiction to reverse that part of the judgment convicting defendant of first-degree attempted sodomy under one of the counts of the indictment, dismissed that count and otherwise affirmed (83 AD3d 1460 [4th Dept 2011]).

Defendant's indictment was based, in part, on the nine-year-old complainant's videotaped testimony for the grand jury. The district attorney provided defendant's trial counsel with a copy of the transcript of the complainant's grand jury testimony, and trial counsel viewed the videotape at the district attorney's offices. Defendant argues that CPL 240.45 and *People v Rosario* (9 NY2d 286 [1961]) obligated the People to provide trial counsel with a copy of the videotape. But trial counsel did not object to the arrangements made by the district attorney for him to view the videotape; nor did he ever request a copy of it. This issue is therefore not preserved for appellate review (*People v Jackson*,

78 NY2d 900 [1991]). We have considered defendant's other arguments and find them to be without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[976 NE2d 216, 951 NYS2d 690]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FEOID
HAFFIZ, Appellant.

Argued April 25, 2012; decided June 7, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 12, 2010. The Appellate Division affirmed a judgment of the Suffolk County Court (Ralph T. Gazzillo, J.), which had convicted defendant, upon his plea of guilty, of criminal sale of a controlled substance in the second degree, criminal sale of a firearm in the third degree, and criminal possession of a weapon in the second degree.

People v Haffiz, 77 AD3d 767, affirmed.

HEADNOTE

Crimes — Plea of Guilty — Withdrawal of Plea — Mandatory Deportation upon Conviction

In a criminal prosecution, the trial court did not abuse its discretion in denying defendant's motion to withdraw his guilty plea to drug and weapons offenses where the plea colloquy revealed that defendant knowingly and voluntarily admitted the factual allegations of the crimes and made no protest of innocence. A defendant is not entitled to withdraw his guilty plea based on a subsequent unsupported claim of innocence, where the guilty plea was voluntarily made with the advice of counsel following an appraisal of all the relevant factors. Moreover, although defendant maintained that he was misinformed as to the deportation consequences of his plea, and while *Padilla v Kentucky* (559 US —, 130 S Ct 1473 [2010]) might support vacatur of the plea based on a claim of ineffective assistance of counsel, defendant's claim was predicated on hearsay matters and facts not found in the record on appeal. Accordingly, the claim should be raised in a postconviction application under CPL article 440, where the basis of the claim may be fully developed.

APPEARANCES OF COUNSEL

Quadrino & Schwartz, P.C., Garden City (*Bruce A. Barket* of counsel), for appellant.

Thomas J. Spota, District Attorney, Riverhead (Michael Blakey of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On March 6, 2008, defendant pleaded guilty to criminal sale of a controlled substance in the second degree, criminal sale of a firearm in the third degree, and criminal possession of a weapon in the second degree. Two months later, defendant, with new defense counsel, moved to withdraw the plea arguing, among other things, that the defense of entrapment had been established and he was innocent as a matter of law. Relying on our decision in *People v McDonald* (1 NY3d 109 [2003]), defendant also claimed that his defense counsel at the time of the plea was ineffective by misinforming him that “sometimes people are not deported” after a criminal conviction, when, in fact, defendant’s felony conviction resulted in mandatory deportation. County Court denied defendant’s motion, finding that defendant’s allegations of innocence were contradicted by the plea allocution. The court did not address defendant’s ineffective assistance of counsel claim.

On appeal to the Appellate Division, defendant further argued that his plea should be vacated pursuant to the then-recent decision *Padilla v Kentucky* (559 US —, 130 S Ct 1473 [2010]). In *Padilla*, the United States Supreme Court recognized that “deportation is a particularly severe penalty” with a “close connection to the criminal process,” and held that constitutionally effective assistance of counsel requires defense counsel to inform his or her client whether a plea carries the risk of deportation (559 US at —, 130 S Ct at 1481-1482, 1484, 1486 [internal quotation marks omitted]). The Appellate Division affirmed the denial of defendant’s motion (77 AD3d 767 [2d Dept 2010]).

We agree with the Appellate Division that the trial court did not abuse its discretion in denying defendant’s motion to withdraw his plea. “The established rule is that a guilty plea will be upheld as valid if it was entered voluntarily, knowingly and intelligently” (*People v Fiumefreddo*, 82 NY2d 536, 543 [1993]). “A defendant is not entitled to withdraw his guilty plea based on a subsequent unsupported claim of innocence, where the guilty plea was voluntarily made with the advice of counsel following an appraisal of all the relevant factors” (*People v Dixon*, 29 NY2d 55, 57 [1971]). Here, the plea colloquy reveals

that defendant knowingly and voluntarily admitted the factual allegations of the crimes and made no protest of innocence.

Further, while *Padilla* may support vacatur of the plea based on a claim of ineffective assistance of counsel, in this case the claim is predicated on hearsay matters and facts not found in the record on appeal. The claim should be raised in a postconviction application under CPL article 440, where the basis of the claim may be fully developed (*see People v Brown*, 45 NY2d 852 [1978]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

CYNTHIA A. BELL, Appellant, v 24-26 EAST 82ND STREET CORPORATION et al., Respondents.

Submitted April 30, 2012; decided June 7, 2012

Reported below, 2011 NY Slip Op 75563(U).

Motion for reargument denied [*see* 18 NY3d 917 (2012)].

MAYRA BONILLA et al., Appellants, v MOHAMMED ABDULLAH et al., Respondents.

Submitted April 23, 2012; decided June 7, 2012

Reported below, 2012 NY Slip Op 67061(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DONALD FELIX, Respondent, v LAW OFFICE OF THOMAS F. LIOTTI, Appellant.

Submitted May 14, 2012; decided June 7, 2012

Reported below, 90 AD3d 597; 2012 NY Slip Op 61575(U).

Motion for reargument of motion for leave to appeal denied [*see* 18 NY3d 974 (2012)]. Motion for a stay dismissed as academic.

In the Matter of LEON R. KOZIOL, Individually and as Parent of CHILD A. and CHILD B., and on Behalf of Parents and Children Similarly Situated, Appellant, v MARTHA WALSH HOOD, as Justice of the Supreme Court, et al., Respondents.

Decided June 7, 2012

Reported below, 92 AD3d 1161.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge LIPPMAN taking no part.

K2 INVESTMENT GROUP, LLC, et al., Respondents-Appellants, v AMERICAN GUARANTEE & LIABILITY INSURANCE COMPANY, Appellant-Respondent.

Decided June 7, 2012

Reported below, 91 AD3d 401.

On the Court's own motion, appeal by respondents-appellants dismissed, without costs, upon the ground that the dissent at the Appellate Division is not on a question of law in favor of respondents-appellants (*see* CPLR 5601 [a]). Motion by respondents-appellants for leave to appeal granted.

In the Matter of MAKAYLA L.P., an Infant. STEUBEN COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; ALECIA M.P., Respondent, and DAVID S., Appellant.

Submitted March 26, 2012; decided June 7, 2012

Reported below, 92 AD3d 1248.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v DAMIEN WARREN, Respondent.

Submitted May 7, 2012; decided June 7, 2012

Reported below, 87 AD3d 36.

Motion to vacate this Court's April 25, 2012 preclusion order granted.

In the Matter of WILLARD SAPERSTON, Appellant, v HEATHER
HOLDAWAY, Respondent.

Decided June 7, 2012

Reported below, 93 AD3d 1271.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

LOUIS A. TERMINELLO et al., Appellants, v VILLAGE OF PIERMONT,
Respondent, et al., Defendants.

Submitted March 26, 2012; decided June 7, 2012

Reported below, 92 AD3d 673.

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that no substantial constitutional question is directly involved.

[972 NE2d 111, 948 NYS2d 870]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD
KELLEY, Appellant.

Argued May 1, 2012; decided June 12, 2012

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 8, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Renee A. White, J.), which had convicted defendant, upon a jury verdict, of course of sexual conduct against a child in the first degree, endangering the welfare of a child, and criminal contempt in the second degree (20 counts).

People v Kelley, 82 AD3d 463, modified.

HEADNOTE

Crimes — Fair Trial — Introduction of Scientific Evidence That Had Been Overlooked — Change in Defense Theory

In a prosecution in which defendant was charged with committing sex crimes against his daughter over an extended period, defendant was entitled to a new trial on his convictions for course of sexual conduct against a child in the first degree and endangering the welfare of a child, where the trial court, after defendant's direct testimony and cross-examination, permitted the prosecution to introduce scientific evidence concerning genetic material on a towel on which defendant had purportedly ejaculated and which had not been tested before trial, since the introduction of the scientific evidence pertaining to the genetic testing of the material on the towel violated defendant's right to a fair trial. By the time the People discovered the testing oversight, defendant's contention that there was no DNA evidence to corroborate the charges had been placed before the jury, defendant had already testified, and the trial was too far along for defense counsel to present a new defense theory. The evidence also corroborated a particular aspect of the daughter's testimony—that defendant commonly ejaculated on a towel after intercourse—and her awareness of that fact indicated that she either had been exposed to or subjected to her father's sexual proclivities. The trial court therefore should have precluded the submission of that evidence or declared a mistrial, rather than allowing the evidence and offering defendant the opportunity to retake the stand.

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (Kerry S. Jamieson, Richard M. Greenberg and Rosemary Herbert of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Sylvia Wertheimer and Patrick J. Hynes of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, by vacating the convictions for course of sexual conduct against a child in the first degree and endangering the welfare of a child, and a new trial ordered as to those counts, and, as so modified, affirmed.

Defendant was indicted for one count of course of sexual conduct against a child in the first degree in connection with various acts that he allegedly committed against his daughter prior to her thirteenth birthday; multiple counts of rape and incest for actions that purportedly occurred after his daughter became 13 years of age; two counts of endangering the welfare of a child; and 20 counts of criminal contempt for violations of an order of protection issued to the child and her mother. During the investigation, the victim's mother turned over to police the underwear that her daughter had worn on the day of the

alleged final incident, along with a bed sheet and a towel that her daughter claimed defendant ejaculated on (which the child described as defendant's usual behavior after he performed sexual acts with her). Analysis of the underwear revealed the presence of male DNA that did not belong to defendant. A copy of the report detailing the testing of the underwear was provided to defense counsel before trial. For some unexplained reason, the towel was not tested for genetic material.

Defendant's trial strategy focused on the lack of DNA evidence implicating him. Near the end of the People's direct case, defense counsel inquired of the prosecution why the towel had not been tested. This led to the People's discovery that the towel had not been examined for genetic material, so they arranged for testing. When the People advised the court of this development, defense counsel objected to the introduction of any evidence derived from the towel, arguing that defendant's right to a fair trial would be undermined since the centerpiece of his defense was the absence of any scientific evidence corroborating the child's accusations.

After defendant's direct testimony and cross-examination, the People disclosed that the towel had been analyzed and was found to contain defendant's semen and the DNA of a female, but not that of defendant's daughter. Defense counsel reiterated that the evidence should be precluded or a mistrial ordered because the proffered scientific proof had not been available during the formulation of defendant's defense and it was too late for the defense to shift its emphasis. The trial court ruled that the People could introduce the DNA results and defendant could retake the stand, if he wished. The jury ultimately convicted defendant of first-degree course of sexual conduct against a child, endangering the welfare of a child and criminal contempt. The Appellate Division affirmed (82 AD3d 463 [1st Dept 2011]) and a Judge of this Court granted leave to appeal (17 NY3d 807 [2011]).

On these facts, the introduction of the scientific evidence pertaining to the genetic testing of the semen on the towel violated defendant's right to a fair trial. By the time the People discovered the testing oversight, defendant's contention that there was no DNA evidence to corroborate the charges had been placed before the jury, defendant had already testified and the trial was too far along for defense counsel to present a new defense theory. The evidence also corroborated a particular aspect of the daughter's testimony—that defendant commonly

ejaculated on a towel after intercourse—and her awareness of that fact indicated that she either had been exposed to or subjected to her father’s sexual proclivities. The trial court therefore should have precluded the submission of this evidence or declared a mistrial (*see generally People v Goins*, 73 NY2d 989, 991 [1989]). But the error was harmless as to the criminal contempt charges because defendant admitted his guilt regarding those crimes. Consequently, defendant is entitled to a new trial on the charges of first-degree course of sexual conduct against a child and endangering the welfare of a child.

SMITH, J. (dissenting). I agree with defendant that the belated testing of the towel was a violation of CPL 240.20 (1) (c), which requires the People to make available upon a defendant’s demand “[a]ny written report . . . concerning a . . . scientific test or experiment.” The statute does not require the People to test anything—only to make available such tests as they have—but when, as here, the People delay the testing until well after the trial has begun, the effect is to defeat the purpose of the statute. If the People had done this deliberately, I might agree with the majority that the trial court should have precluded the results of the test, or ordered a mistrial.

But it is undisputed that the People were guilty of no more than an innocent mistake. Under these circumstances, the trial court did not abuse the discretion given to it by CPL 240.70 (1), which says that, where a party has failed to comply with a discovery obligation, the court may, among other things, “grant a continuance, issue a protective order, prohibit the introduction of certain evidence or the calling of certain witnesses or take any other appropriate action.” When it became known that the towel had not been tested, the court asked whether defendant “would like to delay the proceedings and see what the evidence is”; and after deciding to admit the test results, the court invited defendant, who had already testified, “to retake the stand to develop any issues concerning the towel.” Defendant declined both offers. I do not think fairness required the trial judge to do more—to choose between excluding relevant evidence and aborting the trial.

The towel was never a major part of the case. It was barely mentioned in the People’s opening; was not mentioned at all in defendant’s; and was the subject of only a few questions during the cross-examination of the complainant. And the belatedly obtained test results were not of much significance, because the complainant’s DNA was not found on the towel. Indeed, as the

Appellate Division pointed out, the evidence that was obtained—the towel contained defendant’s semen, mixed with other female DNA (presumably his wife’s)—cut both ways. Both sides made use of it, without clear advantage to either, in closing argument. The People argued that, as the majority here suggests, the evidence confirmed the complainant’s familiarity with “her father’s sexual proclivities” (majority mem at 890); but defendant argued that the absence of the complainant’s DNA proved the complainant lied when she claimed to have had sex with defendant shortly before the towel was turned over to the police.

Other evidence played a much larger role at the trial. The complainant’s testimony was strongly corroborated by defendant’s own statements. After his arrest, he wrote to his wife: “It is nobody’s business what a man and his wife and family do in regards to each other if it’s agreed upon jointly.” He wrote to his daughter: “I never forced you . . . I never tricked you.” In another letter to his wife, he begged her to read Genesis 19:31-38, recounting incest between Lot and his daughters. “This,” defendant said, “is in the word of God!” The letters are virtually a confession. Any prejudice to defendant from the admission of the test results was insignificant by comparison.

Defendant was convicted after a fair trial. There is no good reason to try this case again.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, FIGOTT and JONES concur in memorandum; Judge SMITH dissents in an opinion.

Order modified, etc.

[971 NE2d 859, 948 NYS2d 578]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TONY
WILLIAM, Appellant.

Argued May 2, 2012; decided June 12, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 8, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Herbert J. Adlerberg, J.H.O., at suppression hearing; Charles H. Solomon, J., at suppression

ruling, plea, and sentence) which had convicted defendant, upon his plea of guilty, of robbery in the first degree.

The Appellate Division concluded that the trial court correctly denied defendant's suppression motion, finding that the police properly stopped a cab in which defendant and his codefendant were passengers and that when the police first saw the cab, they observed that the passengers matched some general aspects of a radioed description of two men who had just committed a robbery at the same location. The Appellate Division further found that given the close temporal and spatial proximity of these observations to the reported crime, and the absence of other persons, there was a strong likelihood that the men in the cab were the same men wanted for the robbery, that the likelihood was sufficient to provide reasonable suspicion, and that accordingly, defendant was not entitled to suppression of any of the evidence obtained as the result of the stop of the cab. Moreover, the Appellate Division found that the police conducted a showup in a manner that was permissible and not unduly suggestive, given the fast-paced chain of events.

People v William, 81 AD3d 453, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Identification of Defendant

Whether the circumstances of a particular criminal case rise to the level of reasonable suspicion presents a mixed question of law and fact that is beyond review in the Court of Appeals if the lower courts' determination has record support. Here, although different conclusions may have been reasonable at the fact-finding level, record evidence supported the lower courts' determination that the police possessed reasonable suspicion to stop defendant, therefore ending the Court of Appeals review. Similarly, whether a showup was reasonable under the circumstances and/or unduly suggestive were mixed questions of law and fact, and the determinations of the courts below that the showup was reasonable and not unduly suggestive were supported by the record and, thus, likewise beyond further review in the Court of Appeals.

APPEARANCES OF COUNSEL

Davis Polk & Wardwell LLP, New York City (*Jonathan K. Chang*, *Edmond Polubinski, III*, and *Jonathan Stroble* of counsel), and *Office of the Appellate Defender* (*Richard M. Greenberg* and *Rosemary Herbert* of counsel) for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Andrew E. Seewald* and *Vincent Rivellese* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Whether the circumstances of a particular case rise to the level of reasonable suspicion presents a mixed question of law and fact that is beyond our review if the determination has record support (*see People v Pines*, 99 NY2d 525, 527 [2002]). In this case, although different conclusions may have been reasonable at the fact-finding level, record evidence supports the lower courts' determination that the police possessed reasonable suspicion and our review therefore ends (*see People v Hicks*, 68 NY2d 234, 238 [1986]). Similarly, "[w]hether a showup is reasonable under the circumstances and/or unduly suggestive are mixed questions of law and fact" (*People v Gilford*, 16 NY3d 864, 868 [2011]). The determinations of the courts below that the showup was reasonable and not unduly suggestive are supported by the record and are likewise beyond our further review.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[973 NE2d 160, 950 NYS2d 65]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRIAN GAMMON, Appellant.

Argued May 2, 2012; decided June 12, 2012

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the Second Judicial Department, entered December 15, 2010. The Appellate Term affirmed the resentence of the District Court of Suffolk County, First District (Dennis M. Cohen, J.), imposed upon defendant's admission to a violation of probation.

People v Gammon, 30 Misc 3d 46, affirmed.

HEADNOTES**Crimes — Sentence — Resentence — Correction of Error**

1. The resentencing of defendant to a 120-day jail term upon his violation of probation did not violate the proscriptive language of CPL 430.10, which provides that a lawful sentence of imprisonment may not be altered or interrupted once it has commenced, where defendant had already served 60 days upon his initial conviction, the court sought to impose an additional 60 days upon his violation of probation, and due to an erroneous determination of jail time credit, defendant was immediately released upon being returned to jail following the probation violation. Courts have the inherent power to correct their records, where the correction relates to mistakes, or errors, which may be termed clerical in their nature, or where it is made in order to conform the record to the truth. Consequently, courts can exercise that authority in circumstances where it clearly appears that a mistake or error occurred at the time a sentence was imposed, and it was evident, on the record, that the resentencing court intended to impose an additional 60 days incarceration for the violation of probation. Its failure to specify that it was a successive term of imprisonment created the type of ambiguity a court has the inherent authority to clarify. In that sense, the sentence was not changed after the original resentencing pronouncement.

Crimes — Sentence — Resentence — Double Jeopardy

2. Defendant's constitutional right against double jeopardy (US Const 5th Amend) was not violated when District Court, having initially imposed a 60-day sentence for defendant's parole violation, later resentenced him to an additional 60-day sentence when the defendant was released after the initial resentencing due to an erroneous determination crediting him with time served. Although a reasonable expectation of finality attaches once a sentence has been completed and defendant released, in light of the court's express intent to impose an additional period of incarceration, its authority to correct an apparent ambiguity in pronouncing sentence, and the parties' understanding that defendant was to serve a 60-day term of imprisonment for the violation of probation, it could not be said that in this unique situation defendant acquired a legitimate expectation of finality when he was mistakenly released the same day he was taken into custody. Accordingly, no reasonable expectation of finality could have attached to the ambiguous sentence so that the court would have been precluded, under principles of double jeopardy, from correcting its ambiguity and resentencing defendant in accordance with its stated intent.

APPEARANCES OF COUNSEL

O'Brien & O'Brien, LLP, Nesconset (*Stephen L. O'Brien* of counsel), for appellant.

Thomas J. Spota, District Attorney, Riverhead (*Michael J. Miller* and *Thomas Constant* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Term should be affirmed.

After being convicted of driving while intoxicated (*see* Vehicle and Traffic Law § 1192 [3]), defendant was sentenced to three

years of probation and served a 60-day term of incarceration (a condition of probation). Some time thereafter, defendant was found to have violated a condition of probation and, as a result, District Court sought to order an additional 60 days of imprisonment. The court remarked, “I promised that I would sentence you to an additional 60 days incarceration. That’s in addition to the 60 days you already served, and terminate you from probation.”

However, on June 8th, the actual date of sentencing, the court did not specify that it was ordering an additional term of imprisonment, pronouncing that “[p]ursuant to my promise on June 2, the defendant is terminated from probation. I sentence him to 60 days in jail.” Defendant was immediately taken into the custody of the Suffolk County jail, but was released the same day because of an erroneous determination crediting him with time served for the original 60-day period of incarceration from the underlying conviction. Days after learning of defendant’s release, the District Court resentenced him to “120 days in jail which is an additional 60 days to the 60 days sentence that he already served.” Defendant argues that the resentencing violated Criminal Procedure Law § 430.10 and his constitutional right under the Double Jeopardy Clause of the Fifth Amendment of the United States Constitution.

[1] We hold that the resentencing of defendant did not violate the proscriptive language of section 430.10 which provides that “[e]xcept as otherwise specifically authorized by law, when the court has imposed a sentence of imprisonment and such sentence is in accordance with law, such sentence may not be changed, suspended or interrupted once the term or period of the sentence has commenced.”

It is well established that courts have the “inherent power to correct their records, where the correction relates to mistakes, or errors, which may be termed clerical in their nature, or where it is made in order to conform the record to the truth” (*People v Minaya*, 54 NY2d 360, 364 [1981], quoting *Bohlen v Metropolitan El. Ry. Co.*, 121 NY 546, 550-551 [1890]). Consequently, we have recognized that courts can exercise this authority “in circumstances where it clearly appears that a mistake or error occurred at the time a sentence was imposed” (*People v Richardson*, 100 NY2d 847, 850 [2003] [internal quotation marks omitted]). It is evident, on this record, that District Court intended to impose an “additional 60 days incarceration” for the violation of probation. Its failure to specify that this was a

successive term of imprisonment created the type of ambiguity a court has the inherent authority to clarify (*see Minaya*, 54 NY2d at 364; *People v Wright*, 56 NY2d 613 [1982]; *People v Reed*, 85 AD3d 824 [2d Dept 2011]). In this sense, the sentence was not changed after the June 8 pronouncement.

[2] Nor did the resentencing violate defendant's constitutional right against double jeopardy. In *People v Williams* (14 NY3d 198 [2010]), we held that once defendants had satisfied their original judgments by completing their sentences and been released from incarceration at the termination of their sentences, a reasonable expectation of finality had attached and double jeopardy prevented imposition of postrelease supervision (PRS) at resentencing. The defendants in *Williams* served out their terms of imprisonment, and the sentencing judges unambiguously did not pronounce PRS, whereas here, defendant received an ambiguous sentence and did not serve out the original sentence imposed, as reasonably understood by all the parties.

In light of the court's express intent to impose an additional period of incarceration; its authority to correct an apparent ambiguity in pronouncing sentence; and the parties' understanding that defendant was to serve a 60-day term of imprisonment for the violation of probation, in this unique situation, it cannot be said that defendant acquired a legitimate expectation of finality when he was mistakenly released the same day he was taken into custody. Under these circumstances, no reasonable expectation of finality could have attached to the ambiguous sentence so that the court would be precluded, under principles of double jeopardy, from correcting its ambiguity and resentencing defendant in accordance with its stated intent (*see Minaya*, 54 NY2d at 366).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

PAUL ALEXANDER, Appellant, v RAYMOND KELLY, as the Police Commissioner of the City of New York, et al., Respondents.

Submitted April 23, 2012; decided June 12, 2012

Reported below, 2012 NY Slip Op 66332(U).

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of DAVID BURR, Appellant, v TIMOTHY B. HOWARD,
Sheriff of Erie County, Respondent.

Submitted April 23, 2012; decided June 12, 2012

Reported below, 2012 NY Slip Op 68102(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of BENJAMIN V.R. CONLON, an Attorney, Appellant.
COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Decided June 12, 2012

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of VICTOR ALTHEUS DePONCEAU, Appellant, v
BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, et al., Respondents.

Decided June 12, 2012

Reported below, 93 AD3d 1040.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

IRENE GOTTESMAN et al., Respondents, v EVELYN FRIEDMAN,
Also Known as EVELINE FRIEDMAN, et al., Appellants, et al.,
Defendants.

Submitted April 30, 2012; decided June 12, 2012

Reported below, 90 AD3d 608.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

LANCE INTERNATIONAL, INC., Appellant, v FIRST NATIONAL CITY BANK, Respondent.

Submitted April 2, 2012; decided June 12, 2012

Reported below, 86 AD3d 479.

Motion for leave to appeal dismissed upon the ground that it does not lie from the Appellate Division order, appellant having previously moved for leave to appeal to the Court of Appeals (17 NY3d 922 [2011]) from the same Appellate Division order from which leave to appeal is currently sought (*see 166 Archer Ave. Co., LLC v New York City Health & Hosps. Corp.*, 15 NY3d 839 [2010]).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DEMETRIO LIFRIERI, Appellant, v WILLIAM A. LEE, Respondent.

Submitted April 23, 2012; decided June 12, 2012

Reported below, 2012 NY Slip Op 66396(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JEFFREY THRALL, Appellant, v CNY CENTRO, INC., et al., Respondents.

Submitted April 2, 2012; decided June 12, 2012

Reported below, 89 AD3d 1449, 1452.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution.

TOWN OF FENTON et al., Appellants, v TOWN OF CHENANGO, Respondent. (And Other Proceedings/Actions.)

Submitted April 2, 2012; decided June 12, 2012

Reported below, 91 AD3d 1246.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that affirmed the denial of appellants' motion to renew, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of the Arbitration between VILLAGE OF HORSEHEADS, Appellant, and HORSEHEADS POLICE BENEVOLENT ASSOCIATION, INC., Respondent.

Submitted May 21, 2012; decided June 12, 2012

Reported below, 94 AD3d 1191.

Motion for leave to appeal denied. Motion for stay relief denied.

[973 NE2d 752, 950 NYS2d 342]

AYUBE HUSSEIN, as Parent of a Student in the Albany City School District, et al., Respondents, v STATE OF NEW YORK, Appellant.

Argued April 26, 2012; decided June 26, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered January 13, 2011. The Appellate Division affirmed an order of the Supreme Court, Albany County (Eugene P. Devine, J.), which had denied a motion by defendant to dismiss the complaint. The following question was certified by the Appellate Division: "Did this Court err, as a matter of law, in affirming, on the law, the order of Supreme Court which denied defendant's motion to dismiss the complaint?"

Plaintiffs—the parents of minor students in 11 different school districts outside the City of New York—commenced this declaratory judgment action in March 2009, alleging that their children were being deprived of the opportunity of a sound basic education, in violation of NY Constitution, article XI, § 1, because the school districts where the students attend school

were substantially underfunded. Plaintiffs also requested injunctive relief to compel defendant to establish and maintain an education aid and funding system that would ensure that all public school children throughout the state would receive a meaningful opportunity to receive an education meeting constitutionally mandated minimum standards. Defendant moved to dismiss the action pursuant to CPLR 3211 on the basis that plaintiffs' claims were not ripe for review and/or were moot. The Appellate Division concluded that the complaint stated a cause of action sufficient to survive a motion to dismiss, that plaintiffs' claims were not moot, and that the case should proceed to a review of the merits.

Hussein v State of New York, 81 AD3d 132, affirmed.

HEADNOTE

Appeal — Academic and Moot Questions — Challenge to School Funding System

In an action alleging that children in certain school districts were being deprived of the opportunity of a sound basic education, an order of the Appellate Division, which affirmed an order denying defendant's motion to dismiss the complaint, was affirmed since plaintiffs' claims were neither moot nor unripe for review.

APPEARANCES OF COUNSEL

Eric T. Schneiderman, Attorney General, Albany (*Denise A. Hartman*, *Barbara D. Underwood* and *Andrew D. Bing* of counsel), for appellant.

Divine, Markovits & Snyder, L.L.P., Albany (*Terence J. Devine* of counsel), and *The Biggerstaff Law Firm, L.L.P.*, Slingerlands (*Robert E. Biggerstaff* and *Laura K. Biggerstaff* of counsel), for respondents.

Richard E. Casagrande, Latham, and *Elizabeth R. Schuster* for New York State United Teachers, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs and the certified question should be answered in the negative.

Plaintiffs' claims are neither moot nor unripe for review. The merits of the controversy are not before us.

CIPARICK, J. (concurring). I fully agree with the majority's holding that plaintiffs' claims are neither moot nor unripe. I

write separately to emphasize that *Campaign for Fiscal Equity v State of New York* (86 NY2d 307 [1995] [*CFE I*]) is, and should remain, good law and that the parameters we set forth in that case and in *CFE II* (*Campaign for Fiscal Equity v State of New York*, 100 NY2d 893 [2003]) to define the content of a constitutionally-required “sound basic education” do not intrude into the policy-making functions of the other branches of government but rather constitute a proper exercise of our interpretative function.

“With full recognition and respect . . . for the distribution of powers in educational matters among the legislative, executive and judicial branches,” we have observed that “it is nevertheless the responsibility of the courts to adjudicate contentions that actions taken by the Legislature and the executive fail to conform to the mandates of the Constitutions which constrain the activities of all three branches” (*Board of Educ., Levittown Union Free School Dist. v Nyquist*, 57 NY2d 27, 39 [1982] [*Levittown*]). Indeed, though “[w]e have neither the authority, nor the ability, nor the will, to micromanage education financing . . . it is the province of the Judicial branch to define, and safeguard, rights provided by the New York State Constitution, and order redress for violation of them” (*CFE II*, 100 NY2d at 925; see also *Matter of Maron v Silver*, 14 NY3d 230, 263 [2010] [“whether the Legislature has met its constitutional obligations . . . is within the province of this Court”]).

Article XI, § 1 of the State Constitution, the Education Article, provides: “The legislature shall provide for the maintenance and support of a system of free common schools, wherein all the children of this state may be educated.” In *Levittown*, we held that the Education Article imposed a duty on the Legislature to provide all children in New York the opportunity of an “education,” a term that we interpreted “to connote a sound basic education” (57 NY2d at 48). We observed that “[w]hat appears to have been contemplated when the [E]ducation [A]rticle was adopted at the 1894 Constitutional Convention was a State-wide system assuring minimal acceptable facilities and services” (*id.* at 47).

In *CFE I*, noting “*Levittown*’s unambiguous acknowledgment of a constitutional floor with respect to educational adequacy” (86 NY2d at 315), we set out to further define “a sound basic education” in order that we may meaningfully measure the State’s efforts to meet its constitutional obligations. We determined that

“[s]uch an education should consist of the basic literacy, calculating, and verbal skills necessary to enable children to eventually function productively as civic participants capable of voting and serving on a jury. If the physical facilities and pedagogical services and resources made available under the present system are adequate to provide children with the opportunity to obtain these essential skills, the State will have satisfied its constitutional obligation” (*id.* at 316).

We set forth certain essentials, finding that

“[c]hildren are entitled to minimally adequate physical facilities and classrooms which provide enough light, space, heat, and air to permit children to learn. Children should have access to minimally adequate instrumentalities of learning such as desks, chairs, pencils, and reasonably current textbooks. Children are also entitled to minimally adequate teaching of reasonably up-to-date basic curricula such as reading, writing, mathematics, science, and social studies, by sufficient personnel adequately trained to teach those subject areas” (*id.* at 317).

In Judge Simons’ dissent in *CFE I*, he argued that “[i]t is for other branches of government, not the courts, to define what constitutes a sound basic education and, assuming the State has not defaulted on its duty to establish a State-wide system and provide financial support, to ensure that the opportunity to be educated is available to all” (*id.* at 333). Judge Simons expressed the view that the courts’ ability to assess the constitutionality of an education financing scheme should be curtailed once “the State has established a structure for the school system and provided adequate funding for it *as measured by the State’s resources*” (*id.* at 342 [emphasis added]).

In *CFE II*, we rejected the State’s argument that a sound basic education was achieved by the eighth or ninth grade (100 NY2d at 906) and held that children are entitled to “the opportunity for meaningful high school education, one which prepares them to function productively as civic participants” (*id.* at 908). We directed the State to determine the actual cost of a sound basic education and to ensure that schools receive the resources necessary to provide it (*see id.* at 930). Judge Read argued in dissent that we had created a constitutional standard that was “illusory,” lacking “any way to measure whether it has been (or may be) met” (*id.* at 948, 952).

In his concurrence, Judge Smith embraces the views of Judge Simons and Judge Read in their respective dissents and questions the continued viability of *CFE I* (see concurring op at 908), the alternative to that case's rule being, ostensibly, that the Legislature and Executive will assume the task of defining a "sound basic education" as it relates to the Education Article and fund it at a level they deem reasonable within budget limits (see *CFE I*, 86 NY2d at 342 [Simons, J., dissenting]). Judge Read's dissent here echoes similar sentiments, but goes further to say that because "gross and glaring inadequacy . . . cannot be said to exist in New York[']s education system]" given the State's high per pupil expenditures, the constitutional threshold for this Court's review of the other branches' education financing decisions has not been met (see dissenting op at 909 [internal quotation marks omitted]). Contrary to my colleagues in concurrence and dissent, I see no reason to depart from our decision in *CFE I* and, since claims such as plaintiffs' implicate the Education Article's protected rights, I am compelled to express my concerns about the potential consequences of disturbing that precedent.

If we declare that a sound basic education consists only of what the Legislature and Executive dictate, the scope of the State's constitutional duty under the Education Article and, conversely, the scope of the constitutional rights of our schoolchildren, is limited to what those branches say it is. Abandoning *CFE I*¹ would not only entrust the Legislature and Executive with the decidedly judicial task of interpreting the meaning of the Education Article but cast them in the role of being their own constitutional watchdogs. Though, under *Levittown*, we could continue to review claims of "gross and glaring inadequacy" (57 NY2d at 48), our inquiry would be superficial as the adequacy of the Legislature's and Executive's efforts would, in the first instance, be defined by those branches. Our system of separation of powers does not contemplate or permit such self-policing, nor does it allow us to abdicate our function as "the ultimate arbiters of our State constitution" (*Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14, 28 [2006]; see also *Cohen v State of New York*, 94 NY2d 1, 11 [1999]) simply because public funds are at stake. In short, parsing out what

1. Although the dissent "would accept the Attorney General's invitation [to] dismiss the complaint" without necessarily overruling the *CFE* line of cases (dissenting op at 911), declaring plaintiffs' claims nonjusticiable would effectively render *CFE I* and *CFE II* of, at best, dubious precedential value.

the Education Article actually requires, as we did in *CFE I* and *CFE II*, not only enables the Legislature and Executive to fulfill their constitutional mandate but ensures that we in the Judiciary do the same.

Thus far, *CFE I* has not created the kind of thicket of litigation the New Jersey courts have encountered in the decades the State's education financing scheme was declared unconstitutional (see *Robinson v Cahill*, 118 NJ Super 223, 287 A2d 187 [Law Div 1972], *mod* 62 NJ 473, 303 A2d 273 [1973]; *Education Law Ctr. ex rel. Abbott v Burke School Children v New Jersey Dept. of Educ.*, 2012 WL 1080867, 2012 NJ Super Unpub LEXIS 732 [App Div Apr. 3, 2012]). That it will has been the concern of the critics of *CFE I* and *CFE II* (see *CFE II*, 100 NY2d at 958 [Read, J., dissenting] [“(t)his dispute . . . is destined to last for decades, and . . . is virtually guaranteed to spawn similar lawsuits throughout the state”]; *Hussein v State of New York*, 81 AD3d 132, 134 [3d Dept 2011] [opining that, as a result of *CFE I*, there could be “civil actions commenced on behalf of students in every school district across the state”]). Even if a bevy of protracted claims arise, however, *CFE I* should not be compromised. Prudential concerns about judicial economy are both valid and necessary; however, they are no reason to close the courthouse doors to parents and children with viable constitutional claims. That the State may be violating its constitutional mandate on a grander scale, in many more localities and toward many more children, than originally anticipated does not drown out, by force of volume, the existence of the violation. As my colleague stated in dissent in *Bordeleau v State of New York* (18 NY3d 305 [2011]), “[u]nconstitutional acts do not become constitutional by virtue of repetition[] [or] custom” (*id.* at 318 [Pigott, J., dissenting]). Neither do valid legal claims become less actionable by virtue of the fact that they are shared by many. The potential breadth of the problem is cause for greater, not lesser, vigilance.

Moreover, the experience of New Hampshire provides its own cautionary tale of the consequences of leaving to the Legislature and Executive the task of defining a constitutionally adequate education, as *CFE I*'s critics would have us do. In 1993, the Supreme Court of New Hampshire held that the state's constitution “imposes a duty on the State to provide a constitutionally adequate education to every educable child,” but declared that it was for the Legislature and the Executive to “define the parameters of the education mandated by the constitution” (see

Claremont School Dist. v Governor, 138 NH 183, 184, 192, 635 A2d 1375, 1376, 1381 [1993]). By 1997, when neither branch had done so, the court again made clear that the State was duty bound to, among other things, define the content of a constitutionally adequate education, fund it and create a system of accountability to ensure its delivery (see *Claremont School Dist. v Governor*, 142 NH 462, 477, 703 A2d 1353, 1360-1361 [1997]). Again, the court noted that it was “not appointed to establish educational policy, nor to determine the proper way to finance its implementation” (142 NH at 475, 703 A2d at 1360).² In 1998, the State sought a two-year extension to fulfill its constitutional mandate, which the court denied (see *Claremont School Dist. v Governor*, 143 NH 154, 157, 725 A2d 648, 650 [1998]). A year later, with still no definition in place but with legislation pending, the court denied as premature the plaintiffs’ request to assign a special master to define a constitutionally adequate education and to determine its cost, noting “once more . . . that it is neither [the court’s] task nor intent to manage the public school systems of the State” (*Claremont School Dist. v Governor*, 144 NH 210, 212, 744 A2d 1107, 1108-1109 [1999] [internal quotation marks and citation omitted]). By 2002, after accountability and financing legislation failed, the court held that “the State’s duty to provide a constitutionally adequate education includes accountability,” which “means that the State must provide a definition of a constitutionally adequate education, the definition must have standards, and the standards must be subject to meaningful application” (*Claremont School Dist. v Governor*, 147 NH 499, 508-509, 794 A2d 744, 751 [2002]). Between 2002 and 2008 “the only action taken by the legislature to fulfill its acknowledged obligation . . . was the establishment . . . of a joint legislative oversight committee on accountability” (*Londonderry School Dist. SAU #12 v State*, 157 NH 734, 739, 958 A2d 930, 934 [2008, Broderick, Ch. J., dissenting] [internal quotation marks omitted]).³

What we have learned from New Hampshire’s education financing litigation is that had we adopted the dissenting

2. The court did cite seven criteria as “general, aspirational guidelines for defining educational adequacy” (142 NH at 474, 703 A2d at 1359).

3. In addition to the five *Claremont* cases already mentioned, the Supreme Court of New Hampshire issued three advisory opinions at the request of the Legislature regarding the constitutionality of various aspects of the State’s education financing efforts (see *Opinion of the Justices [Reformed Pub. School Fin. Sys.]*, 145 NH 474, 765 A2d 673 [2000]; *Opinion of the Justices [Tax Plan Referendum]*, 143 NH 429, 725 A2d 1082 [1999]; *Opinion of the Justices [School Fin.]*, 142 NH 892, 712 A2d 1080 [1998]).

Judge's proposed rule in *CFE I* we would not necessarily have avoided litigation and, in fact, may have produced more. Though one can only speculate, it is quite possible that had we elected not to provide qualitative standards by which to understand what is meant by a "sound basic education," we may have found it necessary to do so now, 17 years after *CFE I*. In *Londonderry*, former Chief Justice Broderick, dissenting from the majority's decision to dismiss the most recent education financing claims as moot,⁴ recounted the history of the *Claremont* cases and observed that the Supreme Court of New Hampshire, "for the past fifteen years, ha[d] repeatedly, respectfully and appropriately deferred to the political branches to resolve the critical issues the numerous school funding decisions have identified" (157 NH at 740, 958 A2d at 935), but to no avail. Noting that the State had still not met its obligation, the Chief Justice aptly concluded that "[d]eference . . . has its limits. Constitutional rights must be enforced or they cease to be rights" (*id.*).

Indeed, there *is* "a point at which the education available is so palpably inadequate that the courts must intervene, determine the extent of the inadequacy and order the problem to be solved at State expense" (*CFE I*, 86 NY2d at 342 [Simons, J., dissenting]). Without such outer bounds, it is the Education Article's mandate of a State-provided free public education that becomes "illusory" (*CFE II*, 100 NY2d at 948 [Read, J., dissenting]), not the template provided in *CFE I* and *CFE II* to flesh out the nature of that obligation. To be sure, "[i]t is the responsibility of the State to offer the opportunity of a sound basic education, and it is the responsibility of this Court to determine whether the State is fulfilling its responsibility to the plaintiffs" (*CFE II*, 100 NY2d at 940 [Smith, G.B., J., concurring]). Thus, while plaintiffs face the "formidable burden of proof imposed on one who attacks the budget plan" (*CFE III*, 8 NY3d 14, 29 [2006] [internal quotation marks omitted]), and the trial court may very well determine that the State has met its

4. The majority in *Londonderry* dismissed the petitioners' declaratory judgment action challenging the constitutionality of the statute previously governing education funding, because intervening legislation had superseded the challenged bill; therefore, the contested bill was no longer in effect (*see* 157 NH at 736, 958 A2d at 932). As the substitute legislation had neither been "challenged by the petitioners or subjected to a factual inquiry before the trial court," the case was dismissed as moot (*id.*). Here, by contrast, chapter 57 of the Laws of 2007, the legislation that the State claims renders plaintiffs' action moot, is precisely the legislation that plaintiffs' second amended complaint alleges was insufficient to provide a sound basic education to the children in plaintiffs' districts.

constitutional obligations through the enactment of the 2007 Foundation Aid reforms, the Court today reaches the correct result in allowing plaintiffs' claims to move forward.

SMITH, J. (concurring). I concur on constraint of *Campaign for Fiscal Equity v State of New York* (86 NY2d 307 [1995] [*CFE I*]).

This case, like *CFE I*, is based on allegations that the State is not adequately funding certain of its public schools, and thus is violating the Education Clause of the State Constitution (art XI, § 1: "The legislature shall provide for the maintenance and support of a system of free common schools, wherein all the children of this state may be educated"). The Appellate Division, while believing itself bound to uphold the complaint, expressed its doubt that such cases should be in the courts. The Appellate Division said:

"Though we are loathe to enmesh the courts in a subject that primarily involves state fiscal policy and social policy concerns, rather than strictly legal issues, the Court of Appeals decision in *Campaign for Fiscal Equity v State of New York* (86 NY2d 307 [1995]) compels us to affirm. Courts must act with restraint and should avoid interfering with matters that generally fall within the province of the Executive and Legislature, so as to preserve the separation of powers. The Court of Appeals has expressed those concerns, yet determined that it would allow students and parents to sue defendant over school funding—a subject that not only has legal implications, but intimately intertwines them with budgetary issues and public policy choices (*see Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d at 28; *Campaign for Fiscal Equity v State of New York*, 100 NY2d at 925; *see also Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d at 34-35 [Kaye, Ch. J., concurring in part and dissenting in part]). Judge Rosenblatt's concurrence in the latest *CFE* decision noted that those cases dealt only with school funding in the City of New York, and that a statewide approach to this problem is best left to the Executive and Legislature (*see Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d at 33 [Rosenblatt, J., concurring]). While we wholeheartedly agree, and believe that those branches of

government should be dealing with this issue without undue interference—potentially rising to the level of civil actions commenced on behalf of students in every school district across the state—we are constrained to hold that the present action must be permitted to proceed according to the course charted by the Court of Appeals.” (*Hussein v State of New York*, 81 AD3d 132, 134 [3d Dept 2011].)

Judge Simons expressed similar views 17 years ago in his *CFE I* dissent:

“It is for other branches of government, not the courts, to define what constitutes a sound basic education and, assuming the State has not defaulted on its duty to establish a State-wide system and provide financial support, to ensure that the opportunity to be educated is available to all.” (86 NY2d at 333.)

I agree with the Appellate Division here, with Judge Simons, and with Judge Read’s dissent in *Campaign for Fiscal Equity v State of New York* (100 NY2d 893, 950 [2003] [*CFE II*]), where she pointed out “[t]he risks inherent in” *CFE I*’s “novel approach to constitutional adjudication.” But *CFE I* decided that lawsuits like this one can be brought.

If *CFE I* is accepted as good law, the State’s arguments for dismissing this complaint cannot succeed. Indeed, those arguments seem to me very weak. The State’s brief contains two points, the first saying that in light of recent legislation relating to school funding it would be “imprudent” for the courts to entertain the case, and the second saying the case is barred by “traditional principles of mootness and ripeness.” I know of no warrant for rejecting a claim to vindicate a recognized constitutional right on the ground of imprudence. And the case is obviously neither moot nor unripe. A moot case is one in which nothing turns on the result—but if plaintiffs prevail here, large sums of taxpayer money would be directed to the public schools of their districts. And if plaintiffs, the parents of children in those public schools, are constitutionally entitled to have this money spent on their children’s educations, they are entitled to it now. They would be rightly dismayed to learn that their claims will not ripen for several years, until after their children have graduated.

I can only understand the State’s arguments here as implicitly inviting us to abandon *CFE I*. Despite the views I have

expressed, I do not believe we should now accept the invitation. The worst fears of Judges Simons and Read, as expressed in their *CFE I* and *CFE II* dissents, have not yet come true, and perhaps never will. In *CFE III* (*Campaign for Fiscal Equity, Inc. v State of New York*, 8 NY3d 14 [2006]), we adhered to *CFE I* and *CFE II*, but made clear that in applying those precedents we will show great deference to executive and legislative choices as to how much money to put into public schools, and how to allocate that money. A similar trend has appeared in some other states in which school funding issues have been constitutionalized: those states have not repudiated their earlier decisions, but have interpreted them to leave broad scope for choices made by the executive and legislative branches (see *Hancock v Commissioner of Educ.*, 443 Mass 428, 822 NE2d 1134 [2005]; *Montoy v State*, 282 Kan 9, 138 P3d 755 [2006]; *Londonderry School Dist. SAU #12 v State*, 157 NH 734, 958 A2d 930 [2008]).

Thus it is not clear to me that we cannot live with the *CFE I* decision. I must add that it is also not clear to me that we can. I take heart, however, from the fact that we have so far not set out upon a road like that traveled by New Jersey, where school funding litigation is now in its fifth decade (see *Robinson v Cahill*, 118 NJ Super 223, 287 A2d 187 [Law Div 1972], *mod* 62 NJ 473, 303 A2d 273 [1973]; *Education Law Ctr. ex rel. Abbott v Burke School Children v New Jersey Dept. of Educ.*, 2012 WL 1080867, 2012 NJ Super Unpub LEXIS 732 [App Div Apr. 3, 2012]).

READ, J. (dissenting). Granted, this appeal may not be conventionally moot or unripe. But then, plaintiffs' claims are not justiciable in the orthodox sense either (see *Board of Educ., Levittown Union Free School Dist. v Nyquist*, 57 NY2d 27, 48 [1982] [indicating the constitutional standard would be unmet only in the case "possibly, of gross and glaring inadequacy," which cannot be said to exist in New York where "the average per pupil expenditure exceeds that in all other States but two"]¹; *Campaign for Fiscal Equity v State of New York*, 86 NY2d 307,

1. New York has maintained its high-ranking position. According to the National Education Association, the U.S. average per student expenditure for public elementary and secondary schools in 2009-2010 fall enrollment was \$10,586. Among the states, New York ranked second in per pupil expenditures (\$16,922), barely behind New Jersey (\$16,967) (National Education Association, *Rankings and Estimates: Rankings of the States 2010 and Estimates of School Statistics 2011* [Dec. 2010], at x, available at http://www.nea.org/assets/docs/HE/NEA_Rankings_and_Estimates010711.pdf [accessed June 19, 2012]). Total expenditures for public elementary and secondary schools in New York

341-342 [1995, Simons, J., dissenting] [interpreting *Levittown* to hold that “(t)he courts . . . were not to interfere in constitutional responsibilities assigned to other branches of government unless the executive and legislative branches had, in effect, defaulted on their duty to establish a State-wide system of education and fund it”] [*CFE I*]). This is why adequacy litigation is so difficult to deal with once the judiciary slips the traces of justiciability and lets these lawsuits go forward—as we did in *CFE I* and *Campaign for Fiscal Equity v State of New York* (100 NY2d 893 [2003] [*CFE II*])—despite the serious separation-of-powers issues they pose.²

The adequacy litigation in New York differed from that in most states, as the *CFE* plaintiffs challenged only the level of state funding of the New York City School District, not the adequacy of education funding on a statewide basis. Nonetheless, the Governor proposed and the Legislature adopted a statewide plan—chapter 57 of the Laws of 2007—in response to the *CFE* litigation and, in particular, our decision in *Campaign for Fiscal Equity, Inc. v State of New York* (8 NY3d 14 [2006] [*CFE III*]). Indeed, as the Attorney General points out, the Legislature in chapter 57 essentially adopted the Zarb Commission’s methodology and conclusions—which we endorsed as reasonable in *CFE III*—to create the formula to determine each district’s share of state school aid, and then significantly increased the amount of recommended funding.

In other states where, as in New York, substantial statewide education reforms have been put in place in response to judicial determinations of inadequacy, courts have declined to endorse follow-on adequacy challenges (see e.g. *Hancock v Commissioner*

increased from \$25.6 billion (\$10.2 billion in state funds) in fiscal year 1995-1996 (the year *CFE I* was decided) to \$55.7 billion (\$23.4 billion in state funds) in fiscal year 2009-2010 (New York State Education Department, Education Statistics for New York State [Table 10: Total Expenditures and State Funds for Public Elementary and Secondary Schools], available at <http://www.p12.nysed.gov/irs/statistics/public/2012/TABLE10.pdf> [accessed June 19, 2012]).

2. This is the first adequacy case to survive a motion to dismiss since *CFE I* (see *New York Civ. Liberties Union v State of New York*, 4 NY3d 175, 182 [2005] [“because school districts, not individual schools, are the local units responsible for receiving and using state funding, and the State is responsible for providing sufficient funding to school districts, a claim under the Education Article requires that a district-wide failure be pleaded”]; *New York State Assn. of Small City School Dists., Inc. v State of New York*, 42 AD3d 648 [3d Dept 2007] [dismissing complaint for failure to allege district-wide failure for any particular school district]). These two cases, involving many of the same interests as this one, apparently served as something of a dress rehearsal.

of Educ., 443 Mass 428, 822 NE2d 1134 [2005 plurality]; *Londonderry School Dist. SAU #12 v State*, 157 NH 734, 958 A2d 930 [2008]; *Montoy v State*, 282 Kan 9, 138 P3d 755 [2006]; see also Dayton, Dupre and Houck, *Brother, Can You Spare a Dime? Contemplating the Future of School Funding Litigation in Tough Economic Times*, 258 Educ L Rep 937 [Sept. 30, 2010] [summarizing the trend in recent adequacy cases toward deference to legislators, who are constitutionally required to balance state budgets annually]). Underlying these decisions is a forbearance seemingly born of heightened separation-of-powers sensitivities where the political branches have engaged in good-faith education reforms, given that the constitutional standards in this area are ambiguous, the solutions are subjective and the results are uncertain. Other state courts in recent years have dismissed new adequacy claims outright, expressing reluctance to risk entanglement with the prerogatives of the elected branches (see *Bonner v Daniels*, 907 NE2d 516, 522 [Ind 2009]; *Oklahoma Educ. Assn. v State ex rel. Oklahoma Legislature*, 158 P3d 1058, 1066 [Okla 2007]; *Nebraska Coalition for Educ. Equity & Adequacy [Coalition] v Heineman*, 273 Neb 531, 557, 731 NW2d 164, 183 [2007]).

The Attorney General asks us to dismiss plaintiffs' complaint, but does not suggest that we overrule the *CFE* line of cases. Rather, he asks us to emulate sister state courts by, in effect, reverting to *Levittown's* more modest conception of justiciability in light of the passage of chapter 57, which signaled the political branches' serious engagement with issues of education funding, costs and reform. In fact, after this case was argued Governor Cuomo announced formation of a blue-ribbon commission with a wide-ranging charter to examine the State's K-12 education system, specifically including the problems facing high-need urban school districts (see Executive Order [Cuomo] No. 44 [9 NYCRR 8.44] [dated Apr. 13, 2012]).

I would accept the Attorney General's invitation and dismiss the complaint. Plaintiffs seek increased state funding on the theory that more money necessarily equals better student outcomes. They criticize the education aid formula prior to 2007, as it was applied to their small city school districts, but most of their ire is directed at chapter 57. In their view, the 2007 reforms assigned too humble a piece of New York's school aid pie to their districts. Thus, this lawsuit, as is invariably the case in adequacy litigation, implicates a host of public policy questions. First and foremost, what exactly needs to be done to

improve schools and student performance—especially, to close the achievement gap—and what is the price tag for these necessary measures, once settled upon? Given the extensive and continuing debate prompted by the publication of *A Nation at Risk* nearly 30 years ago,³ the answers to these fundamental questions remain elusive. Additional, equally subjective and policy-laden fiscal questions inhere in this lawsuit. Just for starters, what size budget do the State’s revenues support in a particular year? how much of this revenue should the Legislature appropriate to support public education, as opposed to Medicaid or public assistance or other government programs and operations? how much should the public be taxed to support public education? how should the financial burden be shared by localities and the State?

The “stubborn thing[]”⁴ at the heart of this case is that the way in which these public policy questions are resolved by the Governor and the Legislature will dictate how much school aid plaintiffs’ districts receive year to year in the future. We do plaintiffs no favor by keeping alive the illusion they can successfully end-run this fact via the courts.

Accordingly, I respectfully dissent.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, SMITH, PIGOTT and JONES concur in memorandum; Judge CIPARICK concurs in a separate opinion; Judge SMITH concurs in a separate opinion in which Judge PIGOTT concurs; Judge READ dissents in another opinion.

Order affirmed, etc.

[974 NE2d 661, 950 NYS2d 615]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS MIRANDA, Appellant.

Decided June 26, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

3. National Commission on Excellence in Education, *A Nation at Risk: The Imperative for Educational Reform* (1983).

4. “Facts are stubborn things; and whatever may be our wishes, our inclinations, or the dictates of our passion, they cannot alter the state of facts and evidence” (John Adams, Argument in Defense of the Soldiers in the Boston Massacre Trials [Dec. 1770]).

Court in the First Judicial Department, entered August 24, 2010. The Appellate Division (1) reversed, on the law and the facts, an order of the Supreme Court, Bronx County (Michael A. Gross, J.), which had granted a motion by defendant to suppress evidence, (2) denied the motion, and (3) remanded the matter for further proceedings on the accusatory instrument.

People v Miranda, 76 AD3d 466, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Seizure of Visible Knife

A police officer who observed a knife on defendant's person while issuing him a summons for trespass and questioning him about his presence in a park after hours, was entitled to seize the knife and make an arrest when it turned out to be an unlawful gravity knife. Where a knife (even if not necessarily an illegal one) becomes plainly visible to a police officer in the course of an authorized common-law inquiry due to the suspect's own movement and no intrusive conduct on the officer's part, the officer is permitted to seize it, so long as the ensuing intrusion is minimal and consonant with the respect and privacy of the individual. Since the officer was already engaged in a lawful encounter with defendant prior to spotting the knife, he was not required to have a reasonable suspicion that the knife he observed was a gravity knife before he took it.

APPEARANCES OF COUNSEL

Bronx Defenders, Bronx (*Kathryn E. Miller* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Stanley R. Kaplan* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

At 11:30 P.M. on October 5, 2006, in Soundview Park in the Bronx, a New York City police officer observed a knife on defendant's person, and seized it, while he was issuing defendant a summons for trespass* and questioning him about his presence in the park after hours. The knife turned out to be a gravity

* "A person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises" (Penal Law § 140.05). "A person 'enters or remains unlawfully' in or upon premises when he is not licensed or privileged to do so" (Penal Law § 140.00 [5]). Trespass is a violation (Penal Law § 140.05). Where a police officer has probable cause to believe that a person has committed a violation, the decision to issue a summons as opposed to making an arrest is within the officer's discretion (*see* CPL 150.20 [1]; *see also* *People v Lewis*, 50 AD3d 595 [1st Dept 2008]; *People v Soto*, 297 AD2d 581 [1st Dept 2002]).

knife, and defendant was charged with criminal possession of a weapon in the fourth degree (Penal Law § 265.01 [1]). Defendant moved to suppress the knife as the fruit of an unlawful search and seizure. Supreme Court granted the motion on the ground that, at the time the officer took the knife, he lacked probable cause to believe that defendant had committed a crime. The Appellate Division reversed, finding that the officer was entitled to seize the knife when he saw it (76 AD3d 466 [2010]).

We agree with the Appellate Division. Where a knife (even if not necessarily an illegal one) becomes plainly visible to a police officer in the course of an authorized common-law inquiry due to the suspect's own movement and no intrusive conduct on the officer's part, the officer is permitted to seize it, so long as the ensuing intrusion is "minimal" and "consonant with the respect and privacy of the individual" (*People v De Bour*, 40 NY2d 210, 221 [1976]). Here, the officer observed that defendant was armed while questioning him late at night in a high crime area after determining that he was trespassing; under these circumstances, it was reasonable for the officer to retrieve the knife and make an arrest when it turned out to be unlawful (*see De Bour*, 40 NY2d at 220-221; *see also People v Wyatt*, 14 AD3d 441 [1st Dept 2005], *lv denied* 4 NY3d 837 [2005]).

Our recent decisions in *People v Brannon* and *People v Fernandez* (16 NY3d 596 [2011]) are not controlling. The officer here, unlike the officers in those cases, was already engaged in a lawful encounter with defendant prior to spotting the knife, and was thus not required to have a reasonable suspicion that the knife he observed was a gravity knife before he took it.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

[973 NE2d 179, 950 NYS2d 84]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANNY MARTIN, Appellant.

Decided June 26, 2012

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an

order of that Court, entered October 11, 2011. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Laura A. Ward, J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the fourth degree.

Supreme Court determined that the police officer's initial approach to defendant was proper and that there was probable cause for the arrest. On appeal, the Appellate Division found that, initially, the police officer's attention was drawn to defendant when the officer observed defendant's left hand and another man's right hand "touching one another" for between 10 and 30 seconds on more than one occasion, leading the officer, based on his training and experience, to believe that a drug transaction was taking place. Moreover, by the time the officer was within 9 to 10 feet of defendant and the other man, the officer observed a plastic bag containing a white substance "peeking out" from defendant's closed right fist. The Appellate Division concluded that the officer's actions were justified at the inception, that the ensuing events justified the extent of the intrusion and that therefore the officer had probable cause to arrest defendant for drug possession.

People v Martin, 88 AD3d 473, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure — Police Officer's Founded Suspicion to Approach Defendant

In a drug prosecution, the issues whether a police officer had a founded suspicion to approach defendant or probable cause to arrest him involved mixed questions of law and fact which were beyond review in the Court of Appeals since the determination of those issues below was supported by the record.

APPEARANCES OF COUNSEL

Willkie Farr & Gallagher LLP, New York City (*Mei Lin Kwan-Gett* and *James F. Caputo* of counsel), and *Legal Aid Society of New York* (*Denise Fabiano* and *Steven Banks* of counsel) for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*Jared Wolkowitz* and *Sheila O'Shea* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed (*see People v De Bour*, 40 NY2d 210 [1976]). Whether Detective Barnes

had a founded suspicion to approach defendant, or probable cause to arrest him involve mixed questions of law and fact, beyond our review if the determination is supported by the record. Because such record evidence exists here, the issues are beyond further review by this Court.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

BRENDA ANDREWS et al., Appellants, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted April 30, 2012; decided June 26, 2012

Reported below, 90 AD3d 962.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JEFFREY BAKER, Respondent, v POUGHKEEPSIE CITY SCHOOL DISTRICT et al., Appellants.

Submitted April 30, 2012; decided June 26, 2012

Reported below, 73 AD3d 916.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 714 (2012)].

ROBERT A. DENENBERG, Individually and as Administrator of ROBERT A. DENENBERG, a Sole Proprietorship Defined Benefit Pension Plan, Appellant, v WARREN ROSEN et al., Respondents, and JOHN REPETTI et al., Appellants. (And Other Actions.)

Submitted April 23, 2012; decided June 26, 2012

Reported below, 93 AD3d 488.

Motions, insofar as they seek leave to appeal against defendants Bankers Life of New York, Kenneth R. Hartstein, ECI Pension Services, LLC, Economic Concepts Inc., Richard C. Smith, and Bryan Cave, LLP, denied; motions, insofar as they seek

leave to appeal against other parties, dismissed upon the ground that, as to such other parties, the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ANGEL DIAZ, Appellant, v TAX APPEALS TRIBUNAL OF THE STATE OF NEW YORK et al., Respondents.

Decided June 26, 2012

Reported below, 2012 NY Slip Op 66841(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

EASTSIDE EXHIBITION CORP., Appellant, v 210 EAST 86TH STREET CORP., Respondent.

Submitted April 9, 2012; decided June 26, 2012

Reported below, 79 AD3d 417.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 617 (2012)].

In the Matter of A. DENNIS GARDNER, Respondent, v COXSACKIE-ATHENS CENTRAL SCHOOL DISTRICT BOARD OF EDUCATION, Appellant.

Submitted April 30, 2012; decided June 26, 2012

Reported below, 92 AD3d 1093.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not a nonfinal order of the type provided for in CPLR 5602 (a) (2).

HUDSON VALLEY FEDERAL CREDIT UNION, Appellant, v NEW YORK
STATE DEPARTMENT OF TAXATION AND FINANCE et al., Re-
spondents.

Submitted June 4, 2012; decided June 26, 2012

Reported below, 85 AD3d 415.

Motion by American Bankers Association et al. for leave to
file a brief amici curiae on the appeal herein granted and the
proposed brief is accepted as filed.

Judge SMITH taking no part.

KATHRYN JORDAN, Appellant, v BATES ADVERTISING HOLDINGS,
INC., Formerly Known as AC & R ADVERTISING, INC., Re-
spondent.

Submitted April 30, 2012; decided June 26, 2012

Reported below, 2011 NY Slip Op 88663(U).

Motion for reargument of motion for leave to appeal denied
[see 18 NY3d 911 (2012)].

Chief Judge LIPPMAN taking no part.

HOWARD KAGAN, Appellant, v HMC-NEW YORK, INC., et al.,
Respondents.

Decided June 26, 2012

Reported below, 94 AD3d 67.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that the orders appealed from do not
finally determine the action within the meaning of the Consti-
tution.

JUDITH KLEIN, Appellant, v NEW YORK CITY ADMINISTRATION
FOR CHILDREN'S SERVICES, Respondent.

Submitted March 26, 2012; decided June 26, 2012

Reported below, 84 AD3d 689.

Motion for reargument etc. denied [see 18 NY3d 806 (2012)].

KOLEL DAMSEK ELIEZER, INC., Respondent, v VICTOR SCHLESINGER et al., Appellants, et al., Defendants.

Submitted May 23, 2012; decided June 26, 2012

Reported below, 90 AD3d 851.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of MARCUS MUNGO, Appellant, v NORMAN BEZIO, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Decided June 26, 2012

Reported below, 93 AD3d 1057.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LOUIS LEDDICK, Appellant.

Submitted June 18, 2012; decided June 26, 2012

Reported below, 89 AD3d 1558.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MIGUEL MEJIAS, Appellant.

Submitted June 18, 2012; decided June 26, 2012

Reported below, 86 AD3d 429.

Motion for assignment of counsel granted and John R. Lewis, Esq., 36 Hemlock Drive, Sleepy Hollow, New York 10591 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM MONROE, Appellant.

Submitted June 18, 2012; decided June 26, 2012

Reported below, 89 AD3d 429.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM MORRISON, Appellant.

Submitted June 4, 2012; decided June 26, 2012

Reported below, 90 AD3d 1554.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE PRESCOTT, Appellant.

Submitted June 11, 2012; decided June 26, 2012

Reported below, 87 AD3d 1413.

Motion for assignment of counsel granted and Thomas F. Gleason, Esq., care of Gleason, Dunn, Walsh & O'Shea, Esqs., 40 Beaver Street, Albany, New York 12207 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HILBERT STANLEY, Appellant.

Submitted June 4, 2012; decided June 26, 2012

Reported below, 92 AD3d 176.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DER-
RON STEPHENS, Appellant.

Submitted June 18, 2012; decided June 26, 2012

Reported below, 2011 NY Slip Op 79850(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

In the Matter of STATE OF NEW YORK, Respondent, v RICHARD
R., Appellant.

Decided June 26, 2012

Reported below, 94 AD3d 577.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

UNITED STATES FIDELITY & GUARANTY COMPANY et al., Respon-
dents, v AMERICAN RE-INSURANCE COMPANY et al., Appel-
lants, et al., Defendants.

Submitted June 18, 2012; decided June 26, 2012

Reported below, 93 AD3d 14.

Motion by Reinsurance Association of America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

In the Matter of JAZMINE WEISMAN et al., Appellants, v NEW
YORK CITY HOUSING AUTHORITY, Respondent.

Submitted April 30, 2012; decided June 26, 2012

Reported below, 91 AD3d 543.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of JAZMINE WEISMAN et al., Appellants, v New
YORK CITY HOUSING AUTHORITY, Respondent.

Submitted May 14, 2012; decided June 26, 2012

Reported below, 91 AD3d 543.

Motion for a stay dismissed as academic.

[973 NE2d 1277, 950 NYS2d 503]

In the Matter of CHINESE STAFF AND WORKERS' ASSOCIATION et
al., Appellants, v AMANDA M. BURDEN, as Director of the
New York City Department of City Planning, et al.,
Respondents.

Argued May 30, 2012; decided June 27, 2012

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 8, 2011. The Appellate Division, with two Justices dissenting, affirmed an order and judgment (one paper) of the Supreme Court, New York County (Michael D. Stallman, J.; op 27 Misc 3d 1219[A], 2010 NY Slip Op 50804[U] [2010]), entered in a proceeding pursuant to CPLR article 78, which had denied the petition to annul a determination of respondent New York City Department of City Planning that a proposed rezoning of a neighborhood in Brooklyn would not have a significant environmental impact, and dismissed the proceeding.

Matter of Chinese Staff & Workers' Assn. v Burden, 88 AD3d 425, affirmed.

HEADNOTE

**Environmental Conservation — Environmental Quality Review —
Rezoning — Negative Declaration**

In a proceeding challenging the proposed rezoning of a predominantly residential neighborhood, respondent Department of City Planning, as lead agency, neither abused its discretion nor was arbitrary or capricious when it issued a negative declaration determining that the proposed rezoning would have no significant adverse effect on the environment. In its environmental assessment statement, respondent identified the relevant areas of environmental concern, took a hard look at them and made a reasoned elaboration of the basis for its determination.

APPEARANCES OF COUNSEL

South Brooklyn Legal Services, Brooklyn (*Rachel Hannaford* and *John C. Gray* of counsel), for Chinese Staff and Workers' Association, appellant.

Asian American Legal Defense and Education Fund, New York City (*Bethany Y. Li* of counsel), for Church of God of Brooklyn and others, appellants.

Michael A. Cardozo, Corporation Counsel, New York City (*Elizabeth S. Natrella, Leonard Koerner, Carrie Noteboom* and *Haley Stein* of counsel), for respondents.

Natural Resources Defense Council, Inc., New York City (*Mitchell S. Bernard, Nancy S. Marks* and *John D. Wood* of counsel), for Natural Resources Defense Council and others, amici curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The subject of this appeal concerns a rezoning proposal for Sunset Park, a predominantly residential neighborhood in Brooklyn. Following public hearings, the Department of City Planning (DCP), the lead agency here, prepared an environmental assessment statement (EAS) and issued a negative declaration, concluding that the proposed rezoning would not have an adverse impact on the environment. Petitioners Chinese Staff and Workers' Association et al. commenced this CPLR article 78 proceeding, seeking to annul the negative declaration on the ground that DCP's environmental review of the proposed rezoning was not in compliance with the New York State Environmental Quality Review Act (SEQRA) (ECL 8-0101 *et seq.*; 6 NYCRR 617.1 *et seq.*) and the City Environmental Quality Review (CEQR) rules (43 RCNY 6-01 *et seq.*; 62 RCNY 5-01 *et seq.*). Supreme Court denied the petition to annul DCP's determination and dismissed the proceeding (27 Misc 3d 1219[A], 2010 NY Slip Op 50804[U] [2010]). The Appellate Division, with two Justices dissenting, affirmed (*Matter of Chinese Staff & Workers' Assn. v Burden*, 88 AD3d 425 [1st Dept 2011]). Petitioners appeal as of right pursuant to CPLR 5601 (a).

It is well settled that SEQRA "is a legislative attempt to ensure that state and local agencies consider the environmental impact of their proposed actions" (*Matter of Spitzer v Farrell*, 100 NY2d 186, 190 [2003]). An agency's "initial determination . . . under SEQRA and CEQR is whether an EIS [environmental impact statement] is required, which in turn depends on whether an action may or will not have a significant effect on the environment" (*Chinese Staff & Workers Assn. v City of New*

York, 68 NY2d 359, 364 [1986]). “In making its initial determination, the agency will study many of the same concerns that must be assessed in an EIS, including both long- and short-term environmental effects” (*Farrell*, 100 NY2d at 190). Where an agency determines that an EIS is not required, it will issue a “negative declaration” (*id.*). “Although the threshold triggering an EIS is relatively low, a negative declaration is properly issued when the agency has made a thorough investigation of the problems involved and reasonably exercised its discretion” (*id.* [internal quotation marks and brackets omitted]).

“Judicial review of a lead agency’s SEQRA determination is limited to whether the determination was made in accordance with lawful procedure and whether, substantively, the determination ‘was affected by an error of law or was arbitrary and capricious or an abuse of discretion’ ” (*Akpan v Koch*, 75 NY2d 561, 570 [1990], quoting CPLR 7803 [3]). “In assessing an agency’s compliance with the substantive mandates of the statute, the courts must ‘review the record to determine whether the agency identified the relevant areas of environmental concern, took a “hard look” at them, and made a “reasoned elaboration” of the basis for its determination’ ” (*id.*, quoting *Matter of Jackson v New York State Urban Dev. Corp.*, 67 NY2d 400, 417 [1986]).

Applying this standard here, we conclude that the DCP neither abused its discretion nor was arbitrary or capricious when it issued a negative declaration determining that the proposed rezoning in this case would have no significant adverse effect on the environment. In its EAS, DCP identified the relevant areas of environmental concern, took a hard look at them and made a reasoned elaboration of the basis for its determination.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

[973 NE2d 1272, 950 NYS2d 498]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AMBER MARACLE, Appellant. (Appeal No. 1.)

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AMBER MARACLE, Appellant. (Appeal No. 2.)

Argued May 29, 2012; decided June 27, 2012

SUMMARY

APPEAL, in the first above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 10, 2011. The Appellate Division (1) dismissed an appeal from a judgment of the Supreme Court, Erie County (M. William Boller, J.), insofar as it imposed sentence on defendant's conviction of forgery in the second degree (four counts) and, (2) affirmed the same judgment insofar as it convicted defendant, upon her plea of guilty, of grand larceny in the second degree and forgery in the second degree (four counts).

APPEAL, in the second above-entitled action, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 10, 2011. The Appellate Division affirmed a resentence of the Supreme Court, Erie County (M. William Boller, J.), which had resented defendant upon her conviction of forgery in the second degree (four counts).

People v Maracle, 85 AD3d 1652, reversed.

People v Maracle, 85 AD3d 1654, reversed.

HEADNOTE

Crimes — Plea of Guilty — Forfeiture of Right to Raise Issues on Appeal — Harshness of Sentence

In a prosecution for forgery and grand larceny, the plea colloquy failed to establish that defendant knowingly and intelligently waived her right to appeal the severity of her sentence and, therefore, the matter was remitted to the Appellate Division so that it may review the harshness of that sentence in its interest of justice jurisdiction. During the plea colloquy defendant was advised she would be sentenced to probation if she were able to comply with the court's restitution condition, but upon her failure to meet the condition she was sentenced to a maximum term of imprisonment on each count of the indictment. The CPL clearly distinguishes between a conviction and a sentence and while it was evident that defendant waived her right to appeal her conviction, there was no indication in the record that defendant waived the right to

appeal the harshness of her sentence. Critically, during defendant's plea colloquy, the court did not explain that the appeal waiver would bar defendant from not only challenging the sentence she hoped to receive, but also any sentence the court would impose upon defendant's failure to make restitution. Accordingly, defendant did not knowingly and intelligently waive her right to appeal a sentence that had not yet been declared by the court.

APPEARANCES OF COUNSEL

Lipsitz Green Scime Cambria, LLP, Buffalo (*Timothy P. Murphy* of counsel), for appellant in the first and second above-entitled actions.

Frank A. Sedita, III, District Attorney, Buffalo (*Matthew B. Powers* and *Donna A. Milling* of counsel), for respondent in the first and second above-entitled actions.

OPINION OF THE COURT

MEMORANDUM.

The orders of the Appellate Division should be reversed, and the matter remitted to that Court for further proceedings consistent with this memorandum.

Defendant, a bookkeeper/receptionist for a fence installation business, was indicted on one count of grand larceny in the second degree (Penal Law § 155.40 [1]) and four counts of forgery in the second degree (Penal Law § 170.10 [1]) for stealing money from her employer. She was assigned counsel at her arraignment and entered a plea of not guilty to the charges. On April 20, 2009, a month after her arraignment, defendant, unemployed and pregnant (and mother of three), appeared and, upon counsel's advice, pleaded guilty to the entire indictment.

The court, prior to any presentence investigation, advised defendant that should she come up with one half of the restitution owed—\$23,000—by the time of sentencing, it would sentence her to five years' probation during which time she would be required to pay the remaining balance. She was further advised that if she failed to come up with the initial \$23,000, there would be no promise as to her sentence but she wouldn't be able to withdraw her *plea*. The court advised defendant that, by pleading guilty, she was "voluntarily waiving [her] right to appeal [her] conviction in this case" (emphasis supplied). The court scheduled sentencing for September 25, 2009.

In the interim, the probation department interviewed defendant and recommended, based upon its investigation, a period of probation rather than incarceration. In September 2009, defendant appeared at sentencing without having made any

restitution payments. Assigned counsel stated that defendant “knows . . . she’s going to prison . . . [and] understands that the Court’s commitment was contingent, that the contingency was not met, and that the only alternative is to put her in prison.” But at the earlier plea hearing the court had not stated that prison for defendant was a certainty if she failed to make any payments. Rather, defendant was simply told that if she “fail[ed] to comply with any of these conditions, especially the condition of paying one half restitution by the sentence date, that there will be no promise as to your sentence and you will not be able to withdraw your *plea*” (emphasis supplied). Thus, the sentencing court still had the option of imposing a sentence of probation, as recommended in the presentence investigation, with a restitution order. Instead, it (mistakenly) sentenced defendant to the maximum terms of 5 to 15 years for *four* counts of grand larceny in the second degree, and neglected to sentence her at all relative to the four counts of forgery. At the conclusion of sentencing, the court advised this defendant, who had presumably waived her right to appeal, that she had 30 days within which to file a notice of appeal.

Upon receiving notice from the Department of Corrections and Community Supervision that defendant had been sentenced improperly, the sentencing court recalled defendant from prison and sentenced defendant to the maximum term on each and every count of the indictment—5 to 15 years’ imprisonment on the sole grand larceny count and 2¹/₃ to 7 years’ imprisonment on the second degree forgery counts. The court, again, advised defendant that she had 30 days within which to file a notice of appeal.

In Appeal No. 1, the Appellate Division dismissed the appeal to that Court insofar as it pertained to sentencing on the conviction of four counts of forgery in the second degree and otherwise affirmed the judgment of conviction and sentence. In Appeal No. 2, the Appellate Division affirmed defendant’s resentencing on the forgery counts. The Appellate Division concluded that defendant’s waiver of her right to appeal encompassed her challenge to the severity of the sentence (85 AD3d 1652 [4th Dept 2011]; 85 AD3d 1654 [4th Dept 2011]). A Judge of this Court granted leave from both orders of the Appellate Division.

The plea colloquy fails to establish that defendant knowingly and intelligently waived her right to appeal the severity of her sentence, and, as a result, the matter should be remitted to the Appellate Division so that it may, should it so choose, exercise its interest of justice jurisdiction (*see* CPL 470.15 [6] [b]).

While it is evident that defendant waived her right to appeal her *conviction*, there is no indication in the record that defendant waived the right to appeal the harshness of her *sentence*. She seeks only the right to appeal the harshness of the sentence that went from one of probation to a maximum sentence of imprisonment on each count of the indictment because she failed to comply with a condition set by the court.

The CPL makes clear the distinction between a conviction and a sentence. A “conviction” is defined as “the entry of a plea of guilty to, or a verdict of guilty upon, an accusatory instrument other than a felony complaint, or to one or more counts of such instrument” (CPL 1.20 [13]). “Sentence” is defined as “the imposition and entry of sentence upon a conviction” (CPL 1.20 [14]). Both the “conviction” and the “sentence” comprise the “judgment,” which is “completed by the imposition and entry of the sentence” (CPL 1.20 [15]). As such, although defendant waived her right to appeal the conviction, she never expressly waived her right to appeal the sentence.

Unlike the situation in *People v Hidalgo* (91 NY2d 733, 737 [1998]), it is not clear that “the trial court engaged in a full and adequate colloquy, and [that] defendant expressly waived her right to appeal without limitation.” It is evident from the colloquy that the court, at most, apprised defendant that if she did not pay one half of the restitution by sentencing, there would be no promise as to her sentence and that she would not be able to withdraw her *plea*—something she is not seeking. There was no mention of defendant not being able to appeal the harshness of her sentence.

The most critical error that occurred here, and the one that distinguishes this case from *Hidalgo*, is that during the plea colloquy in this case, the court did not explain that the appeal waiver would bar defendant from not only challenging the sentence she hoped to receive, i.e., five years’ probation, but also any sentence that the court would impose in the event defendant failed to meet the court’s condition of paying \$23,000 by the date of sentencing. It cannot be said that, at the time of her plea colloquy five months before the imposition of sentence, defendant knowingly and intelligently waived her right to appeal a sentence that, at that point, had not yet been declared by the court. In that respect, this case is more analogous to our holding in *People v Johnson* (14 NY3d 483 [2010]).

In *Johnson*, the court promised the defendant that he would be adjudicated a youthful offender in exchange for his guilty

plea (and waiver of his right to appeal), but, after reviewing the presentence report, reconsidered that promise at sentencing, claiming that youthful offender status would have been “inappropriate” given the nature of the offense (*id.* at 485). The court denied defendant youthful offender treatment.* We held that because the trial court failed to apprise the defendant that it was reserving its approval of the plea agreement until it reviewed the presentencing report, the defendant could not have knowingly and intelligently waived his right to appeal the court’s determination to sentence the defendant as an adult (thereby subjecting defendant to a greater prison sentence). Thus, when the court announced that it was imposing a greater sentence than the defendant had expected, “it was incumbent on the court to elicit defendant’s continuing consent to waive his right to appeal,” although it was unnecessary for the court “to reallocate defendant on his decision to plead guilty” (*Johnson*, 14 NY3d at 487).

Indeed, it was not necessary here (as it was in *Johnson*) to offer plea withdrawal at all. She had conceded her guilt at the plea hearing, the court apprised her that she would not be able to withdraw her plea, and the record supports a conclusion that she knowingly and intelligently pleaded guilty to all counts of the indictment. Absent the knowing waiver of defendant’s right to appeal her sentence, the Appellate Division was deprived of its right to review the harshness of that sentence and therefore, the matter is remitted to that Court for that purpose.

We reject defendant’s ineffective assistance of counsel claim based on the record before us (*see People v Baldi*, 54 NY2d 137, 147 [1981]). To the extent that defendant seeks to advance such a claim or to challenge the voluntariness of her plea on matters outside the record, she may do so “by affidavit in support of a CPL 440.10 motion” (*People v Gravino*, 14 NY3d 546, 558 [2010]).

GRAFFEO, J. (dissenting). I respectfully dissent because the majority’s rationale conflicts with the rule established in *People v Hidalgo* (91 NY2d 733 [1998]) and there is no compelling justification for eroding that precedent.

The majority’s rationale is especially troubling since the plea colloquy in *Hidalgo* was similar to the colloquy in the case now

* The defendant rejected the court’s offer to withdraw his plea and proceed to trial.

before us. The defendant in *Hidalgo* was informed about the possible sentencing options under her plea agreement since no specific sentencing promise was made and she also waived the right to appeal her “conviction” (*id.* at 735):

“THE COURT: I understand as part of this plea arrangement you are giving up your right to appeal this *conviction*; is that correct? . . .

“DEFENDANT HIDALGO: Yes.

“THE COURT: Do you understand that means you cannot come back to this Court or to any court to set aside this *conviction* once I accept the plea? . . .

“DEFENDANT HIDALGO: Yes.

“THE COURT: Have you discussed that with your attorney? . . .

“DEFENDANT HIDALGO: Yes” (emphasis added).

Although we acknowledged that Hidalgo “did not explicitly waive her right to challenge her sentence during the plea colloquy” (*id.* at 737), we unanimously concluded that the “general unrestricted waiver encompassed her right to challenge her sentence as harsh and excessive,” despite the fact that she “did not know her specific sentence at the time of the waiver” and entry of a guilty plea (*id.*).

When defendant in this case pleaded guilty under an agreement that avoided a term of incarceration, she was similarly unaware of the particular sentence that would be imposed in the event that she failed to adhere to the terms of the plea bargain. Like Hidalgo, defendant expressly waived her right to appeal the “conviction,” without reference to the sentence—a colloquy functionally identical to the colloquy in *Hidalgo*:

“THE COURT: As a condition of this plea, the DA is requiring that you waive your right to appeal your *conviction* in this case. Have you had an opportunity to discuss this with your attorney?

“THE DEFENDANT: Yes.

“THE COURT: Do you understand that this case will be over and that it will go no further?

“THE DEFENDANT: Yes.

“THE COURT: Having this in mind, are you voluntarily waiving your right to appeal your *conviction* in this case?”

“THE DEFENDANT: Yes” (emphasis added).

Because defendant’s waiver of the right to appeal the “conviction” is indistinguishable from *Hidalgo*—more precisely, in both cases “[t]here was no mention of [the] defendant not being able to appeal the harshness of her sentence” (majority mem at 928)—pursuant to the rule set forth in *Hidalgo*, defendant’s waiver should be viewed as including her right to challenge the sentence as excessive. The Appellate Division therefore properly declined to consider the merits of defendant’s argument.

The only practical difference between this case and *Hidalgo* is that *Hidalgo* did not violate her plea bargain, but that fact played no part in the rationale we adopted. As a result of the majority’s attempt to reach a different result, the outcome is that appellate review of an excessive sentence claim will be barred if a defendant abides by the terms of a plea agreement but appellate review will be permitted if the defendant, like Maracle, breached the plea bargain. Why should a non-compliant defendant be rewarded because she did not adhere to the terms of the agreement while a defendant who complies with the terms of a conditional plea will be foreclosed from further judicial review of the sentence imposed?*

There is no reasoned basis for the majority to circumvent *Hidalgo*—it clearly held that a reference to “conviction” includes the sentence. That probably explains why defendant has not raised the argument that the majority adopts. I believe that *stare decisis* is an important principle premised on the rule of law (see e.g. *People v Taylor*, 9 NY3d 129, 148 [2007]; *People v Bing*, 76 NY2d 331, 338 [1990]; *People v Hobson*, 39 NY2d 479, 488 [1976]) and that altering this established precedent may be fraught with unanticipated consequences.

Indeed, undermining the validity of these waivers could have ramifications beyond the scope of this particular case. For years, judges accepting guilty pleas have justifiably relied on *Hidalgo*’s

* *People v Johnson* (14 NY3d 483 [2010]), cited by the majority, is not analogous to this case. The waiver of appeal in *Johnson* was elicited in exchange for a promise of youthful offender treatment. We held that the court’s withdrawal of the promise nullified the waiver as a simple matter of *quid pro quo* (see *id.* at 487). Here, in stark contrast, the court strictly abided by the terms of the plea agreement and did not contradict any condition attached to the appellate waiver.

unequivocal declaration that a waiver of appeal from a “conviction” encompasses a challenge to the harshness of a sentence that the defendant was informed about before consenting to the waiver. Consequently, waivers that refer to the “conviction” alone are most likely common. Courts considering such waivers will now have to decide whether *Hidalgo* or *Maracle* controls in each situation and the unfortunate result will be inconsistent decisions in the trial and intermediate appellate courts.

Defendant’s knowing, voluntary and intelligent waiver of her right to challenge the sentence as excessive does not mean that she is bereft of any potential remedy. In light of the facts of this case, nothing prevents her from filing a motion under article 440 of the Criminal Procedure Law to challenge the effectiveness of her legal representation in connection with the guilty plea or the sentencing proceeding based on the status of her financial resources, her family’s situation at the time of the plea or her plans to acquire the necessary restitution funds, none of which are revealed in the present record (*see e.g. People v Gravino*, 14 NY3d 546, 558 [2010]). Although the record before us does not indicate that counsel provided less than meaningful representation, an article 440 motion would provide defendant an opportunity to show that it was impossible for her to comply with the restitution condition of the plea agreement, that her attorney knew or should have known about her inability to pay and that it was unreasonable for the lawyer to recommend acceptance of the plea bargain.

For all of these reasons, I would affirm the order of the Appellate Division enforcing the appellate waiver.

Chief Judge LIPPMAN and Judges CIPARICK, SMITH, PIGOTT and JONES concur in memorandum; Judge GRAFFEO dissents and votes to affirm in a separate opinion in which Judge READ concurs.

Orders reversed, etc.

[976 NE2d 223, 951 NYS2d 697]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LINA SINHA, Appellant.

Argued May 30, 2012; decided June 27, 2012

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme

Court in the First Judicial Department, entered April 7, 2011. The Appellate Division modified, in the interest of justice, (1) a judgment of the Supreme Court, New York County (Carol Berkman, J.), which had convicted defendant, upon a jury verdict, of sodomy in the second degree, sodomy in the third degree, bribing a witness, criminal impersonation in the second degree (four counts), and falsely reporting an incident in the third degree (four counts), and (2) an order of that court (op 25 Misc 3d 1206[A], 2009 NY Slip Op 51988[U] [2009]), which had denied defendant's CPL 440.10 motion to vacate the aforementioned judgment. The modifications consisted of vacating the conviction of bribing a witness. The Appellate Division affirmed the judgment and the order as modified and remanded the matter for a new trial on the charge of bribing a witness and for further proceedings pursuant to CPL 460.50 (5).

People v Sinha, 84 AD3d 35, affirmed.

HEADNOTES

Crimes — Disclosure — Failure to Produce *Brady* Material — Multiple Counts

1. In a prosecution arising out of the relationships between defendant teacher and two underage students where the prosecution failed to disclose *Brady* material relating only to the impeachment of one of the victims, the Appellate Division properly determined that the disclosure failure required reversal of one count of defendant's conviction but did not affect the remaining counts. Whether *Brady* violations that result in the reversal of some counts also require reversal of the convictions on other counts is a question to be resolved on a case-by-case basis. Here the trial judge carefully instructed the jury to decide each count, pertaining to each victim, separately. In addition, there was strong evidence of defendant's guilt with respect to the remaining convictions that pertained only to the impeached victim who testified as to the history of his relationship and specific incidents of sexual abuse. Moreover, defendant essentially conceded her guilt of the charged misdemeanor counts at trial and overwhelming evidence supported those convictions. Thus, under the circumstances, reversal was not required on the remaining counts as there was no reasonable possibility that the evidence supporting the alleged tainted count had a spillover effect on the other convictions.

Crimes — Disclosure — Failure to Produce *Brady* Material — Computer Material

2. The prosecution's failure to provide defendant with printouts, prior to trial, of several e-mails recovered from the hard drive of her computer and used at trial was not a violation of CPL 240.20, which requires a prosecutor to disclose certain reports, documents and test results when demanded by the defendant, since the People had provided defense counsel copies of forensic reports, prepared by the investigators who analyzed the hard drive of defendant's computer. The forensic reports were the only "reports or documents" concerning scientific tests or experiments performed on the hard drive. Furthermore, defense counsel had been provided with a "mirror" copy of the contents of defendant's computer's hard drive and there was no showing that

the documents at issue were of such a nature that they could only have been produced through the expertise of a qualified expert. The fact that the People did not print out a specific e-mail that they used at trial and that was available to defense counsel on the mirror copy of the hard drive was not a violation of the statute.

APPEARANCES OF COUNSEL

Law Offices of Joel B. Rudin, New York City (*Joel B. Rudin*, *Gerald L. Shargel* and *Terri S. Rosenblatt* of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (*David M. Cohn* and *Alan Gadlin* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was convicted of several charges stemming from relationships she allegedly had with two underage students who attended a school where defendant was a teacher.

After her conviction, defendant moved, pursuant to CPL 440.10, to vacate her conviction, on the grounds, among others, that the People had violated their disclosure obligation by belatedly disclosing several e-mails, and by failing to disclose certain other information, which might have been used to impeach one of the alleged victims.

On a consolidated appeal, the Appellate Division, exercising its interest of justice jurisdiction, modified by reversing the conviction of bribing a witness, remanded that charge for a new trial and otherwise affirmed the judgment of Supreme Court (*People v Sinha*, 84 AD3d 35 [1st Dept 2011]). The Court found that the prosecution “failed to fulfill basic disclosure obligations that are essential to a fair trial,” but also found that failure did not affect the remaining counts of defendant’s conviction (*id.* at 38). On appeal to this Court, defendant argues that the disclosure failures by the prosecution require all the remaining counts of the conviction be reversed.

We have stated that whether *Brady* violations that result in the reversal of some counts also require reversal of the convictions on other counts is “a question to be resolved on a case-by-case basis” (*People v Daly*, 14 NY3d 848, 849 [2010]). “Reversal of the jointly tried counts is required only if there is a ‘reasonable possibility that the evidence supporting the . . . tainted counts influenced the guilty verdicts on the other [counts]’ ”

(*id.*, quoting *People v Baghai-Kermani*, 84 NY2d 525, 532 [1994]).

[1] The disclosure errors in this case related only to the impeachment of one of the two alleged victims, and the trial judge carefully instructed the jury to decide each count, pertaining to each victim, separately. In addition, there was strong evidence of defendant's guilt with respect to the remaining convictions that pertained only to the first victim who testified as to the history of his relationship and specific incidents of sexual abuse. As to the misdemeanor counts, criminal impersonation and false reporting, defendant essentially conceded her guilt at trial and overwhelming evidence supported those convictions. Thus, under the circumstances of this case, reversal was not required on the remaining counts as there is no reasonable possibility that the evidence supporting the alleged tainted count had a spillover effect on the other convictions.

Defendant further argues that her judgment of conviction and sentence should be reversed because the People failed to provide printouts, prior to trial, of several e-mails recovered from the hard drive of her computer.

CPL 240.20 (1) (c) provides that, upon a demand of the defendant, the prosecutor shall disclose and make available

“[a]ny written report or document, or portion thereof, concerning a physical or mental examination, or scientific test or experiment, relating to the criminal action or proceeding which was made by, or at the request or direction of a public servant engaged in law enforcement activity, or which was made by a person whom the prosecutor intends to call as a witness at trial, or which the people intend to introduce at trial.”

Here, the prosecution provided defense counsel a “mirror” copy of the contents of defendant's computer's hard drive, as well as exact copies of other computer disks recovered from defendant's apartment. In addition, they supplied the forensic report prepared by a detective who analyzed the hard drive, which explained the software and methodology used to analyze it, as well as another forensic report, which noted that certain on-line names had been found and printouts of several files of interest, including e-mails and photographs. The reports did not specifically identify, however, an e-mail the prosecution used at trial.

[2] The People properly complied with section 240.20 when they gave defense counsel copies of the forensic reports, prepared by the investigators who analyzed the hard drive. Those were the only “reports or documents” concerning scientific tests or experiments performed on the hard drive. Were the documents at issue of such a nature that they could only have been produced through the expertise of a qualified expert, our decision might be different; but there is no showing that this was the case here. The fact that the People did not print out the specific e-mail, which was available to defense counsel on the mirror copy of the hard drive, cannot be said to be a violation of the statute.

Defendant’s remaining contentions are without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

In the Matter of DAVID BURR, Appellant, v TIMOTHY B. HOWARD,
Sheriff of Erie County, Respondent.

Submitted May 14, 2012; decided June 27, 2012

Reported below, 2012 NY Slip Op 69406(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

CENTENNIAL ELEVATOR INDUSTRIES, INC., Respondent, v NINETY-FIVE MADISON CORP., Defendant, and RITA SKLAR, Appellant.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 90 AD3d 689.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the CITY OF ROCHESTER for a Warrant to Inspect
449 CEDARWOOD TERRACE, CITY OF ROCHESTER, COUNTY OF
MONROE, STATE OF NEW YORK.

JILL CERMAK et al., Appellants, v CITY OF ROCHESTER, Respon-
dent.

Submitted May 14, 2012; decided June 27, 2012

Reported below, 90 AD3d 1480.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

In the Matter of the CITY OF ROCHESTER for a Warrant to Inspect
187 CLIFTON STREET, CITY OF ROCHESTER, COUNTY OF MON-
ROE, STATE OF NEW YORK.

FLORINE NELSON et al., Appellants, v CITY OF ROCHESTER, Re-
spondent.

Submitted May 14, 2012; decided June 27, 2012

Reported below, 90 AD3d 1485.

On the Court's own motion, appeal dismissed, without costs,
upon the ground that no substantial constitutional question is
directly involved. Motion for leave to appeal denied.

WILLIAM CORSELLO et al., Respondents-Appellants, v VERIZON
NEW YORK, INC., Formerly Known as NEW YORK TELEPHONE
COMPANY, et al., Appellants-Respondents.

Submitted May 14, 2012; decided June 27, 2012

Reported below, 77 AD3d 344; 76 AD3d 941.

Motion for reargument denied [*see* 18 NY3d 777 (2012)].

In the Matter of RORY DOLAN, Appellant, v MARTIN I. EFMAN,
Acting Judge of Suffolk County Court, Respondent.

Decided June 27, 2012

Reported below, 94 AD3d 1116.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

SAM FUTERSAK, Appellant, v SHELDON PERL, Also Known as SHLOIME PERL, et al., Respondents.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 84 AD3d 1309; 2011 NY Slip Op 89601(U).

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 943 (2012)].

In the Matter of GRACIE POINT COMMUNITY COUNCIL, by Its President, Anthony Ard, et al., Appellants, v NEW YORK STATE DEPARTMENT OF ENVIRONMENTAL CONSERVATION et al., Respondents.

Submitted May 14, 2012; decided June 27, 2012

Reported below, 92 AD3d 123.

Motion by Residents for Sane Trash Solutions for leave to appear amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

PETER GRAZIANO, on Behalf of Himself and All Others Similarly Situated, Appellant, v ANDREA W. EVANS, as Chair of the New York State Division of Parole, et al., Respondents.

Submitted May 14, 2012; decided June 27, 2012

Reported below, 90 AD3d 1367.

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 810 (2012)].

KAUFMANN'S CAROUSEL, INC., Appellant, v CAROUSEL CENTER COMPANY LP et al., Respondents. (And Other Actions.)

Submitted May 14, 2012; decided June 27, 2012

Reported below, 87 AD3d 1343; 68 AD3d 1696, 1697, 1700.

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 975 (2012)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PADRAIC KEATING, Appellant.

Submitted May 14, 2012; decided June 27, 2012

Reported below, 74 AD3d 1094.

Motion for reargument denied [see 18 NY3d 932 (2012)].

TONY PERPIGNAN, Appellant, v FIRST FRANKLIN FINANCIAL CORP., Respondent.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 87 AD3d 1117.

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 976 (2012)].

In the Matter of LINDA SALVATI, an Incapacitated Person. JULIE STOIL FERNANDEZ, Appellant. GEORGE J. MCCORMACK, Nonparty Respondent.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 90 AD3d 406.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of REMUS SMITH, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 2012 NY Slip Op 67492(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

GEORGE BUNDY SMITH, SR., Individually and on Behalf of
TWENTY PLUS MEMBERS OF GRACE CONGREGATIONAL CHURCH
OF HARLEM, INC./UNITED CHURCH OF CHRIST, Appellant, v
UNITED CHURCH OF CHRIST et al., Respondents.

Submitted April 9, 2012; decided June 27, 2012

Reported below, 2012 NY Slip Op 60964(U).

Motion for leave to appeal etc. dismissed upon the ground
that the Court of Appeals does not have jurisdiction to entertain
it (*see* NY Const, art VI, § 3; CPLR 5602).

GEORGE BUNDY SMITH, SR., Individually and on Behalf of
TWENTY PLUS MEMBERS OF GRACE CONGREGATIONAL CHURCH
OF HARLEM, INC./UNITED CHURCH OF CHRIST, Appellant, v
UNITED CHURCH OF CHRIST et al., Respondents.

Submitted June 4, 2012; decided June 27, 2012

Reported below, 95 AD3d 581.

Motion, insofar as it seeks leave to appeal from that part of
the May 2012 Appellate Division order that affirmed so much of
the February 2011 Supreme Court order as dismissed all causes
of action against defendants United Church of Christ, Revs.
Geoffrey Black, Rita Root, Freeman Palmer, Dr. Michael Ward
Caine, Noel Vanek, Dr. Donald Wells, and Gladys A. Philibert as
personal representative of the estate of Reverend David Tucker,
denied; motion for leave to appeal etc. otherwise dismissed upon
the ground that the Court of Appeals does not have jurisdiction
to entertain it (*see* NY Const, art VI, § 3; CPLR 5602).

SWEDBANK, AB, NEW YORK BRANCH, Respondent, v HALE AVE-
NUE BORROWER, LLC, et al., Appellants, et al., Defendants.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 89 AD3d 922.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of MICHAEL THOMPSON, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, et al., Respondents.

Decided June 27, 2012

Reported below, 92 AD3d 1010.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of PAULETTE Y. UCCI, Respondent, v DAVID G. UCCI, Appellant.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 93 AD3d 1110.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of CHRISTOPHER M. UHL, a Disbarred Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Decided June 27, 2012

Reported below, 88 AD3d 1052.

Appeal, insofar as taken from the Appellate Division order denying the motion to vacate the order of disbarment, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order of disbarment, dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of RAYMOND L. YOUNG, Respondent, v DEBORAH YOUNG, Appellant, et al., Respondent.

Submitted May 7, 2012; decided June 27, 2012

Reported below, 84 AD3d 972.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying reargument or leave to appeal, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

[973 NE2d 1289, 950 NYS2d 515]

ILLINOIS UNION INSURANCE COMPANY, Respondent, v ASSURANCE
COMPANY OF AMERICA, Appellant.

Decided June 28, 2012

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 28, 2011. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, New York County (Charles E. Ramos, J.; op 2009 NY Slip Op 31781[U] [2009]), as had denied in part plaintiff's motion for summary judgment and found that, under California law, plaintiff Illinois Union Insurance Company was entitled only to reimbursement for defense costs associated with the slander claim in an underlying action, and (2) declared that defendant Assurance Company of America was obligated to reimburse Illinois Union for the defense costs it paid in the underlying action. The following question was certified by the Appellate Division: "Was the order of this Court, which reversed the order of the Supreme Court, properly made?"

The Appellate Division noted that under California law, which the parties agreed governed the action, a dispositive issue was whether the plaintiff in the underlying action was an "Employee" under the policy issued by Illinois Union Insurance Company; that if the plaintiff were an employee, then Illinois Union had the duty to defend, but if the plaintiff were not an employee, it had no such duty, and thus would be entitled to full reimbursement. The Appellate Division concluded that the record established that the plaintiff in the underlying action, was not an "Employee" within the definition of Illinois Union's policy.

Illinois Union Ins. Co. v Assurance Co. of Am., 86 AD3d 501, modified.

HEADNOTE

Insurance — Duty to Defend and Indemnify — Equitable Contribution

In an insurance coverage dispute, to which California law applied, plaintiff insurer had a duty to defend the insured in the underlying action because it did not eliminate the possibility that the insured's conduct fell within the coverage of the policy. However, under the circumstances of the case, and pursuant to equitable contribution principles, plaintiff insurer was entitled to reimbursement from defendant insurer for an equal share of the costs associated with plaintiff's defense of the claims in the underlying action.

APPEARANCES OF COUNSEL

Coughlin Duffy LLP, New York City (*Robert W. Muilenburg* and *Steven D. Cantarutti* of counsel), for appellant.

Hodgson Russ LLP, Buffalo (*Kevin D. Szczepanski* and *Lisa Bauer* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by granting judgment declaring in accordance with this memorandum and, as so modified, affirmed. The certified question should be answered in the negative.

In this insurance coverage dispute, to which California law applies, plaintiff Illinois Union Insurance Company had a duty to defend the insured in the underlying action because Illinois Union did not “eliminate the possibility that the insured's conduct falls within the coverage of the policy” (*Montrose Chem. Corp. v Superior Ct.*, 6 Cal 4th 287, 301, 861 P2d 1153, 1161 [1993]). Under the circumstances of this case, however, we agree with Illinois Union that pursuant to equitable contribution principles, it is entitled to reimbursement from defendant Assurance Company of America for an equal share of the costs associated with Illinois Union's defense of the claims in the underlying action.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, etc.

[973 NE2d 1280, 950 NYS2d 506]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent,
v LOUIS RILEY, Respondent-Appellant.

Argued May 31, 2012; decided June 28, 2012

SUMMARY

CROSS APPEALS, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 7, 2011. The Appellate Division modified, on the facts, a judgment of the Supreme Court, New York County (Laura A. Ward, J.), which had convicted defendant, upon a jury verdict, of grand larceny in the second degree, criminal possession of stolen property in the second degree, burglary in the third degree, and possession of burglar's tools (six counts), and sentenced him, as a second felony offender, to an aggregate term of 4½ to 9 years. The modification consisted of reducing the convictions of grand larceny in the second degree and criminal possession of stolen property in the second degree to petit larceny and criminal possession of stolen property in the fifth degree, respectively, and imposing a sentence of time served on each of the reduced convictions. The Appellate Division affirmed the judgment as modified.

In a prosecution arising out of the theft of some 2,500 linear feet of copper piping that was ripped from behind the walls of four connected buildings, the Appellate Division noted that the People, pursuant to Penal Law § 155.20 (1), introduced evidence of “the cost of replacement of the property within a reasonable time after the crime” as proof of the value of the copper piping. The Appellate Division concluded that the verdict was against the weight of the evidence as to the second-degree grand larceny and second-degree criminal possession of stolen property counts due to a failure of proof of the value of the stolen property since the People's only evidence of value included labor costs associated with installing new piping in the buildings, but that such labor costs could not be included as part of the cost of replacement.

People v Riley, 85 AD3d 431, affirmed.

People v Riley, 85 AD3d 431, appeal dismissed.

HEADNOTES

Crimes — Evidence — Failure of Prosecution to Preserve Evidence — Lack of Prejudice to Defendant

1. In a prosecution arising from the theft of copper piping, the trial court did not abuse its discretion by determining that defendant did not suffer prejudice and declining to impose a sanction where the pipes defendant was accused of stealing were returned to their rightful owner without the notice to defendant required by Penal Law § 450.10. A sanction for the return of stolen property without the requisite notice is required only when the district attorney does not demonstrate an absence of prejudice (*see* Penal Law § 450.10 [10]), and the choice of appropriate action is committed to the sound discretion of the trial court. Here, the People advised defense counsel to arrange a mutually convenient time to examine the pipes about six weeks before they were returned, and defense counsel did not follow up; the police retained a representative sample, which was admitted into evidence without objection; and defense counsel was provided with nearly 200 photographs of the pipes and the buildings from which they were taken.

Crimes — Appeal — Court of Appeals — Unpreserved Error Not Reviewable

2. The Court of Appeals could not review an issue where the question was reached by the Appellate Division in the exercise of its discretionary power to reach an unpreserved legal issue, since an Appellate Division reversal based on an unpreserved error is considered an exercise of the Appellate Division's interest of justice power which is not reviewable in the Court of Appeals. Consequently, the People's appeal was dismissed upon the ground that the modification by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification" (CPL 450.90 [2] [a]).

APPEARANCES OF COUNSEL

Cyrus R. Vance, Jr., District Attorney, New York City (Andrew E. Seewald and David M. Cohn of counsel), for appellant-respondent.

Center for Appellate Litigation, New York City (Bruce D. Austern and Robert S. Dean of counsel), for respondent-appellant.

OPINION OF THE COURT

MEMORANDUM.

On defendant Louis Riley's appeal, the order, insofar as appealed from, should be affirmed. The People's appeal should be dismissed upon the ground that the modification by the Appellate Division was not "on the law alone or upon the law and such facts which, but for the determination of law, would not have led to . . . modification" (CPL 450.90 [2] [a]).

A few months before trial, the copper pipes defendant was accused of stealing were returned to their rightful owner without the notice to defendant required by Penal Law § 450.10. Defendant argues that the defense team was prejudiced as a result

because deprived of an opportunity to examine the pipes and independently assess their value; he seeks reversal and a new trial on account of the trial court's denial of his request for an adverse inference instruction as a sanction for the unnoticed return of the stolen pipes.

[1] But a sanction for the return of stolen property without the requisite notice is required only when the district attorney does not demonstrate an absence of prejudice (*see* Penal Law § 450.10 [10]). Further, “the choice of ‘appropriate’ action is committed to the sound discretion of the trial court” (*People v Kelly*, 62 NY2d 516, 521 [1984]). Here, the People advised defense counsel to arrange a mutually convenient time to examine the copper pipes about six weeks before they were returned, and defense counsel did not follow up; the police retained a representative sample, which was admitted into evidence without objection; and defense counsel was provided with nearly 200 photographs of the copper pipes and the buildings. As a result, the trial court did not abuse its discretion by determining that defendant did not suffer prejudice and declining to impose a sanction.

[2] Regarding the People's appeal, the dissent concludes that we may “review[] a legal issue, with respect to a ruling or instruction of a criminal court during a trial or proceeding where, as here, the question was reached by the Appellate Division in the exercise of its discretionary power to reach an unpreserved legal issue” (dissenting op at 948). This notion is, to say the least, novel as it is flies in the face of the Criminal Procedure Law and thus four decades' worth of our precedent (*see e.g. People v Albro*, 52 NY2d 619, 623 n [1981] [noting that a recent amendment to CPL 450.90 (2) (a), while providing more flexibility in some respects, “does not operate to provide an appeal where the reversal or modification was at least partially based upon discretion exercised in the interests of justice”]; *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404, 407 [2006] [“As the intermediate appellate court reversed the conviction on the basis of an unpreserved error, and therefore as a matter of discretion in the interest of justice, its order is not appealable to this Court”]).

Just two years ago, in *People v Caban* (14 NY3d 369 [2010]), we recognized that “under our precedents, an Appellate Division reversal that is based on an unpreserved error is considered an exercise of the Appellate Division's interest of justice power, not reviewable in our Court”; therefore, “if defendant [Caban]

failed to preserve the alleged error, she would benefit from her mistake, for *we would be required to dismiss the People's appeal*" (*id.* at 373 [emphasis added]). This is, of course, precisely the situation we find ourselves in here, where—unlike *Caban*—we all agree that the alleged error was, in fact, unpreserved.

PIGOTT, J. (dissenting in part). The issue that the majority believes it cannot address is a legal, rather than a factual, one; that much is certain. And it is an open question that deserves our attention. The Appellate Division, finding no New York case on point, was forced to seek persuasive authority from intermediate courts in Texas and Florida. Yet the majority dismisses the People's appeal, because the issue was not preserved in the trial court, so that the precedent in New York remains the one that the First Department chose from out-of-state sources.

As a preliminary matter, the Court of Appeals "is not bound by the Appellate Division's characterization of [an] order, and must '*determine for itself*' whether a reviewable legal question exists" (*People v D'Alessandro*, 13 NY3d 216, 219 [2009], quoting *People v Giles*, 73 NY2d 666, 670 [1989]). Here, although the Appellate Division stated that it was modifying Supreme Court's judgment "on the facts" (85 AD3d 431, 432 [2011]), its rationale is entirely legal. The Appellate Division seems to have thought it was engaged in weight of the evidence review (*see id.*); but it did not "weigh the relative probative force of conflicting testimony and the relative strength of conflicting inferences that may be drawn from the testimony" (*People v Bleakley*, 69 NY2d 490, 495 [1987], quoting *People ex rel. MacCracken v Miller*, 291 NY 55, 62 [1943]). Rather, its decision turned on a purely legal issue—whether labor costs can be included as part of "the cost of replacement" contemplated by Penal Law § 155.20 (1). Because the issue was not preserved, the Appellate Division could have reached the issue only "[a]s a matter of discretion in the interest of justice" (CPL 470.15 [3] [c]; *see* CPL 470.15 [6] [a]).

The majority believes that under the current statutory scheme, the lack of preservation means that the legal issue that the Appellate Division decided is not a question that we can reach. This odd circumstance results from a restrictive reading of "question of law" in CPL 470.05. That statute provides that

"[f]or purposes of appeal, a question of law with respect to a ruling or instruction of a criminal court

during a trial or proceeding is presented when a protest thereto was registered, by the party claiming error, at the time of such ruling or instruction or at any subsequent time when the court had an opportunity of effectively changing the same” (CPL 470.05 [2]).

The majority infers, so the argument goes, that the unpreserved issue in this case is beyond our review because other statutes require that, upon an appeal to the Court of Appeals from an order of an intermediate appellate court reversing or modifying a criminal court’s decision, we may consider and determine only “question[s] of law” (with certain further provisos not pertinent here) (CPL 470.35 [2] [a], [b]; *see also* CPL 450.90 [2] [a]) and questions concerning the legality of the intermediate court’s corrective action (*see* CPL 470.35 [2] [c]; *see also* CPL 450.90 [2] [b]). I disagree with this inference.

In my view, when the Legislature wrote the provision stating that a “question of law . . . is presented” to an appellate court upon preservation in the trial court (CPL 470.05 [2]), it intended to ensure that an appellate court would have no obligation to pass on an unpreserved non-fundamental issue pertaining to a criminal conviction,* but that the Appellate Division could do so as a matter of discretion (CPL 470.15 [6] [a]). We have for many years interpreted CPL 470.05 (2) to require that a question must have been preserved in the trial court before we may reach it (*see e.g. People v Robinson*, 36 NY2d 224, 228 [1975]; *People v Michael*, 48 NY2d 1, 5-6 [1979]; *People v Cona*, 49 NY2d 26, 33 [1979]; *People v Albro*, 52 NY2d 619, 623 n [1981]; *People v Dercole*, 52 NY2d 956, 957 [1981]). As the majority notes, this interpretation arises from “our precedents” (majority mem at 946, quoting *People v Caban*, 14 NY3d 369, 373 [2010]). There is nothing in CPL 470.05 that prohibits this Court from reviewing a legal issue, with respect to a ruling or instruction of a criminal court during a trial or proceeding where, as here, the question was reached by the Appellate Division in the exercise of its discretionary power to reach an unpreserved legal issue. The fact that the nisi prius court did not rule on an important question of law does not, in my view, give the Appellate Division license to decide the issue of law without fear of review, as the

* There are well-known exceptions when the alleged error is so fundamental that it affects “the organization of the court or the mode of proceedings prescribed by law” (*People v Patterson*, 39 NY2d 288, 295 [1976]; *see also People v Agramonte*, 87 NY2d 765, 769-770 [1996]), or concerns the lawfulness of a sentence (*People v Samms*, 95 NY2d 52, 55-57 [2000]).

Appellate Division has done here. Indeed, I doubt very much that the Appellate Division would generally seek such authority, being far more comfortable knowing that this Court will be the final arbiter. I cannot accept that the Legislature intended to bring about the unfortunate procedural circumstance in which the Appellate Division decides a legal issue for the State, yet we are powerless to reach it.

As for the disposition of defendant's appeal, I agree with the majority's analysis, but, as I have explained, I cannot agree with its dismissal of the People's appeal. Consequently, I dissent.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ and JONES concur in memorandum; Judge PIGOTT dissents in part in an opinion in which Judge SMITH concurs.

On defendant's appeal, order, insofar as appealed from, affirmed, and People's appeal dismissed, etc.

JAY ABRAMS et al., Appellants, v SUZANNE BERELSON, Respondent.

Decided June 28, 2012

Reported below, 94 AD3d 782.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

ARNAV INDUSTRIES, INC., Respondent, v JODY PITARI, Appellant.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 82 AD3d 557.

Motion for leave to appeal dismissed as untimely. The prior motion for leave to appeal made to the Appellate Division was untimely (*see* Karger, Powers of the New York Court of Appeals § 12:3, at 436-437 [3d ed rev]).

JESSIE J. BARNES, Appellant, v STATE OF NEW YORK, Respondent. (Claim No. 100753.)

Submitted May 21, 2012; decided June 28, 2012

Reported below, 89 AD3d 1382.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

VICTOR Y. BATSHEVER, Appellant, v DANIEL BLACK et al., Respondents.

Submitted June 11, 2012; decided June 28, 2012

Reported below, 2012 NY Slip Op 60477(U).

Motion for reargument of motion for leave to appeal denied [*see* 19 NY3d 830 (2012)].

BETH ABRAHAM HEALTH SERVICES, Respondent, v MILDRED ECCLESTON-JOHNSON, Appellant.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 93 AD3d 420.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of CHARLA R. BIKMAN (Admitted as CHARLA RUTH BIKMAN), a Suspended Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted June 11, 2012; decided June 28, 2012

Reported below, 2012 NY Slip Op 69916(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of MICHAEL BUXENBAUM, JR., Respondent, v RACHEL FULMER, Appellant.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 82 AD3d 1223.

Motion for reargument of motion for leave to appeal denied [*see* 19 NY3d 801 (2012)].

LARRY CARR, Appellant, v PAMELA D. HAYES et al., Respondents,
et al., Defendant.

Submitted June 11, 2012; decided June 28, 2012

Reported below, 92 AD3d 534.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 19 NY3d 802 (2012)].

HOVSEP GREGORIAN, Respondent, v NEW YORK LIFE INSURANCE
COMPANY, Appellant.

Submitted June 4, 2012; decided June 28, 2012

Reported below, 90 AD3d 837.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SINCLAIR HABERMAN et al., Respondents, v ZON-
ING BOARD OF APPEALS OF CITY OF LONG BEACH et al., Ap-
pellants, et al., Respondent.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 94 AD3d 997.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action/proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

DIEDRICH HOLTKAMP et al., Appellants, v PARKLEX ASSOCIATES
et al., Defendants. FLEMMING ZULACK WILLIAMSON ZAU-
DERER, LLP, et al., Proposed Defendants-Respondents.

Submitted May 21, 2012; decided June 28, 2012

Reported below, 94 AD3d 819.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JACOB H. and Another, Children Alleged to be Neglected. COMMISSIONER OF SOCIAL SERVICES OF THE CITY OF NEW YORK, Respondent; LOGANN K., Appellant.

Submitted June 4, 2012; decided June 28, 2012

Reported below, 94 AD3d 628.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

J. D'ADDARIO & COMPANY, INC., Appellant, v EMBASSY INDUSTRIES, INC., Respondent.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 2012 NY Slip Op 69656(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ANA LAWSON, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted June 4, 2012; decided June 28, 2012

Reported below, 83 AD3d 609.

Motion for leave to appeal from the Supreme Court judgment entered upon the Appellate Division order dismissed upon the ground that the judgment is not the final appealable paper from which leave to appeal may be sought (*see* CPLR 5611).

In the Matter of ALFREDO LUGO, Appellant, v ANDREA W. EVANS, as Chair of the Division of Parole, Respondent.

Submitted June 4, 2012; decided June 28, 2012

Reported below, 89 AD3d 1356.

Motion for reargument of motion for leave to appeal denied [*see* 18 NY3d 975 (2012)].

In the Matter of ROBERT E. MACLAREN, Appellant, v CITY OF NORWICH HOUSING AUTHORITY et al., Respondents.

Submitted May 21, 2012; decided June 28, 2012

Reported below, 2012 NY Slip Op 67550(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of MARVIN H. HANDLER, M.D., P.C., Appellant, v THOMAS P. DiNAPOLI, as Comptroller of the State of New York, Respondent, et al., Respondent.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 88 AD3d 1187.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

In the Matter of MURPHY & O'CONNELL, Appellant, v TAX APPEALS TRIBUNAL et al., Respondents.

Decided June 28, 2012

Reported below, 93 AD3d 530, 536.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

KYLE NAVARRA, an Infant, by His Parents and Natural Guardians, DEBBIE NAVARRA and Another, et al., Appellants, v FOUR WINDS HOSPITAL-WESTCHESTER, Respondent.

Submitted June 4, 2012; decided June 28, 2012

Reported below, 95 AD3d 850.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Claim of FIDENCIO PELAEZ, Respondent, v ALAN SILVERSTONE et al., Appellants, and STATE INSURANCE FUND et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 93 AD3d 1042.

Motion, insofar as it seeks leave to appeal purportedly on behalf of Silverbrook Farm, Inc. dismissed upon the ground that Silverbrook Farm, Inc. must appear by an attorney (*see* CPLR 321 [a]); motion, insofar as Alan Silverstone and Janice Silverstone seek leave to appeal from that part of the Appellate Division order as affirmed the decision of the Workers' Compensation Board denying reconsideration or full Board review, dismissed upon the ground that such portion of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal by Alan Silverstone and Janice Silverstone otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ADAM MELZER, Appellant.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 89 AD3d 1000.

Motion for reargument of motion for leave to appeal denied [*see* 19 NY3d 803 (2012)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAFAEL RODRIGUEZ, Appellant.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 77 AD3d 420.

Motion for reargument denied [*see* 19 NY3d 166 (2012)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD C. WIEDEMAN, Appellant.

Submitted May 21, 2012; decided June 28, 2012

Reported below, 51 AD3d 888.

Motion for reargument of motion for leave to appeal denied [see 18 NY3d 805 (2012)].

In the Matter of MICHAEL F. RAMSEY, Appellant, v BRIAN FISCHER, as Commissioner of Corrections and Community Supervision, et al., Respondents.

Submitted June 4, 2012; decided June 28, 2012

Reported below, 93 AD3d 1000.

Motion for leave to appeal dismissed as untimely (see CPLR 5513 [b]).

In the Matter of JUAN Y. SHENG, Appellant, v STATE OF NEW YORK DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted June 4, 2012; decided June 28, 2012

Reported below, 93 AD3d 851.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SOUTH ISLAND ORTHOPAEDIC GROUP, P.C., Appellant, v THOMAS P. DiNAPOLI, as Comptroller of the State of New York, et al., Respondents.

Submitted May 29, 2012; decided June 28, 2012

Reported below, 88 AD3d 1186.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

JILL WILLIAMS et al., Respondents, v STATE OF NEW YORK, Appellant.

Submitted June 11, 2012; decided June 28, 2012

Reported below, 84 AD3d 412.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 18 NY3d 981 (2012)].

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(June 1, 2012 through June 30, 2012)

Liberty Sq. Realty Corp. v Doe Fund, Inc.	1st Dept: 2011 NY Slip Op 83727(U)	6/4/12
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2012 through June 30, 2012)

Kuber v Marcelle	App Div, 3d Dept: 2012 NY Slip Op 69589(U) (Albany)	dismissed 6/14/12 (Pigott, J.)
People v Abdur-Rahman	2d Dept: 92 AD3d 950 (Kings)	denied 6/5/12 (Lippman, Ch. J.)
People v Adams (Keith)	2d Dept: 93 AD3d 734 (Queens)	denied 6/13/12 (Lippman, Ch. J.)
People v Adams (Neil)	2d Dept: 89 AD3d 964 (Queens)	denied 6/27/12 (Smith, J.)
People v Adams (Robert)	App Div, 4th Dept: 2012 NY Slip Op 69361(U) (Onondaga)	denied 6/8/12 (Read, J.)
People v Aikey	4th Dept: 94 AD3d 1485 (Ontario)	denied 6/21/12 (Grafteo, J.)
People v Alcide	2d Dept: 95 AD3d 897 (Kings)	granted 6/25/12 (Grafteo, J.)
People v Allen (Charles)	4th Dept: 93 AD3d 1340 (Cayuga)	denied 6/12/12 (Read, J.)
People v Allen (Charles)	4th Dept: 93 AD3d 1341 (Cayuga)	denied 6/18/12 (Read, J.)
People v Allen (Kevin)	4th Dept: 93 AD3d 1144 (Erie)	denied 6/25/12 (Pigott, J.)
People v Almonte	1st Dept: 90 AD3d 579 (NY)	denied 6/8/12 (Ciparick, J.)
People v Alvarez	1st Dept: 94 AD3d 587 (NY)	denied 6/21/12 (Grafteo, J.)
People v Anderson	2d Dept: 94 AD3d 1010 (Suffolk)	denied 6/21/12 (Grafteo, J.)
People v Angelis	2d Dept: 94 AD3d 902 (Queens)	denied 6/25/12 (Smith, J.)

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People v Armstrong	4th Dept: 94 AD3d 1552 (Oneida)	denied 6/29/12 (Smith, J.)
People v Arriaga	1st Dept: 90 AD3d 416 (Bronx)	denied 6/21/12 (Jones, J.)
People v Arroyo	1st Dept: 93 AD3d 608 (Bronx)	denied 6/5/12 (Pigott, J.)
People v Ashley	App Div, 3d Dept: 2012 NY Slip Op 63821(U) (St. Lawrence)	denied 6/11/12 (Jones, J.)
People v Atkins	1st Dept: 92 AD3d 551 (NY)	denied 6/29/12 (Ciparick, J.)
People v Augustine	3d Dept: 89 AD3d 1238 (Greene)	granted 6/1/12 (Jones, J.)
People v Badia	1st Dept: 94 AD3d 622 (NY)	denied 6/22/12 (Pigott, J.)
People v Bailey	2d Dept: 94 AD3d 904 (Queens)	denied 6/8/12 (Smith, J.)
People v Batista	2d Dept: 92 AD3d 793 (Westchester)	denied 6/14/12 (Pigott, J.)
People v Battle	2d Dept: 94 AD3d 1014 (Kings)	denied 6/21/12 (Grafteo, J.)
People v Baugh	2d Dept: 91 AD3d 965 (Queens)	denied 6/14/12 (Ciparick, J.)
People v Bayon	2d Dept: 94 AD3d 906 (Kings)	denied 6/7/12 (Pigott, J.)
People v Beaty	4th Dept: 89 AD3d 1414 (Monroe)	granted 6/27/12 (Smith, J.)
People v Beecham	2d Dept: 93 AD3d 675 (Westchester)	denied 6/13/12 (Jones, J.)
People v Bell (Damone)	4th Dept: 89 AD3d 1518 (Erie)	denied 6/21/12 (Lippman, Ch. J.)
People v Bell (James)	County Ct, 4/12/12 (Onondaga)	denied 6/14/12 (Pigott, J.)
People v Betancourt	2d Dept: 93 AD3d 855 (Kings)	denied 6/21/12 (Grafteo, J.)
People v Bethune	2d Dept: 91 AD3d 966 (Westchester)	denied 6/14/12 (Ciparick, J.)
People v Blume	3d Dept: 92 AD3d 1025 (Sullivan)	denied 6/18/12 (Ciparick, J.)
People v Bodrick	1st Dept: 93 AD3d 482 (NY)	denied 6/29/12 (Ciparick, J.)
People v Bonds	3d Dept: 94 AD3d 1241 (Schenectady)	denied 6/25/12 (Pigott, J.)
People v Borrell	App Div, 2d Dept: 2012 NY Slip Op 70413(U) (Queens)	denied 6/25/12 (Smith, J.)
People v Box	App Term, 1st Dept: 34 Misc 3d 160(A) (Bronx)	denied 6/22/12 (Pigott, J.)
People v Brooks (Jason)	4th Dept: 91 AD3d 1296 (Monroe)	denied 6/13/12 (Jones, J.)
People v Brooks (Jason)	4th Dept: 91 AD3d 1302 (Monroe)	denied 6/13/12 (Jones, J.)

People v Brown (Deryl)	4th Dept: 93 AD3d 1231 (Monroe)	denied 6/7/12 (Pigott, J.) (Appeal No. 1)
People v Brown (Deryl)	4th Dept: 93 AD3d 1231 (Monroe)	denied 6/7/12 (Pigott, J.) (Appeal No. 2)
People v Brown (Howard)	2d Dept: 92 AD3d 794 (Kings)	denied 6/13/12 (Jones, J.)
People v Brown (James)	2d Dept: 90 AD3d 944 (Queens)	denied 6/13/12 (Jones, J.)
People v Brown (John)	1st Dept: 93 AD3d 598 (NY)	denied 6/5/12 (Pigott, J.)
People v Brown (Thomas)	1st Dept: 90 AD3d 575 (NY)	granted 6/21/12 (Jones, J.)
People v Burgess	1st Dept: 90 AD3d 531 (NY)	denied 6/29/12 (Read, J.)
People v Burton	3d Dept: 93 AD3d 949 (Albany)	denied 6/29/12 (Read, J.)
People v Cahill	4th Dept: 92 AD3d 1266 (Onondaga)	denied 6/13/12 (Jones, J.)
People v Caldarola	App Div, 2d Dept: 2012 NY Slip Op 70088(U) (Westchester)	dismissed 6/29/12 (Grafteo, J.)
People v Calderon	1st Dept: 92 AD3d 606 (NY)	denied 6/19/12 (Lippman, Ch. J.)
People v Campbell	4th Dept: 94 AD3d 1408 (Onondaga)	denied 6/22/12 (Pigott, J.)
People v Cantave	2d Dept: 93 AD3d 677 (Queens)	granted 6/27/12 (Pigott, J.)
People v Carmichael	2d Dept: 92 AD3d 687 (Queens)	dismissed 6/21/12 (Lippman, Ch. J.)
People v Cash	3d Dept: 95 AD3d 1374 (Broome)	denied 6/28/12 (Smith, J.)
People v Cason	2d Dept: 90 AD3d 777 (Nassau)	denied 6/5/12 (Ciparick, J.)
People v Castillo	2d Dept: 91 AD3d 883 (Kings)	denied 6/18/12 (Ciparick, J.)
People v Cephas	2d Dept: 91 AD3d 668 (Queens)	denied 6/21/12 (Jones, J.)
People v Chisholm	2d Dept: 89 AD3d 859 (Queens)	granted 6/13/12 (Jones, J.)
People v CJ	4th Dept: 93 AD3d 1340 (Cayuga)	denied 6/12/12 (Read, J.)
People v CJ	4th Dept: 93 AD3d 1341 (Cayuga)	denied 6/18/12 (Read, J.)
People v Clarke	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 34 Misc 3d 159(A) (Queens)	denied 6/21/12 (Lippman, Ch. J.)
People v Cockett	2d Dept: 95 AD3d 1230 (Suffolk)	denied 6/29/12 (Grafteo, J.)
People v Cogswell	3d Dept: 94 AD3d 1236 (Ulster)	denied 6/21/12 (Grafteo, J.)

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People v Coldiron	4th Dept: 87 AD3d 1383 (Erie)	denied 6/12/12 (Read, J.)
People v Collins	4th Dept: 90 AD3d 1587 (Ontario)	denied 6/5/12 (Ciparick, J.)
People v Colucci (Nicole)	4th Dept: 94 AD3d 1418 (Niagara)	denied ¹ 6/22/12 (Grafteo, J.)
People v Colucci (Randy)	4th Dept: 94 AD3d 1419 (Niagara)	denied ² 6/22/12 (Grafteo, J.)
People v Consilio	4th Dept: 74 AD3d 1809 (Ontario)	denied 6/19/12 (Lippman, Ch. J.)
People v Cooke	2d Dept: 94 AD3d 1136 (Queens)	denied 6/29/12 (Smith, J.)
People v Corse (Eric)	2d Dept: 94 AD3d 906 (Nassau)	denied 6/22/12 (Pigott, J.)
People v Corse (Erik)	2d Dept: 94 AD3d 906 (Nassau)	denied 6/22/12 (Pigott, J.)
People v Cox	1st Dept: 90 AD3d 526 (NY)	denied 6/19/12 (Lippman, Ch. J.)
People v Crespo	Sup Ct, 2/27/12 (NY)	dismissed 6/6/12 (Lippman, Ch. J.)
People v Cruz	2d Dept: 92 AD3d 891 (Kings)	denied 6/14/12 (Jones, J.)
People v Czarnecki	2d Dept: 93 AD3d 856 (Kings)	denied 6/22/12 (Pigott, J.)
People v Danton	1st Dept: 93 AD3d 498 (NY)	denied 6/29/12 (Ciparick, J.)
People v Davenport	2d Dept: 92 AD3d 689 (Kings)	dismissed 6/29/12 (Ciparick, J.)
People v Davis	2d Dept: 85 AD3d 812 (Kings)	denied 6/19/12 (Lippman, Ch. J.)
People v DeBiaso	4th Dept: 91 AD3d 1303 (Niagara)	denied 6/8/12 (Ciparick, J.)
People v DeJesus	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 34 Misc 3d 141(A) (Kings)	denied 6/21/12 (Jones, J.)
People v Deliser	2d Dept: 85 AD3d 1047 (Kings)	granted 6/1/12 (Jones, J.)
People v Denis	4th Dept: 91 AD3d 1301 (Oswego)	denied 6/14/12 (Ciparick, J.)
People v Dent	1st Dept: 94 AD3d 536 (NY)	denied 6/21/12 (Grafteo, J.)
People v Dombrowski	4th Dept: 94 AD3d 1416 (Erie)	denied 6/22/12 (Pigott, J.)
People v Dow	2d Dept: 93 AD3d 857 (Kings)	denied 6/5/12 (Pigott, J.)

1. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Maracle* (85 AD3d 1652 [2011], 85 AD3d 1654 [2011], *revd* 19 NY3d 925 [2012]).

2. Denied, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Maracle* (85 AD3d 1652 [2011], 85 AD3d 1654 [2011], *revd* 19 NY3d 925 [2012]).

People v Engelhardt	3d Dept: 94 AD3d 1238 (Chemung)	denied 6/12/12 (Smith, J.)
People v England	App Term, 1st Dept: 34 Misc 3d 153(A) (NY)	denied 6/5/12 (Smith, J.)
People v Figueroa (Miguel)	App Div, 1st Dept: 2011 NY Slip Op 86900(U) (NY)	denied reconsideration 6/29/12 (Smith, J.)
People v Figueroa (Pablo)	1st Dept: 94 AD3d 517 (Bronx)	denied 6/18/12 (Jones, J.)
People v Fleming	County Ct, 3/16/12 (Erie)	denied 6/21/12 (Grafteo, J.)
People v Fogle	2d Dept: 88 AD3d 738 (Queens)	denied reconsideration 6/8/12 (Ciparick, J.)
People v Ford	2d Dept: 91 AD3d 968 (Dutchess)	denied 6/12/12 (Smith, J.)
People v Fowler-Graham	4th Dept: 92 AD3d 1225 (Erie)	denied 6/25/12 (Ciparick, J.)
People v Francis	App Div, 1st Dept: 2011 NY Slip Op 86451(U) (NY)	denied reconsideration 6/8/12 (Grafteo, J.)
People v Freeman	2d Dept: 93 AD3d 805 (Dutchess)	denied 6/25/12 (Smith, J.)
People v Frye	1st Dept: 94 AD3d 589 (NY)	denied 6/25/12 (Pigott, J.)
People v Galunas	3d Dept: 93 AD3d 892 (Delaware)	denied 6/25/12 (Pigott, J.)
People v Garcia	App Div, 2d Dept: 2012 NY Slip Op 64660(U) (Kings)	dismissed 6/18/12 (Read, J.)
People v Geraci	2d Dept: 92 AD3d 798 (Kings)	denied 6/5/12 (Smith, J.)
People v Gilleo	2d Dept: 92 AD3d 798 (Dutchess)	denied 6/5/12 (Smith, J.)
People v Gilles	1st Dept: 90 AD3d 555 (NY)	denied 6/5/12 (Ciparick, J.)
People v Gledhill	2d Dept: 91 AD3d 886 (Suffolk)	denied 6/8/12 (Ciparick, J.)
People v Glover	4th Dept: 87 AD3d 1384 (Monroe)	denied 6/12/12 (Lippman, Ch. J.)
People v Gonzalez	1st Dept: 92 AD3d 585 (NY)	denied 6/29/12 (Ciparick, J.)
People v Goossens (Carl)	4th Dept: 92 AD3d 1281 (Livingston)	denied 6/14/12 (Ciparick, J.)
People v Goossens (Carl)	4th Dept: 92 AD3d 1282 (Livingston)	denied 6/14/12 (Ciparick, J.)
People v Gordon	2d Dept: 93 AD3d 859 (Kings)	denied 6/29/12 (Read, J.)
People v Green (Kelly)	2d Dept: 94 AD3d 907 (Richmond)	denied 6/28/12 (Smith, J.)

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People v Green (Thomas)	2d Dept: 92 AD3d 894 (Suffolk)	denied 6/29/12 (Read, J.)
People v Griffin	2d Dept: 92 AD3d 800 (Suffolk)	dismissed 6/29/12 (Read, J.)
People v Guppy	4th Dept: 92 AD3d 1243 (Oswego)	denied 6/13/12 (Jones, J.)
People v Gutierrez	1st Dept: 93 AD3d 445 (NY)	denied 6/13/12 (Jones, J.)
People v Guy	3d Dept: 93 AD3d 877 (Schenectady)	denied 6/13/12 (Jones, J.)
People v Hall (Alexander)	1st Dept: 86 AD3d 450 (NY)	denied 6/18/12 (Jones, J.)
People v Hall (Willie)	App Div, 1st Dept: 2011 NY Slip Op 90373(U) (Bronx)	denied 6/29/12 (Read, J.)
People v Hanks	4th Dept: 93 AD3d 1257 (Onondaga)	dismissed 6/1/12 (Ciparick, J.)
People v Harris	4th Dept: 94 AD3d 1484 (Erie)	denied 6/22/12 (Grafteo, J.)
People v Harrison (Charles)	3d Dept: 93 AD3d 995 (Broome)	denied 6/5/12 (Smith, J.)
People v Harrison (Edward)	App Div, 2d Dept: 2012 NY Slip Op 64079(U) (Richmond)	dismissed 6/5/12 (Pigott, J.)
People v Haughey	2d Dept: 94 AD3d 776 (Putnam)	denied 6/22/12 (Pigott, J.)
People v Haynes	2d Dept: 92 AD3d 695 (Kings)	denied 6/12/12 (Read, J.)
People v Heesh	3d Dept: 94 AD3d 1159 (Delaware)	denied 6/25/12 (Smith, J.)
People v Heideman	4th Dept: 93 AD3d 1218 (Orleans)	denied 6/14/12 (Jones, J.)
People v Henderson	2d Dept: 92 AD3d 896 (Kings)	denied 6/13/12 (Jones, J.)
People v Henry	4th Dept: 92 AD3d 1265 (Oneida)	denied 6/25/12 (Ciparick, J.)
People v Hernandez	2d Dept: 92 AD3d 802 (Queens)	denied 6/29/12 (Ciparick, J.)
People v Hiers	2d Dept: 94 AD3d 776 (Queens)	denied 6/29/12 (Smith, J.)
People v Hill (Jeffrey)	4th Dept: 94 AD3d 1426 (Onondaga)	denied 6/27/12 (Smith, J.)
People v Hill (Shannon)	4th Dept: 93 AD3d 1237 (Niagara)	denied 6/12/12 (Smith, J.)
People v Holmes	2d Dept: 92 AD3d 957 (Kings)	denied 6/13/12 (Jones, J.)
People v Hughes (Franklin)	2d Dept: 83 AD3d 960 (Nassau)	granted 6/22/12 (Lippman, Ch. J.)
People v Hughes (Glennan)	3d Dept: 93 AD3d 889 (Warren)	denied 6/11/12 (Smith, J.)
People v Hunter	1st Dept: 91 AD3d 459 (NY)	denied 6/21/12 (Grafteo, J.)

People v Hurdle	1st Dept: 93 AD3d 419 (Bronx)	denied 6/21/12 (Lippman, Ch. J.)
People v Hurt	1st Dept: 93 AD3d 617 (NY)	denied 6/5/12 (Smith, J.)
People v Irvis	3d Dept: 90 AD3d 1302 (Greene)	denied 6/8/12 (Ciparick, J.)
People v Jackson (Erwin)	2d Dept: 92 AD3d 958 (Nassau)	denied 6/12/12 (Read, J.)
People v Jackson (Joseph)	App Div, 4th Dept: 2012 NY Slip Op 69347(U) (Erie)	dismissed 6/29/12 (Grafteo, J.)
People v Jackson (Stanley)	App Div, 1st Dept: 2011 NY Slip Op 89868(U) (Bronx)	denied reconsideration 6/29/12 (Read, J.)
People v Jackson (Vernon)	2d Dept: 94 AD3d 907 (Queens)	denied 6/12/12 (Smith, J.)
People v Jacob	2d Dept: 94 AD3d 1142 (Suffolk)	denied 6/8/12 (Grafteo, J.)
People v James (Anthony)	1st Dept: 91 AD3d 584 (NY)	denied 6/29/12 (Ciparick, J.)
People v James (Elliott)	4th Dept: 92 AD3d 1207 (Cattaraugus)	denied 6/14/12 (Ciparick, J.)
People v Javier	1st Dept: 94 AD3d 543 (NY)	denied 6/18/12 (Jones, J.)
People v Jenkins	2d Dept: 93 AD3d 861 (Suffolk)	denied 6/28/12 (Smith, J.)
People v Jennings	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 34 Misc 3d 137(A) (Kings)	granted 6/27/12 (Smith, J.)
People v Jesus	App Div, 4th Dept: 2012 NY Slip Op 68615(U) (Ontario)	denied 6/29/12 (Read, J.)
People v Jimenez	3d Dept: 95 AD3d 1505 (Washington)	withdrawn 6/12/12 (Lippman, Ch. J.)
People v Johnson	4th Dept: 94 AD3d 1563 (Onondaga)	denied 6/22/12 (Pigott, J.)
People v Jones (Jovan)	2d Dept: 92 AD3d 696 (Suffolk)	denied 6/29/12 (Ciparick, J.)
People v Jones (Kumar)	App Div, 4th Dept: 2012 NY Slip Op 68615(U) (Ontario)	denied 6/29/12 (Read, J.)
People v Jones (Lawrence)	1st Dept: 92 AD3d 539 (NY)	denied 6/12/12 (Ciparick, J.)
People v Jones (Lester)	1st Dept: 85 AD3d 612 (NY)	granted 6/8/12 (Lippman, Ch. J.)
People v Jones (Marlon)	3d Dept: 93 AD3d 999 (Albany)	denied 6/27/12 (Smith, J.)
People v Jones (Qumar)	App Div, 4th Dept: 2012 NY Slip Op 68615(U) (Ontario)	denied 6/29/12 (Read, J.)
People v Jones (Robert)	2d Dept: 94 AD3d 1146 (Kings)	denied 6/22/12 (Grafteo, J.)
People v Jones (Shariff)	4th Dept: 92 AD3d 1218 (Onondaga)	denied 6/29/12 (Read, J.)

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People v Jones (Tony)	1st Dept: 94 AD3d 99 (NY)	denied 6/29/12 (Read, J.)
People v Julius	4th Dept: 93 AD3d 1296 (Monroe)	denied 6/29/12 (Grafteo, J.)
People v Kalb	4th Dept: 91 AD3d 1359 (Erie)	denied 6/14/12 (Ciparick, J.)
People v Keith R.	1st Dept: 95 AD3d 65 (Bronx)	denied 6/14/12 (Pigott, J.)
People v Kelley	4th Dept: 91 AD3d 1318 (Erie)	denied 6/8/12 (Ciparick, J.)
People v Kinard	1st Dept: 94 AD3d 470 (NY)	denied 6/11/12 (Smith, J.)
People v Kinney	1st Dept: 94 AD3d 641 (NY)	denied 6/8/12 (Grafteo, J.)
People v Kosse	2d Dept: 94 AD3d 908 (Nassau)	denied 6/22/12 (Grafteo, J.)
People v Lam	App Term, 1st Dept: 34 Misc 3d 130(A) (NY)	granted 6/21/12 (Jones, J.)
People v Landsman	1st Dept: 93 AD3d 454 (Bronx)	denied 6/29/12 (Ciparick, J.)
People v Leak	1st Dept: 91 AD3d 421 (NY)	denied 6/8/12 (Ciparick, J.)
People v Lebron	2d Dept: 87 AD3d 1162 (Queens)	denied 6/7/12 (Lippman, Ch. J.)
People v LeGrand	1st Dept: 94 AD3d 99 (NY)	denied 6/29/12 (Read, J.)
People v Lemon	4th Dept: 87 AD3d 1412 (Erie)	denied upon reconsideration 6/13/12 (Jones, J.)
People v Lester	App Div, 1st Dept: 2011 NY Slip Op 86451(U) (NY)	denied reconsideration 6/8/12 (Grafteo, J.)
People v Lewis (Alexander)	1st Dept: 92 AD3d 442 (NY)	denied 6/11/12 (Jones, J.)
People v Lewis (Kevin)	4th Dept: 93 AD3d 1264 (Monroe)	denied 6/8/12 (Smith, J.)
People v Littlejohn	2d Dept: 92 AD3d 898 (Queens)	denied 6/29/12 (Ciparick, J.)
People v Long (Ginell)	County Ct, 3/27/12 (Erie)	denied 6/7/12 (Pigott, J.)
People v Long (Rebecca)	App Term, 2d Dept, 9th & 10th Jud Dists: 34 Misc 3d 151(A) (Suffolk)	denied 6/13/12 (Jones, J.)
People v Lopez (Antonio)	2d Dept: 93 AD3d 863 (Kings)	denied 6/29/12 (Read, J.)
People v Lopez (Manuel)	2d Dept: 93 AD3d 808 (Queens)	denied 6/7/12 (Pigott, J.)
People v Loyd (Duane)	4th Dept: 93 AD3d 1192 (Erie)	denied 6/29/12 (Ciparick, J.) (Appeal No. 1)

People v Loyd (Duane)	4th Dept: 93 AD3d 1192 (Erie)	denied 6/29/12 (Ciparick, J.) (Appeal No. 2)
People v Lucas	4th Dept: 94 AD3d 1441 (Erie)	denied 6/8/12 (Grafteo, J.)
People v Mack	2d Dept: 93 AD3d 863 (Kings)	denied 6/25/12 (Smith, J.)
People v Mandrall	2d Dept: 93 AD3d 864 (Kings)	denied 6/29/12 (Read, J.)
People v Mattucci	3d Dept: 92 AD3d 1029 (Chemung)	denied 6/13/12 (Jones, J.)
People v McDonald (Koran)	1st Dept: 91 AD3d 515 (NY)	denied 6/18/12 (Ciparick, J.)
People v McDonald (Reginald)	2d Dept: 82 AD3d 1125 (Kings)	denied 6/7/12 (Lippman, Ch. J.)
People v McDowell	1st Dept: 94 AD3d 474 (NY)	denied 6/12/12 (Lippman, Ch. J.)
People v McDuffie	3d Dept: 89 AD3d 1154 (Saratoga)	denied 6/13/12 (Lippman, Ch. J.)
People v McGill	4th Dept: 93 AD3d 1217 (Monroe)	denied 6/14/12 (Jones, J.)
People v McKinney	2d Dept: 94 AD3d 778 (Dutchess)	denied 6/25/12 (Pigott, J.)
People v McMillan	1st Dept: 90 AD3d 499 (NY)	denied 6/22/12 (Lippman, Ch. J.)
People v McMullen	4th Dept: 94 AD3d 1434 (Onondaga)	denied 6/25/12 (Smith, J.)
People v Mills	4th Dept: 93 AD3d 1198 (Onondaga)	denied 6/12/12 (Read, J.)
People v Milowski	App Term, 2d Dept, 9th & 10th Jud Dists: 34 Misc 3d 137(A) (Suffolk)	denied 6/22/12 (Lippman, Ch. J.)
People v Mims	2d Dept: 94 AD3d 909 (Kings)	denied 6/8/12 (Grafteo, J.)
People v Mitchell (Robert)	1st Dept: 89 AD3d 628 (Bronx)	granted 6/1/12 (Jones, J.)
People v Mitchell (Varrel)	3d Dept: 94 AD3d 1252 (Albany)	denied 6/14/12 (Jones, J.)
People v Mobley	App Div, 2d Dept: 2012 NY Slip Op 64243(U) (Nassau)	dismissed 6/29/12 (Read, J.)
People v Montague-Griffin	1st Dept: 92 AD3d 542 (NY)	denied 6/29/12 (Ciparick, J.)
People v Monteiro	3d Dept: 93 AD3d 898 (Albany)	denied 6/29/12 (Ciparick, J.)
People v Moore	1st Dept: 92 AD3d 575 (NY)	denied 6/11/12 (Jones, J.)
People v Morgan	4th Dept: 94 AD3d 1448 (Cayuga)	denied 6/12/12 (Lippman, Ch. J.)
People v Morillo	2d Dept: 94 AD3d 909 (Queens)	denied 6/22/12 (Lippman, Ch. J.)
People v Morris	2d Dept: 89 AD3d 1112 (Queens)	granted 6/28/12 (Smith, J.)

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People v Morten	1st Dept: 94 AD3d 574 (Bronx)	denied 6/19/12 (Read, J.)
People v Morton	1st Dept: 94 AD3d 574 (Bronx)	denied 6/19/12 (Read, J.)
People v Moustakos	4th Dept: 94 AD3d 1538 (Cayuga)	denied 6/8/12 (Grafteo, J.)
People v Mull	4th Dept: 89 AD3d 1445 (Monroe)	denied 6/15/12 (Lippman, Ch. J.)
People v Muniz (Albiso)	App Div, 3d Dept: 2011 NY Slip Op 80164(U) (Chemung)	dismissed 6/6/12 (Smith, J.)
People v Muniz (Albiso)	3d Dept: 93 AD3d 871 (Chemung)	denied 6/6/12 (Smith, J.)
People v Munnerlyn	1st Dept: 92 AD3d 507 (NY)	denied 6/29/12 (Ciparick, J.)
People v Musmacker	2d Dept: 92 AD3d 960 (Suffolk)	denied 6/29/12 (Ciparick, J.)
People v Newton	4th Dept: 91 AD3d 1281 (Monroe)	denied 6/25/12 (Smith, J.)
People v Noguel	4th Dept: 93 AD3d 1319 (Monroe)	denied 6/6/12 (Smith, J.)
People v Norwood	1st Dept: 94 AD3d 627 (NY)	denied 6/22/12 (Grafteo, J.)
People v Nyarko	1st Dept: 93 AD3d 555 (Bronx)	denied 6/5/12 (Pigott, J.)
People v O'Conner	1st Dept: 90 AD3d 431 (NY)	denied ³ 6/6/12 (Smith, J.)
People v O'Connor	1st Dept: 90 AD3d 431 (NY)	denied ⁴ 6/6/12 (Smith, J.)
People v O'Dell	3d Dept: 91 AD3d 979 (Ulster)	denied 6/29/12 (Read, J.)
People v O'Halloran	App Div, 3d Dept: 2012 NY Slip Op 61055(U) (Broome)	denied 6/5/12 (Ciparick, J.)
People v Oglesby	2d Dept: 93 AD3d 865 (Kings)	denied 6/29/12 (Read, J.)
People v Ojeda (O'Neil)	App Div, 1st Dept: 2012 NY Slip Op 63361(U) (Bronx)	denied 6/7/12 (Pigott, J.)
People v Ojeda (Onel)	App Div, 1st Dept: 2012 NY Slip Op 63361(U) (Bronx)	denied 6/7/12 (Pigott, J.)
People v Oliver	2d Dept: 92 AD3d 900 (Suffolk)	denied 6/15/12 (Pigott, J.)
People v Padilla	1st Dept: 89 AD3d 505 (NY)	granted 6/21/12 (Jones, J.)

3. Reconsideration is granted, the order of January 26, 2012 is vacated (*see* 18 NY3d 885 [2012]), and the application for leave to appeal is denied without prejudice, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Echevarria* (89 AD3d 545 [2011], *lv granted* 18 NY3d 957 [2012]) or *People v Moss* (89 AD3d 600 [2011], *lv granted* 18 NY3d 960 [2012]), whichever is later.

4. Reconsideration is granted, the order of January 26, 2012 is vacated (*see* 18 NY3d 885 [2012]), and the application for leave to appeal is denied without prejudice, with leave to renew within 30 days after the Court of Appeals renders a decision in *People v Echevarria* (89 AD3d 545 [2011], *lv granted* 18 NY3d 957 [2012]) or *People v Moss* (89 AD3d 600 [2011], *lv granted* 18 NY3d 960 [2012]), whichever is later.

People v Parker (Keenan)	2d Dept: 92 AD3d 807 (Kings)	denied 6/13/12 (Jones, J.)
People v Parker (Verne)	1st Dept: 91 AD3d 423 (NY)	denied 6/21/12 (Jones, J.)
People v Peoples	4th Dept: 92 AD3d 1207 (Erie)	denied 6/14/12 (Ciparick, J.)
People v Perez	1st Dept: 87 AD3d 930 (Bronx)	denied 6/12/12 (Lippman, Ch. J.)
People v Pig	4th Dept: 92 AD3d 1207 (Cattaraugus)	denied 6/14/12 (Ciparick, J.)
People v Pizzaro	App Div, 2d Dept, 11/9/11 (Kings)	denied 6/13/12 (Lippman, Ch. J.)
People v Potter	App Div, 2d Dept: 2012 NY Slip Op 62503(U) (Queens)	denied 6/13/12 (Jones, J.)
People v Powell	County Ct, 3/12/12 (Warren)	denied 6/14/12 (Jones, J.)
People v Pratt	1st Dept: 89 AD3d 552 (NY)	denied reconsideration 6/5/12 (Pigott, J.)
People v Reid (Joshua)	4th Dept: 93 AD3d 1229 (Niagara)	denied 6/13/12 (Jones, J.)
People v Reid (Roger)	1st Dept: 93 AD3d 587 (NY)	denied 6/29/12 (Ciparick, J.)
People v Rhodes	3d Dept: 91 AD3d 1185 (Schoharie)	denied 6/29/12 (Ciparick, J.)
People v Rice (Allen)	1st Dept: 88 AD3d 543 (NY)	denied 6/11/12 (Jones, J.)
People v Rice (Kyle)	3d Dept: 90 AD3d 1237 (Ulster)	denied reconsideration 6/13/12 (Jones, J.)
People v Rios	4th Dept: 93 AD3d 1349 (Oneida)	denied 6/8/12 (Read, J.)
People v Rivera (Melody)	1st Dept: 92 AD3d 458 (NY)	denied 6/29/12 (Ciparick, J.)
People v Rivera (Samuel)	1st Dept: 93 AD3d 507 (NY)	denied 6/6/12 (Smith, J.)
People v Rizzuto	1st Dept: 94 AD3d 668 (NY)	denied 6/29/12 (Smith, J.)
People v Roberts	App Div, 3d Dept: 2012 NY Slip Op 66086(U) (Albany)	denied 6/22/12 (Lippman, Ch. J.)
People v Robinson	3d Dept: 86 AD3d 719 (Schenectady)	denied 6/8/12 (Lippman, Ch. J.)
People v Rodriguez (Antonio)	1st Dept: 93 AD3d 595 (NY)	denied 6/25/12 (Smith, J.)
People v Rodriguez (Joel)	1st Dept: 92 AD3d 425 (NY)	denied 6/13/12 (Jones, J.)
People v Rodriguez (Lorenzo)	4th Dept: 93 AD3d 1334 (Erie)	denied 6/14/12 (Jones, J.)

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People v Rodriguez (Orlando)	App Div, 1st Dept: 2011 NY Slip Op 86900(U) (NY)	denied reconsideration 6/29/12 (Smith, J.)
People v Rodriguez (Robert)	2d Dept: 89 AD3d 1043 (Kings)	denied 6/7/12 (Lippman, Ch. J.)
People v Rogers	2d Dept: 92 AD3d 903 (Kings)	denied 6/29/12 (Ciparick, J.)
People v Roundtree	2d Dept: 82 AD3d 795 (Orange)	denied 6/5/12 (Ciparick, J.)
People v Rumph	4th Dept: 93 AD3d 1346 (Monroe)	denied 6/11/12 (Smith, J.)
People v Rush	4th Dept: 94 AD3d 1449 (Niagara)	denied 6/19/12 (Lippman, Ch. J.)
People v Salerno	App Term, 2d Dept, 9th & 10th Jud Dists: 34 Misc 3d 159(A) (Nassau)	denied 6/29/12 (Ciparick, J.)
People v Sanchez (Anibal)	1st Dept: 93 AD3d 406 (NY)	denied 6/29/12 (Ciparick, J.)
People v Sanchez (Lamar)	App Div, 1st Dept: 2012 NY Slip Op 71389(U) (NY)	denied 6/22/12 (Grafteo, J.)
People v Sanon	1st Dept: 90 AD3d 555 (NY)	denied 6/5/12 (Ciparick, J.)
People v Santos	2d Dept: 91 AD3d 974 (Nassau)	denied 6/13/12 (Jones, J.)
People v Sarrazini	1st Dept: 95 AD3d 459 (NY)	denied 6/22/12 (Grafteo, J.)
People v Saunders	1st Dept: 93 AD3d 487 (NY)	denied 6/14/12 (Jones, J.)
People v Scott	4th Dept: 93 AD3d 1193 (Genesee)	denied 6/7/12 (Smith, J.)
People v Serrata	1st Dept: 93 AD3d 442 (NY)	denied 6/22/12 (Lippman, Ch. J.)
People v Shakur	2d Dept: 92 AD3d 957 (Kings)	denied 6/13/12 (Jones, J.)
People v Shaver	3d Dept: 86 AD3d 800 (Ulster)	denied reconsideration 6/21/12 (Grafteo, J.)
People v Sherrod	4th Dept: 94 AD3d 1481 (Erie)	denied 6/29/12 (Smith, J.)
People v Shimukonas	1st Dept: 94 AD3d 477 (NY)	denied 6/7/12 (Smith, J.)
People v Simmons (Akeem)	4th Dept: 92 AD3d 1216 (Monroe)	denied 6/13/12 (Jones, J.)
People v Simmons (Jermaine)	1st Dept: 93 AD3d 458 (NY)	denied 6/13/12 (Jones, J.)
People v Singh	2d Dept: 93 AD3d 867 (Kings)	denied 6/29/12 (Ciparick, J.)
People v Smith (Anthony)	1st Dept: 94 AD3d 454 (NY)	denied 6/8/12 (Read, J.)
People v Smith (Brian)	4th Dept: 93 AD3d 1345 (Monroe)	denied 6/29/12 (Read, J.)

People v Smith (Maurice)	2d Dept: 94 AD3d 1023 (Kings)	denied 6/29/12 (Smith, J.)
People v Smith (Mikal)	1st Dept: 87 AD3d 920 (NY)	granted 6/25/12 (Ciparick, J.)
People v Smith (Paul)	3d Dept: 89 AD3d 1148 (Washington)	denied 6/13/12 (Lippman, Ch. J.)
People v Smith (Twana)	1st Dept: 95 AD3d 461 (NY)	denied 6/29/12 (Smith, J.)
People v Snyder	3d Dept: 91 AD3d 1206 (Franklin)	denied 6/29/12 (Pigott, J.)
People v Souffrant	3d Dept: 93 AD3d 885 (Albany)	denied 6/7/12 (Pigott, J.)
People v Springs	4th Dept: 93 AD3d 1229 (Monroe)	denied 6/6/12 (Lippman, Ch. J.)
People v Steele	1st Dept: 93 AD3d 492 (Bronx)	denied 6/29/12 (Ciparick, J.)
People v Stepney	4th Dept: 93 AD3d 1297 (Onondaga)	denied 6/14/12 (Pigott, J.)
People v Suazo	1st Dept: 95 AD3d 415 (NY)	denied 6/19/12 (Lippman, Ch. J.)
People v Taylor (David)	2d Dept: 92 AD3d 961 (Queens)	dismissed 6/25/12 (Ciparick, J.)
People v Taylor (Devon)	2d Dept: 93 AD3d 868 (Kings)	denied 6/14/12 (Pigott, J.)
People v Tejada	1st Dept: 92 AD3d 460 (NY)	denied 6/29/12 (Read, J.)
People v Temple	1st Dept: 89 AD3d 644 (NY)	denied 6/15/12 (Lippman, Ch. J.)
People v Terry	App Term, 1st Dept: 34 Misc 3d 144(A) (NY)	denied 6/18/12 (Read, J.)
People v Thomas (Chester)	4th Dept: 85 AD3d 1572 (Monroe)	granted 6/6/12 (Lippman, Ch. J.)
People v Thomas (Michael)	2d Dept: 89 AD3d 964 (Queens)	denied 6/27/12 (Smith, J.)
People v Thomas (William)	App Term, 1st Dept: 32 Misc 3d 132(A) (NY)	denied 6/12/12 (Read, J.)
People v Tole	3d Dept: 94 AD3d 1334 (Sullivan)	denied 6/21/12 (Lippman, Ch. J.)
People v Tolliver	4th Dept: 93 AD3d 1150 (Erie)	denied 6/29/12 (Read, J.)
People v Topp	2d Dept: 93 AD3d 869 (Kings)	denied 6/6/12 (Lippman, Ch. J.)
People v Toxey	1st Dept: 92 AD3d 536 (NY)	denied 6/11/12 (Jones, J.)
People v Trujillo	App Term, 2d Dept, 9th & 10th Jud Dists: 33 Misc 3d 136(A) (Nassau)	denied 6/18/12 (Jones, J.)
People v Tuff	4th Dept: 90 AD3d 1645 (Oneida)	denied 6/8/12 (Grafteo, J.)
People v Ture	3d Dept: 94 AD3d 1163 (Saratoga)	denied 6/7/12 (Pigott, J.)

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People v Tyler	1st Dept: 94 AD3d 480 (NY)	denied 6/25/12 (Smith, J.)
People v Tyrell	2d Dept: 92 AD3d 966 (Westchester)	denied 6/14/12 (Jones, J.)
People v Underdue	3d Dept: 89 AD3d 1132 (Albany)	denied 6/29/12 (Read, J.)
People v Van De Viver	App Div, 4th Dept: 2012 NY Slip Op 68658(U) (Oswego)	denied 6/8/12 (Read, J.)
People v Vasquez	2d Dept: 94 AD3d 915 (Westchester)	denied 6/22/12 (Pigott, J.)
People v Velez	2d Dept: 78 AD3d 867 (Westchester)	granted 6/21/12 (Jones, J.)
People v Warren	County Ct, 3/26/12 (Broome)	denied 6/21/12 (Grafteo, J.)
People v Waters	2d Dept: 91 AD3d 977 (Queens)	denied 6/25/12 (Ciparick, J.)
People v White	2d Dept: 94 AD3d 918 (Queens)	denied 6/29/12 (Smith, J.)
People v Williams (Antwon)	4th Dept: 93 AD3d 1193 (Monroe)	denied 6/5/12 (Pigott, J.)
People v Williams (Earl)	App Term, 2d Dept, 2d, 11th & 13th Jud Dists: 34 Misc 3d 142(A) (Queens)	denied 6/14/12 (Ciparick, J.)
People v Williams (Gregory)	2d Dept: 93 AD3d 871 (Kings)	denied 6/6/12 (Lippman, Ch. J.)
People v Williams (Wonder)	1st Dept: 94 AD3d 452 (NY)	denied 6/21/12 (Grafteo, J.)
People v Woodley	1st Dept: 91 AD3d 480 (NY)	denied 6/8/12 (Ciparick, J.)
People v Woods (D'Sean)	4th Dept: 94 AD3d 1426 (Erie)	denied 6/22/12 (Pigott, J.)
People v Woods (Wesley)	4th Dept: 93 AD3d 1287 (Monroe)	denied 6/5/12 (Pigott, J.)
People v Worden	4th Dept: 91 AD3d 1340 (Monroe)	granted 6/5/12 (Pigott, J.)
People v Wright	1st Dept: 91 AD3d 508 (Bronx)	denied 6/8/12 (Ciparick, J.)
People v Young	2d Dept: 88 AD3d 1023 (Suffolk)	denied 6/12/12 (Lippman, Ch. J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices*
(June 1, 2012 through June 30, 2012)

People v McPherson	2d Dept: 89 AD3d 752 (Nassau)	granted 6/20/12 (Belen, J.)
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* Includes only applications that were granted.